THE VACCINATION ACT, 1880

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THE VACCINATION ACT, 1880

[1]ACT No. XIII OF 1880

[9th *July,* 1880]

An Act to give power to prohibit inoculation and to make the vaccination of children compulsory in certain Municipalities and Cantonments[2].

Preamble. WHEREAS it is expedient to give power to prohibit inoculation, and make the vaccination of children compulsory in certain municipalities and cantonments[2]; It is hereby enacted as follows:—

1. Short Title, Application. This Act may be called the Vaccination Act, 1880: and it shall apply only to such municipalities and cantonments[3] situate in [4][the Punjab, the North-West Frontier [5][*] and the district of Sylhet [5][* * *] as it may be extended to in manner hereinafter provided.

2**. Interpretation-clause**. In this Act unless there is something repugnant in the subject or context,—

(1) **"Municipal Commissioners."** the expression "Municipal Commissioners" means a body of Municipal Commissioners or a Municipal Committee constituted under the provisions of any enactment for the time being in force:

(2) **"parent."** "parent" means the father of a legitimate child and the mother of an illegitimate child:

(3) **"guardian".** "guardian" includes any person who has accepted or assumed the care or custody of any child:

(4) **"unprotected child."** "unprotected child" means a child who has not been protected from small-pox by having had that disease either naturally or by inoculation, or by having been successfully vaccinated, and who has not been certified under this Act to be insusceptible to vaccination:

(5) **"inoculation."** "inoculation" means any operation performed with the object of producing the disease of small-pox in any person by means of variolous matter:

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[1]For Statement of Objects and Reasons, *see* Gazette of India, 1880, Pt. V p. 80 ; for Report of Select Committee, *see ibid.,* p. 205, and for Proceedings in Council, *see ibid.,* 1879, Supplement, p. 1225, and *ibid.,* 1880, Supplement, pp. 566, 1204.
This Act has been declared to be in force in Balochistan by the British Balochistan Laws Regulation, 1913 (2 of 1913), s. 3.
It has been applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N.W.F.P., subject to certain modifications ; *see* N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950.
It has been extended to the Excluded Area of Upper Tanawal other than Phulera by N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950 and declared to be in force in that area with effect from 1st June, 1951, *see* N.W.F.P. Gazette, Ext., dated the 1st June, 1951.
It has been diversely amended in the Punjab, by Punjab Acts 3 of 1915 and 2 of 1929, and in N.W.F.P. by N.W.F.P. Act 11 of 1947.
It has been extended to the Leased Areas of Balochistan, *see* the Leased Areas (Laws) Order, 1950 (G.G.O. 3 of 1950); and also applied in the Federated Areas of Balochistan, *see* Gaz. of India, 1937, Pt. I, p. 1499.
This Act has been repealed in its application to the Province of West Pakistan by West Pakistan Ordinance 27 of 1958, s. 16.
[2]The long title and preamble have been amended in the Punjab and N.W.F.P. so as to include other local areas.
[3]This provision has been amended in the Punjab and the N.W.F.P. so as to include other local areas.
[4]The original words "the territories administered respectively by the Lieutenant-Governor of the North-Western Provinces and the Punjab, and the Chief Commissioner of Oudh, the Central Provinces, British Burma, Assam, Ajmer and Coorg" has been successively amended by A.O., 1937, A.O., 1949, Sch. and the Federal Laws (Revision and Declaration) Act, 1926 (26 of 1951), s. 8, to read as above.
[5]The words" Province and in East Bengal" omitted by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch.(*with effect from the 14th October, 1955).*

(6) **"vaccination circle."** "vaccination-circle" means one of the parts into which a municipality or cantonment has been divided under this Act for the performance of vaccination:

(7) **"vaccinator".** "vaccinator" means any vaccinator appointed under this Act to perform the operation of vaccination, or any private person authorized [1]* * * in manner hereinafter provided to perform the same operation; and includes a "Superintendent of vaccination" :

(8) **"vaccination season."** "vaccination-season" means the period from time to time fixed by the [2][Provincial Government] for any local area under its administration by notification in the official Gazette, during which alone vaccination may be performed under this Act.

3. Extension of Act to municipalities. A majority in number of the persons present at a meeting of the Municipal Commissioners specially convened in this behalf may apply to the [2][Provincial Government] to extend this Act to the whole or any part of a municipality, and thereupon the [2][Provincial Government] may, if it thinks fit, by notification published in the official Gazette, declare its intention to extend this Act in the manner proposed.

Any inhabitant of such municipality or part thereof who objects to such extension may within six weeks from the date of such publication, send his objection in writing to the Secretary to the [2][Provincial Government], and the [2][Provincial Government] shall take such objection into consideration. When six weeks from the said publication have expired, the [2][Provincial Government], If no such objections have been sent as aforesaid, or (when such objections have been so sent) if in its opinion they are insufficient, may by like notification effect the proposed extension[3].

4. Extension. to cantonments. The [2][Provincial Government] may, [3][* * *] by notification in the [5][official Gazette], extend this Act to the whole or any part of a military cantonment.

5. Power to withdraw local area from operation of Act. The [2][Provincial Government] may, by notification in the official Gazette, withdraw any local area in a municipality or [5]* * * any local area in a cantonment, from the operation of this Act.

6. Prohibition of inoculation. In any local area to which the provisions of this Act apply, inoculation shall be prohibited; and

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Inoculated persons not to enter, without certificate, local area subject to Act. No person who has undergone inoculation shall enter such area before the lapse of forty days from the date of the operation, without a certificate from a medical practitioner, of such class as the [2][Provincial Government] may from time to time by written order authorize to grant such certificates, stating that such person is no longer likely to produce small-pox by contact or near approach.

7. Vaccination circles. Every local area to which this Act applies shall be a vaccination circle, or shall in manner hereinafter provided be divided into a number of such circles;

Vaccinators. one or more vaccinators shall be appointed in manner hereinafter provided for each such circle; and

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[1]The words "by the L.G." rep. by the Decentralization Act, 1914 (IV of 1914), s. 2 and Sch., Pt. I.
[2]Subs. by A.O., 1937, for "L.G.".
[3]The words "subject to the control of the G.G. in C" rep. by the Devolution Act, 1920 (XXXVIII of 1920).
[4]Subs. by A.O., 1937, for "local official Gazette".
[5]See foot-note 4 on preceding page.

Superintendent of vaccination. one or more Superintendents of vaccination shall be appointed in manner hereinafter provided for each such local area.

8. Private vaccinators. The [1][Commissioner] may by written licence authorize private vaccinators to perform vaccination in any vaccination-circle, and may suspend or cancel any such licence.

9. Unprotected children to be vaccinated. When any unprotected child, having attained the age of 6 months, has resided for a period of one month during the vaccination-season in any local area to which the provisions of this Act apply, and has not at the expiration of such period attained the age, if a boy, of fourteen years, and if a girl, of eight years, the parent or guardian of such child shall take it, or cause it be taken, to a vaccinator to be vaccinated, or send for vaccinator to vaccinate it.

Vaccinator to vaccinate children or deliver certificates of postponement. Such vaccinator shall vaccinate the child and deliver to its parent or guardian a memorandum stating the date on which the vaccination has been performed and the date on which the child is to be inspected in order to ascertain the result of the operation, or shall, if he finds such child in a state unfit for vaccination, deliver to its parent or guardian a certificate under his hand to the effect that the child is in a state unfit for vaccination for the whole or part of the current vaccination-season.

10. Inspection after vaccination. The parent or guardian of every child which has been vaccinated under section nine shall, on the date of inspection stated in the memorandum, take the child, or cause it to be taken, to a vaccinator for inspection, or get it inspected at his own house by a vaccinator; and such vaccinator shall then append to the memorandum a certificate stating that the child has been inspected and the result of such inspection.

11. Procedure when vaccination is successful. When it is ascertained at the time of inspecting a child under section ten that the vaccination has been successful, a certificate shall be delivered by the vaccinator to the parent or guardian of such child to that effect, and such child shall thereafter be deemed to be protected.

12. Procedure when vaccination is unsuccessful. When it is ascertained as aforesaid that the vaccination has been unsuccessful, the parent or guardian shall, if the vaccinator so direct, cause the child to be forthwith again vaccinated and subsequently inspected in manner hereinbefore provided.

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13. Procedure when child is unfit for vaccination. A certificate granted under section nine showing the unfitness of a child for vaccination shall remain in force for the period stated therein, and on the termination of that period, or, if that period terminates after the vaccination-season is over, when the next vaccination-season begins, the parent or guardian of such child shall take the child, or cause it to be taken to a vaccinator to be vaccinated, or procure its vaccination at his own house by a vaccinator:

Renewal of postponement certificates. Provided that, if the child is still found to be in a state unfit for vaccination, the certificate granted under section nine shall be renewed.

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[1]Subs. by the Decentralization Act, 1914 (4 of 1914), s. 2 and Sch., Pt. I, for "L.G." .
In the N.W.F.P. the reference to the Commissioner should be construed as referring to the Revenue Commissioner; *see* the N.W.F.P. Law and Justice Regulation, 1901 (7 of 1901), s.6 (1) *(f)*.

14. Certificates of insusceptibility of successful vaccination. If the Superintendent of vaccination is of opinion that a child which has been three times unsuccessfully vaccinated is insusceptible of successful vaccination, he shall deliver to the parent or guardian of such child a certificate under his hand to that effect; and the parent or guardian shall thenceforth not be required to cause the child to be vaccinated.

15. What lymph to be used. The vaccination of a child shall ordinarily be performed with such lymph as may be prescribed by the rules to be made under this Act:

Provided that,

1st, if animal-lymph is so prescribed and the parent or guardian of any child desires that such child shall be vaccinated with human lymph, it shall be so vaccinated; and

2nd, if in any local area in which animal-lymph is procurable human lymph is so prescribed, and the parent or guardian of any child desires that such child should be vaccinated with animal-lymph, and tenders to the vaccinator the amount of such fee, not exceeding one rupee, as may be fixed by such rules in this behalf, such child shall be so vaccinated.

16. No fee to be charged except by private vaccinator. No fee shall be charged by any vaccinator except a private vaccinator to the parent or guardian of any child for any of the duties imposed on such vaccinator by or under the provisions of this Act:

Proviso. Provided that it shall be lawful for a vaccinator to accept a fee for vaccinating a child by request of the parent or guardian elsewhere than in the circle for which such vaccinator is appointed.

17. Duties of Suprintendent of vaccination. Notice to parent or guardian neglecting to comply with Act. The Superintendent of vaccination in addition to the other duties imposed on him by or under the provisions of this Act, shall ascertain whether all unprotected children, under the age of fourteen years if boys, and under the age of eight years if girls, within the local area under his superintendence have been vaccinated; and, if he has reason to believe that the parent or guardian of any such child is bound by the provisions hereinbefore contained to procure the vaccination of such child or to present it for inspection, and has omitted so to do, he shall personally go to the house of such parent or guardian, and there make enquiry, and shall, if the fact is proved, forthwith deliver to such parent or guardian, or cause to be affixed to his house, a notice requiring that the child be vaccinated, or (as the case may be) that it be presented for inspection, at a time and place to be specified in such notice.

18. Order by Magistrate when notice not complied with. If such notice is not complied with, the Superintendent of vaccination shall report the matter to the [1]Magistrate of the District, or such Magistrate as the [2][Provincial Government] or the 1Magistrate of the District may from time to time appoint in this behalf; and the Magistrate receiving such report shall summon the parent or guardian of the child and demand his explanation, and shall, if such explanation is not satisfactory, make an order in writing directing such parent or guardian to comply with the notice before a date specified in the order.

[1]*Read* District Magistrate, *see* the Code of Criminal Procedure, 1898 (Act 5 of 1898), s. 3(2).
[2]Subs. by A.O., 1937, for " L.G."

Procedure when order not obeyed. If on such date the order has not been obeyed, the Magistrate shall summon the parent or guardian before him, and unless just cause or excuse is shown, shall deal with the disobedience as an offence punishable under section twenty-two.

Magistrates to be non-official Natives. The Magistrates appointed under this section shall, as far as is conveniently practicable, be [1][citizens of Pakistan], and not paid servants of the [2][State].

19. Power to make rules for municipalities. When this Act has been applied to any municipality or any part thereof, the Municipal Commissioners may, from time to time, make [3]rules consistent with this Act for the proper enforcement of this Act within the limits to which it applies. Such rules shall be made in the manner in which, under the law for the time being in force, the [4][Municipal] Commissioners make rules or byelaws for the regulation of other matters within the limits of the municipality, and shall, when confirmed by the [5][Commissioner] and published in the official Gazette, have the force of law:

Provided that the [5][Commissioner] may at any time rescind or modify any such rule[6].

20. Power to make rules for cantonments. When this Act has been applied to any cantonment or any part thereof, the [7][Provincial Government] may, from time to time, [8]* * * make such [9]rules.

21. What rules under sections 19 and 20 may provide for. The rules to be made for any local area under section nineteen[10] or twenty may, among other matters, provide for—

(a) the division of such local area into circles for the performance of vaccination;

(b) the appointment of a place in each vaccination-circle as a public vaccine-station, and the posting of some distinguishing mark in a conspicuous place near such station;

(c) the qualifications to be required of public vaccinators and Superintendents of vaccination;

(d) the authority with which their appointment, suspension and dismissal shall rest;

(e) the time of attendance of public vaccinators at the vaccine-stations, and their residence within the limit of the vaccination-circles;

(f) the distinguishing mark or badge to be worn by them;

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[1]Subs. by A.O., 1961, Art. 2 and Sch. (with effect from the 23rd March, 1956), for "British subjects domiciled in Pakistan" which had been subs. by A. O., 1949, Sch., for "Natives of India".
[2]Subs. by A.O., 1961, Art. 2 and Sch. (with effect from the 23rd March, 1956), for " Crown" which had been subs. by A.O., 1937 for "Govt.".
[3]For such rules, *see* the local rules and orders.
[4]Ins. by the Decentralization Act, 1914 (4 of 1914), s. 2 and Sch., Pt. I.
[5]Subs. *ibid*., for " LG.". *See* also foot-note 4 below s. 8, *supra.*
[6]S. 19 has been replaced by another section in the Punjab by Punjab Act 9 of 1925. After this section a new section 19A has been ins. in the Punjab and the N.W.F.P. by Punjab Act 2 of 1929 and N.W.F.P. Act 11 of 1947, respectively.
[7]Subs. by A.O., 1937, for "L.G.".
[8]The words "subject to the control of the G.G. in C." rep. by the Devolution Act, 1920 (38 of 1920).
[9]For such rules ,*see* the different local rules and orders.
[10]The word and letter "nineteen A" have been ins. at this place in the Punjab and the N.W.F.P. by Punjab Act 2 of 1929 and N.W.F.P. Act 1 of 1947, respectively.

(g) the amount of fee chargeable by private vaccinators, and their guidance generally in the performance of their duties;

(h) the facilities to be afforded to people for procuring the vaccination of their children at their own houses;

(i) the grant and form of certificates of successful vaccination, of unfitness for vaccination or of insusceptibility of vaccination;

(j) the nature of the lymph to be used and the supply of a sufficient quantity of such lymph;

(k) the fee to be paid for vaccination with animal-lymph under section fifteen;

(1) the fee to be paid to a public vaccinator for vaccinating a child beyond the vaccination-circle at the request of the parent or guardian of the said child;

(m) the preparation and keeping of registers showing— the names of children born in such local area on or after the date of the application of this Act;

the names of unprotected children born in such local area previous to the application of this Act, and who are, at the time this Act is applied, under the age of fourteen years if boys, and of eight years if girls;

the names of unprotected boys and girls respectively under those ages brought within such local area at any time after the application of this Act and who have resided there for a month;

the result of each vaccination or its postponement, and the delivery of certificates, if any;

[1](n) the assistance to be given by the Municipal Commissioners and municipal servants in the preparation of these registers, and in other matters; and

(o) the preparation of vaccination-reports and returns.

22. Punishment of offences. Whoever commits any of the undermentioned offences (that is to say):—

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(a) violates the provisions of section six,

(b) neglects without just excuse to obey an order made under section eighteen,

(c) breaks any of the rules made under section nineteen[2] or twenty, or

(d) neglects without just cause to obey an order made under section eighteen after having been previously convicted of so neglecting to obey a similar order made in respect of the same child, shall be punished as follows (that is to say):-

in the case of the offence mentioned in clause (a), with simple imprisonment for a term which may extend to three months, or with fine which may extend to two hundred rupees, or with both;

[1]This clause has been amended in the Punjab and the N.W.F.P. by Punjab Act 2 of 1929 and N.W.F.P. Act 11 of 1947, respectively, so as to include members of District Boards and the servants of those local bodies.

[2]The word and letter "nineteen A" have been ins. at this place in the Punjab and the N.W.F.P. by Punjab Act 2 of 1929 and N.W.F.P. Act 1 of 1947, respectively.

in the case of the offences mentioned in clauses (b) and (c), with fine which may extend to fifty rupees; and

in the case of the offence mentioned in clause (d), with simple imprisonment for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

23. Municipal funds to receive fees and meet expenditure. The amount of all fees [1]* * realized, and the amount of all expenditure incurred, under this Act in any municipality shall respectively be credited to and paid from the Municipal Fund[2].

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Date: 16-09-2024

[1]The words "and fines" rep. by A.O., 1937.
[2]This section has been amended in the Punjab and the N.W.F.P. by Punjab Acts 9 of 1925, and 2 of 1929, and N.W.F.P. Act 11 of 1947, so as to include other local areas and funds.

THE UNANI, AYURVEDIC AND HOMOEOPATHIC PRACTITIONERS ACT, 1965

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THE UNANI, AYURVEDIC AND HOMOEOPATHIC PRACTITIONERS ACT, 1965

[1]ACT No. II OF 1965

[28th January, 1965]

An Act to regulate the qualifications and to provide for the registration of practitioners of Unani, Ayurvedic and Homoeopathic systems of medicine.

[2][WHEREAS it is expedient to promote and popularise the Unani, Ayurvedic and Homoeopathic systems of medicine, to regulate education and research in, and to provide for the registration of practitioners of, those systems of medicine;]

AND WHEREAS the national interest of Pakistan in relation to the achievement of uniformity within the meaning of clause (2) of Article 131 of the Constitution requires Central legislation in the matter;

It is hereby enacted as follows:—

PART I

PRELIMINARY

1. Short title, extent and commencement.—(1) This Act may be called the Unani, Ayurvedic Homoeopathic Practitioners Act, 1965.

(2) It extends to the whole of Pakistan.

[3][(3) It shall come into force on the twenty first day of July, 1965.]

2. Definitions.—In this Act, unless there is anything repugnant in the subject or context,—

(a) "approved" means approved by the [4][Federal Government] on the recommendation of the [5][Council];

[6][(b) "Committee" means the Committee appointed by the Council;

(bb) "Council" means the National Council for Tibb or, as the case may be, the National Council for Homoeopathy, established under section 3;]

(c) "Homoeopathy" means the Homoeopathic system of medicine [7][including the Bio-Chemic system of medicine,] and "Homeopath" means a practitioner of Homoeopathy [7][or the Bio-Chemic system of medicine];

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[1]For Statement of Objects and Reasons, see Gaz. of P., 1965, Ext., p. 52 S.
[2]Subs. by the Unani, Ayurvedic and Homeopathic Practitioners (Amdt.) Ordinance, 1978 (XXII of 1978), s. 2.
[3]Subs. and shall be deemed always to have been so subs. by Unani, Ayurvedic and Homeopathic Practitioners (Amdt.) Ordinance, 1966 (II of 1966), s. 2, for the original sub-section (3).
[4]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[5]Subs. by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt.) Ordinance, 1982 (XXVII of 1982), s. 5 for "Board" and "Boards".
[6]Subs. by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt) Ordinance (XXVII of 1982), s. 2.
[7]Ins. and added by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt.) Ordinance, 1978 (XXII of 1978), s.3.

[1][(cc) 'list' means the list of Homoeopaths prepared under section 27 as that list existed immediately before the commencement of the Unani, Ayurvedic and Homoeopathic Practitioners (Amendment) Ordinance, 1978, and 'listed' shall be construed accordingly ;

(ccc) 'meeting' means meeting of the [2][Council] ;

(cccc) 'misconduct' means conduct contrary to the provisions of this Act, the rules and regulations made under this Act and the Code of Ethics adopted by the [2][Council];]

(d) "prescribed" means prescribed by rules or regulations made under this Act ;

(e) "President" means the President of the [2][Council] ;

[1][(ee) 'qualified' means qualified from any approved or recognized teaching institution imparting instruction in the Unani, Ayurvedic or Homoeopathic system of medicine;]

(f) "recognized" means recognized by the [3][Federal Government] for the purposes of this Act ;

(g) "register" means a register of practitioners of the Unani or Ayurvedic or Homoeopathic system of medicine maintained under this Act ;

(h) "registered practitioner" means a practitioner whose name is for the time being entered in a register ;

(i) "Registrar" means the Registrar of the [2][Council] ;

(j) "Tabib" means a practitioner of the Unani system of medicine ;

(k) "Unani and Ayurvedic systems of medicine" means the Unani Tib and Ayurvedic (including the Siddha) system of medicine, whether supplemented or not by such modern advances as the [2][Council] may, from time to time, determine ;

(l) "Vaid" means a practitioner of the Ayurvedic system of medicine [1][;]

[1][(m) 'Vice-President' means Vice-President of the [2][Council].]

3. Establishment and incorporation of [2][Councils].—(1) As soon as may be after the commencement of this Act, the [3][Federal Government] shall, by notification in the official Gazette, establish a [4][Council to be called the National Council for Tib] and, by a like notification, [5][another Council to be called the National Council for Homoeopathy] for the purposes of this Act.

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[1]Ins., Subs. and added by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt.) Ordinance, 1978 (XXII of 1978), s.3.
[2]Subs. by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt.) Ordinance, 1982 (XXVII of 1982), s. 5 for "Board" and "Boards".
[3]Subs. by F.A.O., 1975, Art. 2 and Table for "Central Government".
[4]Subs. by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt.) Ordinance, 1979 (LXVI of 1979), s. 3, for certain words.
[5]Subs. by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt) Ordinance, 1982 (XXVII of 1982), s.3.

(2) Each of the two [1][Councils] shall be a body corporate, having perpetual succession and a common seal, and shall, by its name as specified in sub-section (1), sue and be sued.

PART II

CONSTITUTION AND FUNCTIONS OF [1][COUNCILS]

CHAPTER I

COMPOSITION AND PROCEEDINGS OF [1][COUNCILS]

[2][**4. Composition of the National Council for Tib.**—(1) The National Council for Tib shall consist of the following members, namely:—

(a) four members, being qualified and registered practitioners of the Unani system of medicine, to be nominated by the Federal Government after consulting the Provincial Government concerned of whom one shall be from each Province ;

(b) eleven qualified members, to be elected from amongst themselves by the registered practitioners of the Unani system of medicine, of whom five shall be from the Punjab, three from Sind, two from the North-West Frontier Province and one from Baluchistan ;

(c) two members, to be elected from amongst themselves by the teachers of all the recognized institutions of the Unani or Ayurvedic system of medicine ;

(d) one member, to be elected from amongst themselves by the registered practitioners of the Ayurvedic system of medicine ; and

(e) four members, to be nominated by the Federal Government, of whom one shall be a scientist [3][from the related field], [4][and one Deputy Secretary (Budget), Ministry of Health] [3][who shall also be the Chairman of the Finance Committee].

(2) Notwithstanding anything contained in sub-section (1), for the purpose of constituting the National Council for Tib for the first time,—

(a) the members required to be elected under clauses (b) and (c) shall be nominated by the Federal Government from amongst the registered practitioners of the Unani system of medicine ;

(b) the member required to be elected under clause (d) shall be nominated by the Federal Government from amongst the registered practitioners of the Ayurvedic system of medicine ; and

(c) for the members nominated under clauses (a) and (e) the Federal Government shall nominate fresh members in accordance with the provisions of those clauses.]

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[1]Subs., by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt.), Ordinance, 1982, (XXVII of 1982), s. 5, for "Board" and "Boards" respectively.

[2]Subs. by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt.), Ordinance, 1979. (LXVI of 1979), s. 4, for section 4 which were previously subs. by Ord. 22 of 1978, s. 4, for the original sections 4 and 5.

[3]Ins. and added by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt), Ordinance, 2002 (LXI of 2002), s.2.

[4]Added by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt), Ordinance, 2002 (IV of 2002), s.2.

[4]**[5. Composition of the** [1]**[National Council for Homoeopathy].**—The [1][National Council for Homoeopathy] shall consist of the following members, namely:—

(a) four members, being registered Homoeopaths, to be nominated by the Federal Government after consulting the Provincial Government concerned, of whom one shall be from each Province ;

(b) eleven members, to be elected from amongst themselves by registered and listed Homoeopaths, of whom five shall be from the Punjab, three from Sindh, two from the North-West Frontier Province and one from Baluchistan ;

(c) two members, to be elected from amongst themselves by the teachers of recongnised institutions of Homoeopathy ; and

(d) four members, to be nominated by the Federal Government, of whom one shall be a scientist [2][from the related field] [3][and one Deputy Secretary (Budget), Ministry of Health] [2][who shall also be the Chairman of the Finance Committee]].

6. The President.—The President [4][and Vice-President] shall be elected by the members of the Board from amongst themselves :

[5][* * * * * * *]

7. Elections.—Elections under this Act shall be held at such time and place and in such manner as may be prescribed by rules.

8. Publication of names, etc.—The [6][Federal Government] shall publish in the official Gazette the names of the President [4][, the Vice-President] and other members of the [7][Council] together with the dates on which such members are elected or nominated.

9. Term of office of members.—(1) The members of the [7][Council] shall be nominated or elected, as the case may be , in such manner and for such term as may be prescribed by rules.

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[3][(2) Every member of the Council shall, subject to the other provisions of this Act and as may be prescribed by rules, hold office for the prescribed term and cease to hold office at the expiry thereof.]

(3) Members shall be eligible for re-nomination or re-election to the [7][Council] on the expiry of the prescribed term.

[3][(4) If a vacancy in the office of President, Vice-President or a member occurs during the prescribed term, through death, resignation, disability or otherwise, the vacancy shall be filled in accordance with the provisions of this Chapter.]

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[1]Subs. by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt.), Ordinance, 1982 (XXVII of 1982), s. 4, for certain words.
[2]Ins. and added by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt), Ordinance, 2002 (LXI of 2002), s.3.
[3]Added and Subs. by by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt), Ordinance, 2002 (IV of 2002), ss.3-4.
[4]Subs., Ins. and Omitted by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt.), Ordinance, 1978 (XXII of 1978), ss, 4-6.
5Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[6]Subs. by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt.), Ordinance, 1982 (XXVII of 1982), s. 5, for "Board".

[1][(5) The election or nomination of the members of the Council shall be held at least three months prior to the expiry of the prescribed tenure of the Council and expenditure on election shall be borne by the respective Council and if, at any time, the Council ceases to exist on expiry of its prescribed tenure, all powers and functions of the Council shall, till constitution of new Council or for a period of one year, be exercised and performed by such person or authority as may be appointed by the Federal Government in this behalf, as if such person or authority were the Council.]

10. Vacancies not to invalidate proceedings of [2][Council].—No act or proceedings of the [2][Council] shall be invalid merely on the ground of the existence of any vacancy in or any defect in the composition of the [2][Council].

[3][**11. Resignation by President etc.**—The President, Vice-President or any member may at any time resign his office by a letter addressed to the Registrar, and such resignation shall take effect from the date it is accepted by the [2][Council].

12. Declaration of vacancies.—If any member, during the term of his office,—

(a) absents himself, without such reason as may in the opinion of the [2][Council] be sufficient, from three consecutive ordinary meetings of the [2][Council]. or

(b) becomes subject to any of the disqualifications mentioned in section 13, the [2][Council] shall declare his office vacant.

13. Disqualification of members.—[4][(1)] No person shall be a member of the [2][Council] if—

(a) he is an undischarged insolvent ;

(b) he has been adjudicated by a competent court to be of unsound mind ;

(c) he has at any time been convicted of an offence which in the opinion of the [5][Federal Government] involves moral turpitude ; or

(d) his name has been removed from the register.

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[4][(2) If at any time it appears to the Federal Government that any member of the Council has failed to exercise or has exceeded or abused any power conferred upon him as a member of the Council, any committee or examining body appointed under sub-section (3) of section 22, may, if satisfied that such failure, excess or abuse has adversely affected the efficient conduct of such member in achieving the objectives of this Act and after giving him an opportunity of showing cause against the action proposed to be taken, by notification in the official Gazette, disqualify him from the membership of the Council or, as the case may be, Committee or examining body.]

14. Functions of the Council.—The following shall be the functions of the [2][Council], namely:—

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[1]Added by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt), Ordinance, 2002 (LXI of 2002), s.4.
[2]Subs. by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt.), Ordinance 1982 (XXVII of 1982) s. 5 for "Board".
[3]Subs. by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt), Ordinance, 1978 (XXII of 1978), s.8.
[4]Renumber and Added by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt), Ordinance, 2002 (IV of 2002), s.5.
[5]Subs. by F.A.O. 1975, Art. 2 and Table, for "Central Government".

(a) to consider applications for recognition under this Act made by institutions imparting or desiring to impart instruction in the system of medicine with which the [1][Council] is concerned ;

(b) to secure the maintenance of an adequate standard of [2][education] in recognized Institutions ;

(c) to make arrangements for the registration of duly qualified persons in accordance with the provisions of this Act ;

[2][(cc) to appoint committees or sub-committees, each having due representation of all the Provinces, for a specific period, to perform any specified function connected with the functions of the [1][Council];]

(d) to provide for research in the system of medicine with which the [1][Council] is concerned ; and

(e) to do such other acts and things as it may be empowered or required to do by this Act or the rules.

15. Meetings of the Council.— (1) The [1][Council] shall meet at such time and place, and every meeting of the [1][Council] shall be summoned in such manner, as may be prescribed by regulations:

Provided that, until such regulations are made, the President may summon a meeting of the [1][Council] at such time and place as he may deem expedient by notice addressed to each member.

[2][(2) The President and, in his absence, the Vice-president, shall preside at every meeting of the [1][Council] and if, at any time, the Vice-president is also absent and the President has given prior permission, a member elected by the members present from amongst themselves shall preside.]

(3) Except as hereinafter provided, all questions at meeting of the [1][Council] shall be decided by a majority of the votes of the members present.

(4) [2][Eight] members of the [1][Council] shall form a quorum.

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(5) At every meeting of the [1][Council] the [2][person presiding] shall, in addition to his vote as a member of the [1][council], have a second or casting vote in case of an equality of votes.

16. Officer of the Council and their pay and allowance.—[3][(1) The Council shall, with the previous approval in writing of the Federal Government, appoint a Registrar and Controller of Examination on such terms and conditions as may be determined by the Federal Government and may appoint a person to act in his place during his absence on leave.

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[1]Subs. by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt.), Ordinance, 1982 (XXVII of 1982), s.5, for "Board".
[2]Subs. and Ins. by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt.), Ordinance, 1978 (XXII of 1978), ss. 9-10.
[3]Subs. by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt.), Ordinance, 2002 (LXI of 2002), s.5.

(2) An order of the Council appointing, punishing or removing the Registrar and Controller of Examination from office shall not take effect unless confirmed by the Federal Government in writing.]

(3) The Registrar shall be Secretary to the [1][Council] and shall exercise such powers and perform such duties as may be prescribed by regulations.

(4) The [1][Council] may appoint such other officers and servants on such terms and conditions as the [1][Council] may, with the previous approval in writing of the [2][Federal Government] determine.

(5) The Registrar and all other officers and servants of the [1][Council] shall be deemed to be public servants within the meaning of Section 21 of the Pakistan Penal Code.

CHAPTR II

TEACHING INSTITUTIONS AND EXAMINATIONS

17. Recognition of institutions.—(1) Any institution imparting or desiring to impart instruction in the Unani, Ayurvedic or Homoeopathic system of medicine [3][according to the courses prescribed by rules] may apply for recognition under this Act.

(2) An application for recognition shall be addressed to the Registrar of the [1][Council] Concerned [4][,shall be accompanied by the fees prescribed by rules] and shall contain full information in respect of the following matters, namely:—

(a) the constitution and personnel of the managing body of the institution ;

(b) the subject and courses in which it imparts or proposes to impart instructions ;

(c) the equipment possessed by the institution and the number of students for whom accommodation and other provision has been or is proposed to be made ;

(d) the strength and particulars of its, staff their salaries, qualifications and the research work to their credit ;

(e) the fees levied or proposed to be levied and the financial provision made for capital expenditure on buildings and equipment and for the continued maintenance and efficient working of the institution.

(3) The Registrar shall place the application before the [1][Council], and the [1][Council] may direct the Registrar to call for any further information which it may consider necessary, and may also direct a local inquiry to be made by competent person or persons authorized by it in this behalf.

(4) After considering the report of such local inquiry, if any and making such further inquiry as may appear to it to be necessary, the [1][Council] shall forward the application together with its recommendation whether the recognition asked for should or should not be granted, to the [2][Federal Government] which may, [5][after making inspection, if necessary, at its own or through the Provincial

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[1]Subs. by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt.), Ordinance 1982 (XXVII of 1982) s. 5 for "Board".
[2]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[3]Ins. by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt.), Ordinance 1978 (XXII of 1978, s.11.
[4]Ins. by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt.), Act, 1968 (X of 1968), s. 2.
[5]Ins. by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt.), Act, 2002 (IV of 2002), s. 6.

Government concerned,] by order, grant or refuse to grant recognition and the grant of recognition may be subject to such terms and conditions, if any, as may be specified in the order.

18. Maintenance of standard of efficiency.—(1) It shall be the duty of the [1][Council] to secure the maintenance of an adequate standard of efficiency in recognized institutions.

(2) For the purpose of securing such standard, the [1][Council] may—

(a) from time to time call upon any recognized institution to furnish such particulars as the [1][Council] may require of any course of study provided or examination conducted by such institution, and

(b) appoint inspectors from amongst the registered practitioners to attend and be present at all or any of the examinations conducted by such institution prior to the qualifying examination.

(3) The inspectors shall not interfere with the conduct of any examination, and their duty shall be to report to the [1][Council] their opinion as to the sufficiency or otherwise of every examination which they attend, and any other matter in relation to such examination on which the [1][Council] may require them to report.

(4) The [1][Council] shall arrange periodical inspection of recognized institutions and supervision of the examinations conducted by such institutions, through inspectors to be appointed by the [1][Council], and shall pay such salaries and allowances and traveling expenses to the inspectors as may be approved by the [2][Federal Government].

19. Withdrawal of recognition.—(1) The [1][Council] when it thinks fit may, and when required to do so by the [2][Federal Government] shall, make an enquiry whether any recognized institution should cease to be a recognized institution.

(2) If, on making such an enquiry, and after considering all such information and reports as are referred to in the preceding section and making such further inquiry as may appear to it to be necessary, the [1][Council] is satisfied that the [3][education] provided or the examinations conducted by a recognized institution are not such as to secure and adequate standard of efficiency for the practice of the system of medicine taught in the institution, it shall submit a report to the [2][Federal Government] with its recommendation stating the reasons therefor that the recognition of the institution should be withdrawn and the [2][Federal Government] may, on receipt of such report, make an order to be published in the official Gazette, withdrawing the recognition of the institution:

Provided that no order under this sub-section shall be made unless the institution concerned has been given an opportunity to raise, within a specified time, the standard of the [3][education] and examination to the satisfaction of the [2][Federal Government] and the institution has, in the opinion of the [2][Federal Government], failed to do so.

20. Duration of courses.—(1) The duration of the course in recognized institutions of Unani

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[1]Subs. by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt.), Ordinance, 1982 (XXVII of 1982), s. 5, for "Board".
[2]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[3]Subs. by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt.), Ordinance, 1978 (XXII of 1978), s. 12.

or Ayurvedic System of Medicine shall be four years and the course shall include the subjects prescribed by regulations.

(2) The duration of diploma course in recognized institutions of Homoeopathy shall be four years and the course shall include the subjects prescribed by regulations.

[1][**21. Qualifications for admission to institutions.**—(1) The minimum qualifications required for admission to a recognized institutions of Unani or Ayurvedic System of medicine shall be matriculation with science or equivalent examination of any university or education board in Pakistan established by or under any law for the time being in force.

(2) The minimum qualifications required for admission to a recognized institution of homoeopathy shall be intermediate with science (F.Sc. Pre-medical) or equivalent examination of any university or education board in Pakistan established by or under any law for the time being in force, but those with bachelor or higher qualification with science shall be entertained.]

22. Qualifying examination.—(1) A qualifying examination shall be held at least once in every year for the purpose of granting a diploma conferring the right of registration under this Act.

(2) The examination shall be held on the subjects prescribed by regulations and the right of appearing at the examination shall be restricted to candidates who have undergone a course of study in such subjects in the prescribed manner at a recognized institution.

[2][(3) The examination shall be held under the control of an examining body to be appointed by the Federal Government after consulting the Council.

(4) The Chairperson of the examination body shall be appointed by the Federal Government.]

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[1]Subs. by the Unani, Ayurvedic and Homoeopathic Practitioners (Amendment) Act, 2021 (LI of 2021), s. 2.
[2]Subs. by the Unani, Ayurvedic and Homoeopathic Practitioners (Amendment) Act, 2002 (LXI of 2002), s. 7.

CHAPTER III

REGISTRATION OF PRACTITIONERS

23. Registration how made.—[1][(1) * * * * * * * *

(2) * * * * * * *]

(3) Applications for registration under this Act shall be made in such form and on payment of such fee as may be prescribed by rules.

(4) The [1][Council] shall examine the applications received under this section and after making such enquiries as it thinks fit regarding the qualifications [1][* * * * * * *] of the applicants and their professional efficiency direct the entry of the names to be made in the register in accordance with the Provisions of this Act.

[1][**24. Registration of Unani, Ayurvedic and Homoeopathic Practitioners.**—(1) Every person who passes the qualifying examination in the Unani, Ayurvedic or Homoeopathic System of medicine from a recognized institution may apply for registration in the respective register.

(2) Every person who is a registered medical practitioner within the meaning of the [4][Medical and Dental Council Ordinance, 1962 (XXXII of 1962)], and has taken to the practice of Homoeopathy may apply for registration as Homoeopath.]

[3][(3) Notwithstanding anything contained in sub-sections (1) and (2), the Federal Government may, if it deems fit after consulting the Council, direct that a degree or diploma in the Unani, Ayurvedic or Homoeopathic System of medicine, as the case may be, granted by any institution in or outside Pakistan shall be recognized on such conditions as it may, by notification in the official Gazette, specify.]

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[1][25. * * * * * * *]

26. * * * * * * *

27. * * * * * * *

28. Removal from register, etc.—The [2][Council] may direct that the name of any practitioner who has been convicted of a cognizable offence or who after due enquiry has been found guilty of misconduct shall be removed from the register or the list [1][* * * *] if the offence or misconduct in the

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[1]Omitted and subs. by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt.), Ordinance, 1978 (XXII of 1978), ss.14-17.
[2]Subs. by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt.), Ordinance, 1982 (XXVII of 1982), s. 5, for "Board".
[3]Added. by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt.), Ordinance, 2002 (IV of 2002), s. 7.

opinion of the [1][Council] discloses moral turpitude such as to render him unfit to practice his profession:

Provided, however, that no action shall be taken by the [1][Council] under this section unless the person convicted of the cognizable offence or found guilty of misconduct has been given a reasonable opportunity to show cause against the punishment proposed to be inflicted on him.

29. Cancellation or alteration of entries in register, etc.—The [1][Council] may on its own motion or on information received from any person and after due enquiry and giving an opportunity to the person concerned of being heard cancel or alter any entry in the register or the list [2][* * * *] if in the opinion of the [1][Council] the entry was made fraudulently or improperly.

CHAPTER IV

POWERS AND DUTIES OF REGISTRAR

30. Maintenance of register, etc.—(1) Subject to any general or special orders of the [1][Council] it shall be the duty of the Registrar to keep the register and the list [2][* * * *] and to attend the meetings of the [1][Council].

(2) The register and the list shall contain the name, residence and qualifications of every practitioner registered or listed under this Act, and the dates on which the qualifications were acquired.

(3) The Registrar shall keep the register and the list correct and up-to-date and shall, from time to time, enter therein any alteration in the address and qualifications of the practitioners, and remove there from the names of the practitioners who die or whose names are directed to be removed in accordance with the provisions of this Act.

(4) The [3][Federal Government] may by rules prescribe any additional fee for any alteration in the register due to additional qualifications.

(5) If the Registrar has reason to believe that any registered practitioner or a person whose name is entered in the list [2][* * * *] has ceased to practice or has changed his permanent address without due intimation to him, he may write by registered post to such practitioner at the address as entered in the register to enquire whether he has ceased to practice or has changed his residence and, if within six months no reply is received, the Registrar may remove the name of such practitioner from the register:

Provided that the [1][Council] may, at any time on the application of the practitioner whose name is removed under this sub-section, order that the name of such practitioner be re-entered in the register.

31. Publication of List.—(1) The Registrar shall, in every [2][fourth] year, on or before a date to be fixed by the [1][Council] cause to be published a correct list of the names and qualifications of all practitioners for the time being entered in the register [2][or the list] and the dates when such qualifications were acquired.

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[1]Subs.by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt.), Ordinance, 1982 (XXVII of 1982) s. 5, for "Board"
[2]Omitted and Subs. by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt.), Ordinance, 1978 (XXII of 1978), ss 18-20.
[3]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".

(2) It shall be presumed that any person entered in such list is a registered practitioner and that any person not so entered is not a registered practitioner.

PART III

GENERAL PROVISIONS

CHAPTER I

RIGHT, DUTIES AND LIABILITIES OF REGISTERED PRACTITIONERS

32. Intimation of change of address.—Every registered practitioner shall inform the Registrar of any change in his permanent address.

33. Privileges of registered practitioners.—(1) Notwithstanding any thing, contained in any law for the time being in force, every [1][registered or listed practitioner] shall be entitled—

(a) to hold any appointment as physician or medical officer in any Unani, Ayurvedic or, as the case may be, Homoeopathic dispensary, hospital, infirmary or lying-in hospital if such dispensary, hospital, infirmary or laying-in hospital is supported by or receives a grant from Government or any local authority and treats patients according to the relevant system of medicine, or in any public establishment, body or institution practicing such system;

(b) to vote for the election of members to the [2][Council];

(c) to recover fees through courts.

(2) No [1][registered or listed practitioner] shall stock, use or sell any drugs or medicines except such as are included in the Unani, Ayurvedic or, as the case may be, Homoeopathic Pharmacopoeia approved by the [3][Federal Government].

(3) A practitioner registered under section 25 shall be entitled to the privileges specified in clauses (b) and (c) of sub-section (1) and be subject to the restriction mentioned in sub-section (2).

[1][(4) A registered or listed practitioner shall abide by the Code of Ethics framed by the [2][Council] with the approval of the Federal Government.]

[1][34. * * * * * * *

35. * * * * * * *]

[1]Subs., added and omitted by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt.), Ordinance, 1978 (XXII of 1978), ss 21-22.
[2]Subs. by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt.), Ordinance, 1982 (XXVII of 1982), s. 5, for "Board".
[3]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".

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CHAPTER-II

OFFENCES, PENALITY AND PROCEDURE

[1][**36. Offences and penalties.**— Whoever contravenes the provisions of sub-section (2) of section 33 shall be punishable with imprisonment for a term which may extend to seven years, or with fine which may extend to one lac rupees, or with both.]

37. Persons not registered under Act not to practice etc.—(1) No person other than a [1][registered or listed practitioner] shall practise or hold himself out, whether directly or by implication, as practicing the Unani, Ayurvedic or, as the case may be , Homoeopathic system of medicine.

(2) No *Tabib*, Vaid or Homoeopath shall—

(a) sign or authenticate a birth certificate [1][or death certificate] required by any law or rule to be signed or authenticated by a duly qualified medical practitioner; or

(b) sign or authenticate a medical or physical fitness certificate [1][or death certificate] required by any law or rule to be signed or authenticated by a duly qualified medical practitioner.

[1][(2A) No Homoeopath shall practise surgery.]

(3) Whoever contravenes the provisions of this section, shall be punishable with imprisonment for a term which may extend to one year, or with fine which may extend to one thousand rupees, or with both.

[1][**37A. Prohibition against calling applications, etc., by un-recognised institutions.**—(1) No institution which is not recognized under section 17 shall call applications, advertise or arrange for admission to such institution for imparting education in the Unani, Ayurvedic or Homoeopathic system of medicine; nor shall such institution advertise or conduct any correspondence course in any such system of medicine.

(2) Whoever contravenes the provisions of sub-section (1) shall be punishable with imprisonment for a term which may extend to seven years, or with fine which may extend to one lac rupees, or with both.]

38. Colourable imitation of degrees.—(1) No person other than a body or institution authorized under this Act shall confer, grant or issue or hold out as entitled to confer, grant or issue a degree, diploma or licence which purports to entitle the holder to practise the Unani, Ayurvedic or Homoeopathic system of medicine, or which is identical with or is a colourable imtimation of any degree, diploma or licence granted by a body or institution so authorized.

(2) Whoever contravenes the provisions of this section shall be punishable with fine which may extend to one thousand rupees, and if the person so contravening is an association, every member of such association who knowingly or willfully authorises or permits the contravention shall be punishable with fine which may extend to one thousand rupees.

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[1]Subs. and Ins. by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt.), Ordinance, 1978 (XXII of 1978), ss 23-25.

39. Prohibition against use of title, description, etc.—(1) No person shall add to his name, title or description any letters or abbreviations which imply or are calculated to the belief that he holds a degree, diploma, licence or certificate as his qualification to practise the Unani, Ayurvedic or Homoeopathic system of medicine, unless he holds such degree, diploma, licence or certificate and such degree, diploma, licence or certificate.—

(i) is recognized by any law for the time being in force in Pakistan or in any part thereof; or

(ii) has been conferred, granted or issued by a body or institution authorized under this Act in this behalf; or

(iii) has been conferred, granted or issued by an authority empowered or recognized as competent by the [2][Federal Government] or the Provincial Government to confer, grant or issue such degree, diploma, licence or certificate.

(2) Notwithstanding anything contained in any other law for the time being in force, no *Tabib* or Vaid shall describe himself as a Doctor but a Homoeopath may use the expression "Homoeopathic Doctor" both the words "Homoeopathic" and "Doctor" having equal prominence.

(3) Whoever contravenes the provisions of this section shall be punishable with imprisonment for a term which [1][shall not be less than one year nor more than five years and also with fine which may extend to twenty thousand rupees].

40. Savings.—Nothing in this Chapter shall apply to any person—

(a) who limits his practice to dentistry ; or

(b) who being a nurse, midwife or health visitor and registered as such under any law for the time being in force, or a dai, attends on a case of labour ; or

(c) who being a technical assistant like *Jarrah* or *Kuhal* attends on a case under the direction and personal guidance of a registered practitioner of the Unani system of medicine.

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41. Cognizance of offences, etc.—(1) No court shall take cognizance of any offence under this Act except on a complaint in writing by an officer empowered in this behalf by the [1][*] Government.

(2) [1][Except as provided in section 36, no] court other than that of a Magistrate of the first class shall try an offence under this Act.

CHAPTER III

SUPERSESSION OF [3][COUNCIL]

42. Supersession of Council.—[1][(1) If at any time it appears to the Federal Government that

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[1]Subs. and omitted by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt.), Ordinance, 1978 (XXII of 1978). ss 26-28.
[2]Subs. by F.A.O. 1975, Art. 2 and Table for "Central Government".
[3]Subs. by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt.), Ordinance, 1982 (XXVII of 1982). S. 5, for "Board".

the [1][Council] has failed to exercise or has exceeded or abused any of the powers conferred upon it by or under this Act, the Federal Government may, if it is satisfied that such failure, excess or abuse has adversely affected the efficient conduct of the affairs of the [1][Council] or the achievement of the objects of this Act, by notification in the official Gazette, supersede the [1][Council] for a period of one year and may, by a like notification, extend the period of supersession for a further period of one year :

Provided that no [1][Council] shall be superseded unless a reasonable opportunity has been given to it to show cause against the supersession].

(2) Upon the supersession of the [1][Council] under sub-section (1)—

(a) the persons holding office as President [2][, Vice-President] and members of the [1][Council] shall cease to hold office ; and

(b) all powers and functions of the [1][Council] shall, during the period of supersession, be exercised and performed by such person or authority as the [3][Federal Government] may appoint in this behalf, as if such person or authority were the [1][Council].

(3) The [1][Council] shall be reconstituted in accordance with the provisions of this Act for the exercise and performance of its powers and functions on the expiry of the period specified in the notification under sub-section (1).

CHAPTER-IV

MISCELLANEOUS

43. Fees received by Council.—[4][(1)] All moneys received by the [1][Council] as fees shall be applied for the purpose of the [1][Council] in accordance with the rules made under this Act.

[4][(2) The accounts of the Council shall be maintained in such form and manner as the Auditor-General of Pakistan may prescribe.

(3) The accounts of the Council shall be audited by one or more auditors appointed by the Federal Government in consultation with Auditor-General of Pakistan.]

[2][**44. Death of registered practitioners.**—For the purpose of securing information relating to the death of a registered or listed practitioner, the [1][Council] may appoint an honorary. Registrar of Deaths in each district and regulate his functions and terms of appointment.]

45. Indemnity.—No suit, prosecution or other legal proceeding shall be instituted against any person for anything which is in good faith done or intended to be done under this Act or the rules or regulations made thereunder.

46. Power to make rules.—(1) The [3][Federal Government] may, after consulting the [1][Council], by notification in the official Gazette, make rules[5] to carry out the purposes of this Act.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

(a) the time and place at which and the manner in which elections shall be held ;

(b) the manner in which vacancies shall be filled ;

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[1]Subs. by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt.), Ordinance, 1982 (XXVII of 1982), s. 5, for "Board".
[2]Ins. and subs. by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt.), Ordinance, 1978 (XXII of 1978) ss 28-29.
[3]Subs. by F.A.O., 1975, Art. 2 nad Table, for "Central Government".
[4]Numbered and added by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt.), Ordinance, 2002 (LXI of 2002), s. 8.
[5]For such rules, see Gaz. of p., 1965, EXT., pp. 1445-1450.

(c) the form of the list and register and the particulars to be entered therein ;

(d) fees chargeable for the registration, alteration in the register regarding additional qualifications and alteration of other entries in the register ;

[1][(e) fees chargeable from institutions applying for recognition under this Act ;

(f) the registration with the [2][Council] concerned of students admitted to recognised institutions and the fees chargeable for such registration ;

(g) fees chargeable for admission to examinations or tests held under any provision of this Act ;

(h) the purposes for which the fees received by the [2][Council] shall be applied[5][; and]]

[5][(i) fee chargeable for renewal of registration.]

47. Power to make regulations.—The [2][Council] may, with the previous approval in writing of the [3][Federal Government], make regulations not inconsistent with this Act or the rules made thereunder for the following matters, namely :—

(a) courses of study for training and qualifying examinations ;

(b) languages in which examinations shall be conducted and instruction given ;

(c) admission of students to recognized institutions ;

(d) the conditions under which candidates shall be admitted to different courses and the qualifying and other examinations ;

(e) the conditions of appointment of examiners and the conduct of examinations ;

(f) the conditions for the appointment of teachers in recognized institutions [4][and the qualifications of the principals and teachers thereof] ;

(g) the requirements for the recognition of teaching institutions ;

(h) the time and place at which the [2][Council] shall hold its meetings ;

(i) such other matters as may be necessary for the exercise of powers and performance of functions to be exercised or performed by the [2][Council] under this Act and the rules made thereunder.

[6][**48. Policy issues relating to the affairs of the Council.**—In the discharge of its function, the Council shall be guided on questions of policy by the instructions, if any, as may be given to it, from time to time, by the Federal Government which shall be the sole judge as to whether a question is a question of policy.]

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[1]Subs. by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt.), Act, 1968 (X of 1968) s. 3.
[2]Subs. by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt.), Ordinance, 1982 (XXVII of 1982), s. 5. for "Board".
[3]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[4]Added by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt.), Ordinance, 1978 (XXII of 1978), s. 30.
[5]Subs. by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt.), Act, 2002 (IV of 2002) s. 8.
[6]Added by the Unani, Ayurvedic and Homoeopathic Practitioners (Amdt.), Act, 2002 (LXI of 2002) s. 9.

THE PUBLIC HEALTH (EMERGENCY PROVISIONS) ORDINANCE, 1944

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THE PUBLIC HEALTH (EMERGENCY PROVISIONS) ORDINANCE, 1944.

ORDINANCE No. XXI OF 1944

[*20th May, 1944*]

An Ordinance to make special provisions in regard to public health.

WHEREAS an emergency has arisen which renders it necessary to make special provision for preventing the spread of human disease, safeguarding the public health and providing and maintaining adequate medical services and other services essential to the health of the community;

Now, THEREFORE, in exercise of the powers conferred by section 72 of the Government of India Act (26) Geo 5,c. 2.), as set out in the Ninth Schedule to the Government of India Act, 1935, the Governor General is pleased to make and promulgate the following Ordinance :—

1. Short title, extent and commencement.—(1) This Ordinance may be called the Public Health (Emergency Provisions) Ordinance, 1944.

[1][(2) It extends to the whole of Pakistan].

(3) It shall come into force at once.

2. Definitions. In this Ordinance, unless there is anything repugnant in the subject or context, —

(*a*) "appropriate Government" means in relation to cantonment authorities and to port authorities in major ports, the [3][Federal Government], and in relation to all other local authorities, the Provincial Government;

(*b*) "local area" means the area within which a local authority exercises its functions ;

(*c*) "local authority" in this section and sections 7 to 10 and 14 includes, any body, whether incorporated or not, engaged in providing a supply of water;

(*d*) "medical establishment" means establishment employed in connection with the provision of medical services;

(*e*) "public health services" and "public health establishment" include respectively sanitary, water-supply, vaccination, sewage disposal, drainage and conservancy services and establishment maintained for the purposes of such services, and any other service or establishment of a local authority which the appropriate Government may by notification in the official Gazette declare to be a public health service or public health establishment for any purpose of this Ordinance;

(*f*) "purpose of this Ordinance" includes the purposes of ensuring the provision of adequate medical services, of preventing the spread of human disease, of safeguarding the public health and of providing or maintaining services essential to the health of the community.

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[1]Subs. by the Central Laws (Statute Reform) Ordinance No XX1 of 1960, s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*).
[2]Subs. by F.A.O., 1975, Art.2 and Table.

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3. Power to require local authorities to take health measures.—(1) The appropriate Government may by order in writing require any local authority to take within such period as may be specified in the order such measures as may be so specified, being measures which are in the opinion of that Government necessary for any purpose of this Ordinance; and thereupon it shall be the duty of the local authority to comply with the order within the specified period.

(2) If in the opinion of the appropriate Government a local authority which has been ordered under sub-section (1) to take any measures has failed to take, or is unlikely to complete, such measures within the period specified in the order, the appropriate Government may, without prejudice to any other action which may be taken under this Ordinance, authorise any person to take or complete, as the case may be, the said measures; and the person so authorised may for the purpose exercise all or any of the powers of the local authority or of any committee or officer of the local authority conferred by or under any law for the time being in force, issue such directions as he thinks fit to the officers or servants of the local authority, and if he finds it necessary or expedient so to do, employ any outside agency.

(3) All charges and expenses incurred by a local authority in complying with an order under sub-section (1) or by a person authorised under sub-section (2) shall, except to such extent, if any, as the appropriate Government may direct to be paid out of its revenues, be paid out of the funds of the local authority.

4. Powers to appoint additional health staff.—(1) The appropriate Government may, it if considers it necessary for any purpose of this Ordinance, appoint in any local area additional medical or public health establishment to perform such duties and exercise such functions as the appropriate Government may direct.

(2) Such additional establishment shall, unless and to such extent as the appropriate Government otherwise directs, be under the control of the appropriate Government, but its salaries and allowances or any specified portion thereof shall, if the appropriate Government so orders, be paid out of the funds of the local authority.

5. Power of superintendence.—(1) The appropriate Government may, if it considers it necessary for any purpose of this Ordinance, by order in writing assume the superintendence of all or any of the medical and public health services of any local authority.

(2) Upon the assumption of superintendence under sub-section (1),—

(a) the appropriate Government may by order in writing specify the scale of the medical or public health establishment concerned to be maintained by the local authority, the qualifications to be required for appointment to posts in such establishment, and the pay and other conditions of service of such establishment;

(b) the powers of appointment, dismissal and punishment of, and grant of leave to, members of such establishment shall vest in such authority as the appropriate Government may appoint in this behalf;

(c) the appropriate Government may by order in writing specify the powers to be exercised by Health Officers employed under the local authority;

(d) the appropriate Government shall have power to inspect, superintend and control the operations of the local authority in regard to any purpose of this Ordinance, and may by order in writing authorise persons to carry out such inspection, superintendence and control and define their powers and duties when so acting;

(e) the costs of and incidental to the services and establishments concerned shall continue to be paid out of the funds of the local authority.

6. Power to take over administration of services. The appropriate Government may, if it considers it necessary for any purpose of this Ordinance, authorise by order in writing any person to take over from any local authority the administration of all or any of its medical and public health services or of any medical institution maintained by the local authority; and the person so authorised may for the purposes of such administration exercise all the powers specified in sub-section (2) of section 3 of a person authorised under that sub-section; and all charges and expenses incurred by the person authorised under this section shall, except to such extent, if any, as the appropriate Government may direct to be paid out of its revenues, be paid out of the funds of the local authority.

7. Water supply.—(1) A local authority may, with the previous sanction of the appropriate Government, supply water to any other local authority or to any other authority or person within or without its local area upon such terms as may be agreed, notwithstanding any provision prohibiting or restricting such supply contained in any other law.

(2) The appropriate Government may by order in writing direct any local authority to supply water to any area or to any authority or person within or without its local area at such places and in such quantities as may be specified in the order, subject to such payment being made therefore and to such other conditions as the appropriate Government may consider reasonable.

8. Power to give directions. For the purpose of carrying into effect any of the foregoing provisions of this Ordinance or any order made thereunder, the appropriate Government may in writing give to any local authority such directions as it thinks fit, and it shall be the duty of the local authority to comply therewith.

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9. Power to supersede local authorities.—(1) If the appropriate Government is of opinion that any local authority has failed to comply, or has delayed in complying, with any order or rule made or direction given under this Ordinance or has failed to act in accordance with or give effect to any notification issued under section 10, the appropriate Government may by order in writing supersede the local authority for such period as may be specified in the order.

(2) When an order of supersession has been made under sub-section (1),—

(a) all the members of the local authority shall, as from the date of supersession, vacate their offices as such members;

(b) all the powers and duties which may by or under any law for the time being in force be exercised or performed by or on behalf of the local authority shall, during the period of supersession, be exercised and performed by such person as the appropriate Government may authorise in this behalf;

(c) all property vested in the local authority shall, during the period of supersession, vest in the appropriate Government.

(3) On the expiration of the period of supersession specified in the order under sub-section (1), the appropriate Government may by order in writing,—

(a) extend the period for such further term as it may consider necessary; or

(b) direct that the local authority shall be reconstituted in the manner provided for its constitution by or under the law relating thereto, and in such case any persons who vacated their offices under clause *(a)* of sub-section (2) shall not be deemed to be disqualified thereby for election, appointment or nomination; or

(c) direct that the local authority shall be reconstituted by the persons who vacated their offices under clause *(a)* of sub-section (2) and shall recommence functioning as if it had not been superseded:

Provided that the appropriate Government may at any time before the expiration of the period of supersession whether as originally specified under sub-section (1) or as extended under this sub-section, make an order under clause *(b)* or clause *(c)* of this sub-section.

10. Power to modify rules, bye-laws, etc. In relation to any local area the appropriate Government may by notification in the official Gazette make any rules, bye-laws, regulations or orders connected with any purpose of this Ordinance which the local authority would under any law for the time being in force be competent to make, and may in like manner amend or suspend the operation of any such rule, bye-law, regulation or order made by the local authority:

Provided that, notwithstanding anything to the contrary in any other law, it shall not be necessary when issuing any such notification to comply with the provisions of section 23 of the General Clauses Act, 1897 (X of 1897) or the similar provisions of any local law or with any law providing for any procedure preliminary to the making of any such rule, bye-law, regulation or order:

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Provided further that it shall be sufficient for the purpose of—

(a) cancelling any rule, bye-law, regulation or order made by the appropriate Government by notification under this section, or

(b) restoring to its form immediately prior to its amendment by notification under this section any rule, bye-law, regulation or order so amended,

to rescind the notification.

11. Power to make rules.—(1) The appropriate Government may make rules for carrying out the purposes of this Ordinance, and in particular and without prejudice to the generality of the foregoing power, such rules may—

(a) prescribe any disease against the spread of which special precautions are considered by the appropriate Government to be necessary;

(b) prohibit any act which in the opinion of the appropriate Government is likely to lead to or facilitate the spread of any disease prescribed under clause *(a)*;

(c) provide for the restraint, segregation and restriction of movement of persons suffering or suspected to be suffering from any such disease;

(d) provide for the temporary transfer of members of the medical and public health establishments of any local authority to service in another local area under the appropriate Government or another local authority.

(2) In making rules under this section, the appropriate Government may provide that a breach of any of the rules shall be punishable with imprisonment which may extend to three months or with fine or with both.

12. Certain persons deemed to be public servants. All persons authorised under sub-section (2) of section 3, clause *(d)* of sub-section (2) of section 5, section 6 or clause *(b)* of sub-section (2) of section 9 shall be deemed to be public servants within the meaning of the Pakistan Penal Code (XLV of 1860).

13. Protection of action taken under this Ordinance. No suit, prosecution or other legal proceeding shall lie against any person for anything in good faith done or intended to be done under this Ordinance.

14. Effect of other laws. The provisions of this Ordinance and of any rules and orders made thereunder shall have effect notwithstanding anything contained in any law defining the powers, duties or obligations of a local authority.

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The Pakistan Veterinary Medical Council Act 1996.

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The Pakistan Veterinary Medical Council Act 1996.

ACT No. III OF 1996

An act to constitute the Veterinary Medical Council in Pakistan.

Whereas it is expedient to regulate the registration, practice and conduct of the veterans to establish uniform standards of basic and higher qualifications in veterinary medicine and surgery and to constitute a Pakistan Veterinary Medical Council:

It is hereby enacted as follow:—

1. Short title, extent and commencement:—(1) This Act may be called the Pakistan Veterinary Medical Council Act 1996.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. **Definition:**— In this Act unless there is anything repugnant in the subject or context.—

(a) "Council" means the Pakistan Veterinary Medical Council constituted under this Act;

(b) "Member" means a member of the Council;

(c) "Register" means the register of veterinary practitioners maintained under section 16;

(d) "Regulation" means regulations made under section 23;

(e) "Prescribed" means prescribed by regulations;

(f) "Veterinary Medicine" means modern scientific medicine and includes surgery and obstetrics, as applicable to animals but does not include human medicine and surgery; and

(g) "Veterinary" means animal health and production.

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3. Composition and incorporation of the Council:—(1) There shall be constituted in accordance with the provision of this Act a Council to be known as the Pakistan Veterinary Medical Council.

(2) The Council shall be a body corporate having perpetual succession and a common seal with powers to acquire, hold and dispose of property and enter into contract and shall be its name sue or be used.

(3) The Council shall consist of:—

(a) one member from each Province to be nominated by the Provincial Government;

(b) one member each to be nominated by the Vice Chancellor of each University from among the members of the Veterinary and the Animal Husbandry Faculty of the University;

(c) four members to be elected from among themselves by the Central Executive Committee of Pakistan Veterinary Medical Association, a society registered under the Societies Registration Act, 1860 (XXI of 1860);

(d) four members to be nominated by the Federal Government of whom at least one shall be member of the Remount Veterinary and Farms Corps;

(e) one member each to be nominated by the Head of each Veterinary Institution in Pakistan which trains for a recognized veterinary qualification form among its teaching staff; and

(f) Animal Husbandry commissioner, Livestock Division, Government of Pakistan.

(4) No person shall be qualified to be elected or nominated as a member of the Council unless:—

(i) he is registered with the council; and

(ii) he possesses a recognized veterinary qualification obtained not less than five years before his election or nomination:

Provided that qualification at (i) above shall not apply to a person to be elected or nominated for the first Council, but such person shall get himself registered with the Council within six months of its constitution.

(5) The headquarters of the council shall be at such place as the Council may determine.

4. Terms of office of member of Council:—(1) A member shall hold office for a term of four years, but shall be eligible to be re-elected or re-nominated.

(2) When the term of office of a member is about to expire, his successor shall be elected for nominated, as the case may be, any time within three months before the term expires, but he shall assume office only after expiry of the term of incumbent.

(3) A member may, at any time, resign his office by tendering his registration in writing to the President of the council.

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(4) A casual vacancy in the office of member shall be filled in through election or nomination, as the case may be, within three months of the occurrence of the vacancy.

(5) A member elected or nominated to fill a casual vacancy shall hold office the full term of four years.

(6) A member shall cease to hold office, and his office shall be declared vacant, if he fails to attend three consecutive meetings of the Council.

5. President and Vice President:—(1) The Council shall have a President and a Vice President to be elected by the members from among themselves.

(2) The President and Vice President shall hold office for a term of four years.

6. Executive Committee:—(1) There shall be an Executive Committee of the Council which shall consist of the President, the Vice-President and five members to be elected by the council from among its members.

(2) In addition to the powers and duties conferred and imposed upon it by this Act, the Executive Committee shall exercise such powers and discharge such duties as may be prescribed.

(3) In addition to the Executive Committee, the Council may constitute such other committees for general or special purposes as it may deem necessary to carry out the purposes of this Act.

7. Officers and Servants of the Council:—(1) The Council may appoint such officers and servants, as it may deem necessary to carry out the purposes of the Act.

(2) All persons appointed or employed by the Council shall be deemed to be public servants within the meaning of section 21 of the Pakistan Penal Code (XLV of 1860).

8. Terms and conditions of the officers, etc. of the Council:—The Council may with the previous sanction of the Federal Government fix the remuneration and allowances to be paid to the President, the Vice President, members and officers and servants of the Council.

9. Recognition of Veterinary and Animal Husbandry qualifications granted by Veterinary Institutions in Pakistan:—(1) The qualifications granted by Veterinary Institutions in Pakistan which are included in the first Schedule shall be recognized Veterinary and Animal Husbandry qualifications for the purpose of this Act.

(2) Any veterinary institution in Pakistan which grants a veterinary qualification not included in the First Schedule may apply to the Federal Government to have such qualification recognized, and the Federal Government after consulting the Council by notification in the official Gazette amend the First Schedule so as to include such qualification therein.

(3) The notification referred to in sub-section (2) may also direct that an entry shall be made in the last column of the First Schedule against the veterinary qualification declaring that it shall be a recognized qualification only when granted after a specified date.

10. Non Pakistan veterinary qualifications in Second Schedule to be recognized:—The veterinary qualification granted by veterinary institutions outside Pakistan which are included in the Second Schedule shall be recognized veterinary qualifications for the proposes of this Act.

11. Arrangement for modifying the Second Schedule:—(1) At any time the Council may enter into negotiations with the appropriate authority in any State or Country outside Pakistan for the settling of a scheme of reciprocity for the recognition of veterinary qualifications and in pursuance of any such scheme, the Federal Government may by notification in official Gazette amend the Second Schedule so as to include therein any veterinary qualification which the Council has decided to recognize.

(2) The notification referred to in sub-section (1) may also direct that an entry shall be made in the last column of the Second Schedule against the veterinary qualification declaring that it shall be recognized qualification only when granted after a specified date.

(3) The Federal Government, after consultation with the Council, may, by notification in the official Gazette, amend the Second Schedule by directing that an entry be made therein in respect of

any veterinary qualification, declaring that it shall be a recognized qualification only when granted before a specified date.

(4) Where the Council has refused to recognize any veterinary qualification which has been proposed for recognition by any such authority that authority may apply to the Federal Government, and the Federal Government after considering such application and the Council's reason for such refusal may, by notification in the official Gazette amend the Second Schedule so as to module such qualification therein and the provisions of sub-section (2) shall apply to such notification.

(5) The Federal Government, after consulting the Council, may, if it thinks fit direct that a veterinary qualification granted by an institution in a State or Country outside Pakistan shall be a recognized qualification for such period and subject to such conditions as may be specified in the direction, as it were mentioned, in the Second Schedule notwithstanding that a reciprocal scheme of recognition has not been entered into between the Council and the appropriate authority in that State or Country as in referred to in sub-section (1).

12. Power of the Council to certify certain persons to be possessed to sufficient qualifications:—If the Council is satisfied that a person is, by reason of qualification granted by a veterinary institution outside Pakistan, not included in the Second Schedule, and of experience gained in any part of Pakistan, possessed of qualifications which entitle him to be recognized as possessed of sufficient veterinary qualification for the purposes of this Act, it may, with the approval of the Federal Government certify that the person is possessed of such qualification; and, on such certification by the Council, the person shall be deemed to be possessed of recognized qualification for such period and subject to such condition as may be specified by the Council in this behalf.

13. Power to require information as to courses of study and examination:—Every veterinary institution in Pakistan which train for, or grants, or both trains for and grants a recognized veterinary qualification shall furnished such information as the Council may, for time to time, require as to:—

(a) the courses of the study and examination to be undergone in order to obtain such qualification;

(b) the minimum age at which such courses of study can be undertaken on admission in the institution;

(c) examination required to be undergone prior to such qualifications being conferred, and

(d) generally as to the requisites for obtaining such qualification.

14. Inspection of examination:—(1) The Executive Committee shall appoint such number of inspectors as it may deem necessary:—

(a) to attend at any or all of the examinations held by veterinary institutions in Pakistan for the purpose of granting recognized qualifications or in respect of which recognition has been sought; and

(b) to look into research projects and technical facilities available at any veterinary institution of Pakistan for evaluating any short falls or deficiencies and assessing the requirements of such institutions in terms of expertise and equipments.

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(2) The inspector appointed under this section shall not interface with the conduct of any examination of research studies, but he shall report to the Executive Committee on the sufficiency of the examination of the research proper which he attends and on the courses of study and facilities of teaching and research provided by the institution at different stages in respect of such examination research and on and other matters in regard to which the Executive Committee may require them to report.

(3) The Executive Committee shall forward a copy of any such report to the institution concerned and shall also forward a copy with the remarks of such institution thereon, to the Federal Government.

15. Withdrawal of recognition:—(1) When upon report of the Executive Committee it appears to the Council that the courses of study and examinations to be gone through in any veterinary institution in Pakistan in order to obtain a recognized veterinary qualification or that the standard of proficiency required from candidates at any examination held for the purpose of granting such qualification or standard of research studies and facilities is not such as to secure to persons holding such qualifications the knowledge and skill requisite for the efficient practice of veterinary medicine or to contribute to the advancement of veterinary medicine, the Council shall make a representation to that effect to the Federal Government.

(2) After considering such representation, the Federal Government shall forward it, alongwith such remarks as it may choose to make to the concerned institution with an intimation of period within which the institution may submit its explanation to the Federal Government.

(3) On the receipt of the explanation or where no explanation is submitted within the specified period the Federal Government may after making such further inquiry, if any, as it may think fit direct that the measures necessary to bring the teaching and research upto the required standard be taken or an entry shall be made in the appropriate Schedule against the concerned institution declaring that any qualification granted by such institution after the specified date shall not be recognized.

16. Maintenance of register:—(1) The Council shall maintain in the prescribe manner a register in which shall be entered the names and other particulars of persons possessing recognized veterinary qualifications whose applications for registration as veterinarian are from time to time granted by the Council.

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(2) Every application for registration under this Act shall be made to the Council in the prescribed from and be accompanied by the prescribed fee.

(3) Every veterinarian registered under this Act shall be entitled to receive a certificate of registration from the Council.

(4) A certificate of registration issued under sub-section (3) shall, subject to the provisions of this Act, remain in force until the thirty first day of December of the year in which it is issued and shall thereafter be renewable annually upon payment of the prescribed fee.

17. Register to be public document:—The register maintained under section 16 shall be deemed to be a public record within the meaning of the *Qanoon-e- Shahadat*, 1984 (P.O. No. 10 of 1984).

18. Penalty for fraudulent representation or registration:—(1) Whoever will fully procures or attempts to procure himself to be registered under this Act by making or producing or

causing to be made or produced any false or fraudulent representation or declaration either orally on in writing, and any person who assists him therein, shall be guilty of an offence punishable with fine which may extend to five thousand rupees or with imprisonment for a term which may extend to six months, or with both.

(2) Whoever falsely pretends to be registered under this Act as a veterinary practitioner, not being registered under this Act, uses with his name or title any words or letters representing that he is so registered, irrespective of whether any person is actually deceived by such pretence or representation or not shall be guilty of an offence punishable with fine which may extend to five thousand rupees or with imprisonment for a term with may extend to six months, or with both.

19. Privileges of registered members:—(1) Notwithstanding anything to the contrary contained in any other law for the time being in force no person other than a registered veterinary practitioner shall hold any veterinary position in private or public sector.

(2) Note understanding anything to the contrary contained in any other law for the time being in force, not certificate required to be obtained from a veterinary practitioner shall be valid unless in issued by a person who is registered with the Council.

(3) No person shall be entitled to recover any charge in any count of law for any vetro-legal advice or attendance, or for the performance of any oration, or for any medicine prescribed or supplied unless he is a registered veterinary practitioner.

20. Responsibility of a registered person:—Every person registered under this Act shall notify any transfer of the place of his residence, employment or practice to the Council with thirty day of such transfer.

21 Prohibition against use of unregistered veterinary qualification:— No person shall use or publish with his name any title, abbreviate description or symbol, indicating or calculated to lead people to infer that possess any veterinary qualification unless the same is recognized and conferred upon him under this Act.

22. Removal of names from the register:—(1) The Council in its discretion may refuse to permit the registration of any person or direct the removal altogether or for a specified period from the register the name of any registered person who has been convicted of any such offence as implies in the opinion of the Council a defer of character, or has been held by the Council as guilty of infamous conduct in any professional respect, or who has become incapable to practice veterinary medicine by reason of physical or mental incapacity.

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Provided that no action shall be taken under this sub section, unless such person has been provided an opportunity of being heard.

(2) The Council may direct that the name of any person removed from the register under sub-section (1) shall be restored.

(3) For the purpose of an inquiry under sub-section (1) the Council shall be deemed to be a Court within the meaning of the *Qanoon-e-Shahdat*, 1984 (P.O. No. 10 of 1984) and shall exercise al the powers of a Civil Court for summoning the witnesses, for compelling the production of documents and for issuing commissions.

23. Power to make regulation:— The Council may, with the previous sanction of the Federal Government, make regulation generally to carry out the purposes of this Act, and without prejudice to the generality of this power such regulations may provide for:—

(a) the management of the property of the Council and the maintenance and audit of its accounts;

(b) the summoning and holding of the meetings of the Council, the time and places where such meeting are to be held, the conduct of the business there at and the number of members necessary to constitute a quorum;

(c) the powers and duties of the President and Vice-President;

(d) the mode of the appointment of the Executive Committee and other committees, the summoning and holding of the meetings, and the conduct of the business of such committees;

(e) the tenure of the office and duties of the officers and servants of the Council;

(f) the appointment, powers, duties and procedures of inspector;

(g) the procedure of maintenance, compilation and publication of the register and, if necessary, for opening of sub-offices or branches for this purpose;

(h) the procedure of inquires under this Act;

(i) prescribing a uniform minimum standard courses of training for obtaining graduate and post-graduate qualifications included in the First Schedule.

(j) prescribing minimum requirements for the content and duration of the courses of study as aforesaid;

(k) prescribing the conditions for admission to courses of training as aforesaid;

(l) prescribing minimum qualifications and experience require of teachers, researchers for appointment in professional institutions;

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(m) prescribing the standards of examinations, methods of conducting the examinations and other requirements to be satisfied for securing recognition of qualification under this Act;

(n) prescribing the qualifications and experiences required of examiners for the examinations antecedent to the granting of recognized qualifications;

(o) registration of students at any professional institution, college or any university and the fee payable in respect of such registration, and

(p) any matter for which under this Act provision may be made by registration.

24. Information to be furnished by the Council and publication thereof:—(1) The Council shall furnish such reports, copies of its minutes, abstract of its accounts, and other information to the Federal Government as it may require.

(2) The Federal Government may publish in such manner as it may think if any, report, copy, abstract, or other information furnished to it under this Act.

25. Commission of inquiry:— (1) Whenever it is made to appear to the Federal Government that the Council is not complying with any of the provisions of this Act, the Federal Government may refer the particulars of the complaint to a Commission of inquiry consisting of three persons of whom appointed by the Federal Government, one being a Judge of Court and the Council; and sub commission shall proceed to inquire in manner report to the Federal Government as to the charge of default or proper acting found by the Commission to have been established, the commission shall recommend the remedies, if any, which are in opinion necessary.

(2) The Federal Government may require the Council to adopt the remedies so recommended within such time as, having regard to the report of the Commission, it may think fit; and if Council fails to comply with any such requirements, the Federal Government may amend the Regulations of the Council, or, make such provision or take such other steps as may seem necessary to give effect to the recommendations of the Commission.

(3) A Commission of inquiry shall have power to administer oaths, enforce the attendance of witnesses and the production of documents, and shall have all such other necessary powers for the purpose of any inquiry conducted by it as are exercised by a Civil Court under the Code of Civil Procedure, 1908 (Act V of 1908).

FIRST SCHEDULE

(*See Section* 9)

RECOGNIZED VETERINARY QUALIFICATION GRANTED BY THE VETERINARY INSTITUTIONS IN PAKISTAN

S.#	Institutions	Recognized Qualification	Abbrevation For Registration
1	College of Veterinary Sciences, Lahore	Bachelor of Veterinary Sciences.	B. V. Sc.
		Bachelor of Science (Animal Husbandry.)	B. Sc. (A.H.)
		Bachelor of Veterinary Science and Bachelor of Animal Husbandry.	B. Sc., B. Sc. (A.H.)
		Doctor of Veterinary Medicine	D. V. M.
		Master of Science.	M. Sc.
		Master of Science (Hons).	M. Sc. (Hons).
		Doctor of Philosophy.	Ph. D.
2	University of Agriculture, Faisalabad. (i) Faculty of Veterinary Sciences	Doctor of Veterinary Medicine.	D.V.M
		Master of Science.	M. Sc.
		Master of Science (Hons).	M. Sc. (Hons).
	(ii) Faculty of Animal Husbandry	Bachelor of Science (Hons). Animal Husbandry.	B. Sc. (Hons). A. H.
		Master of Science.	M. Sc.
		Master of Science (Hons).	M. Sc. (Hons).
		Doctor of Philosophy.	Ph. D.

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3	Sindh Agriculture, University, Tandojam Faculty of Animal Husbandry and Veterinary Sciences	Doctor of Veterinary Medicine.	D. V. M.
		Master of Science.	M. Sc.
		Master of Science (Hons).	M. Sc. (Hons).
		Doctor of Philosophy.	Ph. D.
4	Quaid-e-Azam University, Islamabad.	Master of Science (Hons.)	M. Sc. (Hons).
		Master of Philosophy.	M. Phil.
5	NWFP Agricultural University, Peshawar	Master of Science (Hons) Animal Husbandry.	M. Sc. (Hons) A. H.
6	Jinnah Post-graduate Medical Centre, Karachi	Master of Philosophy.	M. Phil

SECOND SCHEDULE

(*See Section* 10)

RECOGNIZED VETERINARY QUALIFICATION GRANTED BY THE VETERINARY INSTITUTIONS ABROAD

S.#	Institutions	Recognized Qualification	Abbreviation For Registration
1.	All state Universities of America, Australia and Provincial University Canada	Doctor of Veterinary Medicine	D.V.M
		Master of Sciences in Animal Health.	MS (A.H.)
		Master of Animal Sciences	M.S. (A.S.)
		Doctor of Philosophy in Animal Health.	Ph.D. (A.H.)
		Doctor of Philosophy in Animal Sciences.	Ph.D. (A.S.)
2.	The College of Veterinary surgeons, London	Master of Science in Animal Health.	M. Sc. (A.H)
		Member of Royal College of Surgeon.	M.R.C.V.S
		Fellow Royal College of Veterinary Surgeon	F.R.C.V.S
3.	Edinburgh University Centre of Tropical Veterinary Medicine	Master of Science in Tropical Animal Health.	M. Sc. (T.A.H.)
		Diploma in Tropical Animal Health.	D.T.A.H.
4.	James Cook University, Department of Tropical Veterinary Science Townsvillce, Australia.	Master of Science in Tropical Veterinary Science.	M. Sc. (T.V.Sc)
5.	Facility of Veterinary Science University of Agriculture, UPSSALA, Sweden.	Fellow Royal College of Veterinary Surgeons.	M. Sc. (T.A.H) F.R.C.V.S.

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THE PAKISTAN MEDICAL AND DENTAL COUNCIL ORDINANCE, 1962

Last Amended on 2012-08-13

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THE [1][PAKISTAN] MEDICAL AND DENTAL COUNCIL ORDINANCE 1962.

ORDINANCE NO. XXXII OF 1962

[5th June, 1962]

An Ordinance to reconstitute the [2][Medical and Dental Council] in Pakistan

WHEREAS it is expedient to consolidate the law relating to the registration of medical practitioners and dentists and reconstitute the [2][Medical and Dental Council] in Pakistan in order to establish a uniform minimum standard of basic and higher qualifications in medicine and dentistry ;

NOW, THEREFORE, in pursuance of the Proclamation of the seventh day of October, 1958, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance :-

1. Short title, extent and commencement.- [3][(1) This Ordinance may be called the [4][Pakistan] Medical and Dental Council Ordinance, 1962.].

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

[4]["2. **Definitions.—**In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "approved hospital or institution" means a hospital or an institution included in the Sixth Schedule;

(b) "Council" means the Pakistan Medical and Dental Council constituted under this Ordinance;

(c) "continuous professional development" means skill enhancement and improvement in personal and professional competence which may—

(i) comprise lectures, seminars, courses, individual study or other activities undertaken by a registered medical or dental practitioner;

(ii) reasonably be expected to advance a registered medical or dental practitioner's development in his related profession; and

(iii) is relevant to the practice of registered medical or dental practitioner;

(d) "committee" means any committee constituted under this Ordinance and includes Executive Committee constituted under Section 10;

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[1]Ins. by Act No. XIX of 2012, s. 2.
[2]Subs. by the Federal LAws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch, II, for "Medical Council".
[3]Subs. by the Medical Council (Amdt.) Act, 1973 (10 of 1973), s. 2, for sub-section (1).
[4]Ins. and Subs. by Act No. XIX of 2012, ss. 2 and 3.

(e) "continuous professional development opportunity provider" means an organization providing continuous professional development opportunities and included in the Seventh Schedule;

(f) "dental institution" means any institution, recognized under this Ordinance, within or outside Pakistan, which trains for, or grants, or both trains for and grants, degrees or diplomas in dentistry;

(g) "house job or foundation year or internship" means hands on training in clinical subjects on a rotational basis in an approved hospital or institution after provisional registration as a prerequisite for full registration under Section 23;

(h) "medical institution" means any institution recognized under this Ordinance, within or outside Pakistan, which trains for, or grants, or both trains for and grants, degrees or diplomas in medicine;

(i) "medicine" means modern scientific medicine and includes surgery and other disciplines, but does not includes veterinary medicine and surgery;

(j) "Pakistan university" means any university established under a Pakistan law and having a constituent medical or dental college or both;

(k) "President" means President of the Council;

(l) "prescribed" means prescribed by regulations;

(m) "recognized medical qualification" means any basic medical qualification included in the First Schedule;

(n) "recognized dental qualification" means any basic dental qualification included in the Fifth Schedule;

(o) "recognized additional medical or dental qualification" means any additional medical or dental qualification included in the Third Schedule;

(p) "Register" means the Register of medical practitioners maintained under Section 23 or the Register of dental practitioners maintained under Section 26;

(q) "registered medical practitioner" means a medical practitioner whose name is included in the Register maintained under Section 23;

(r) "registered dental practitioner" means a dental practitioner whose name is included in the Register maintained under Section 26;

(s) "regulations" mean regulations made under Section 33;

(t) "registerable qualifications" mean medical or dental qualifications recognized under Sections 11,15, 16, 18 and 19; and

(u) "specialists boards" mean recognized specialist boards included in the Eighth Schedule.".]

[1]**[3. Constitution and composition of the Council.—**(1) The Federal Government shall, by notification in the official Gazette, cause to be constituted a Council consisting of the following members, namely:—

(a) one member each from the Senate and the National Assembly to be nominated by the Chairman or, as the case may be, the Speaker from amongst the members of the respective House;

(b) Secretary, Health Department of each Province;

(c) one member each to be elected by the members of the Syndicate of each public sector Pakistan university from amongst the members of its medical faculty and denial faculty of all its constituent as well as affiliated colleges from each Province, Gilgit-Baltistan, Federally Administered Tribal Areas (FATA) and Islamabad Capital Territory;

(d) one member each to be elected by the members of the Syndicate of each private sector Pakistan university from amongst the members of its medical faculty and the dental faculty of all its constituent as well as affiliated colleges from each Province, Gilgit-Baltistan, FATA and Islamabad Capital Territory;

(e) one member from each Province, Gilgit-Baltistan, FATA and Islamabad Capital Territory to be elected amongst themselves by the registered medical practitioners;

(f) four members to be nominated by the Federal Government of whom one shall be Surgeon General of the Armed Forces Medical Services;

(g) one member to be elected from amongst themselves by the registered dentists from each Province, Gilgit-Baltistan, FATA and Islamabad Capital Territory;

(h) one member to be elected from amongst the Professors of the teaching staff of the public sector medical colleges from each Province, Gilgit-Baltistan, FATA and Islamabad Capital Territory;

(i) one member to be elected from amongst the Professors of the teaching staff of private sector Medical Colleges from each Province, Gilgit-Baltistan, FATA and Islamabad Capital Territory;

(j) one member to be elected from amongst the Professors of the teaching staff of public sector dental colleges from each Province, Gilgit-Baltistan, FATA and Islamabad Capital Territory;

(k) one member to be elected from amongst the Professors of the teaching staff of private sector dental colleges from each Province, Gilgit-Baltistan, FATA and Islamabad Capital Territory;

(l) one member to be elected by the Council of the College of Physicians and Surgeons;

(m) one member, belonging to the legal profession, to be nominated by the Chief Justice of Pakistan;

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[1]Subs. by Act No. XIX of 2012, s.4.

(n) senior most officer looking after health matters at the Federal level or an authority looking after the affairs of Council at Federal level designated or notified by the Federal Government, as the case may be; and

(o) immediate ex-President of the Council who shall be a member of the Council for one non-renewable term of three years provided that he or she will not hold office.

(2) The President of the Council shall be elected by the members of the Council from amongst themselves.

(3) No act done by the Council shall be invalid on the ground merely of existence of any vacancy in or any defect in the constitution of the Council.

(4) The President shall be the head of the office of the Council and shall be the competent authority for all employees of the Council.].

[1]**[4. Mode of election.—**(1) An election under clauses (c), (d), (e), (g), (h), (i), (j), (k) and (1) of sub-section (1) of Section 3 shall be conducted by the Council as may be prescribed.

(2) Where any dispute arises regarding any election to the Council it shall be referred to the Federal Government whose decision thereon shall be final.].

[1]**[5. Restrictions on nominations and elections.—**(1) No person shall be eligible for nomination or election, except under clauses (b) and (m) of sub-section (1) of Section 3, unless he is a registered medical practitioner or a registered dentist, as the case may be.

(2) No person shall be eligible for nomination or election under clauses (e) and (g) of sub-section (l) of Section 3 unless he resides in the Province concerned.

(3) No person shall be eligible for election under clauses (h), (i), (j), (k) and (1) of sub-section (1) of Section 3 unless he has had at least four years teaching experience, certified by the Council, as a Professor in the faculty of a medical or dental college, as the case may be.

(4) No person shall be eligible for election under clauses (c) and (d) of sub-section (1) of Section 3 unless he has had at least four years teaching experience, certified by the Council, as a Professor, Associate Professor, Assistant Professor, Lecturer etc., in the faculty of a medical or dental college, as the case may be.

(5) No person shall at one and the same time serve as a member under more than one clauses of sub-section (1) of Section 3.]

6. Incorporation of the Council. The Council constituted under section 3 shall be a body corporate by the name of the [2][Medical and Dental Council], having perpetual succession and a common seal, with power to acquire and hold property both movable and immovable, and to contract, and shall by the said name sue and be sued.

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[1]Subs. by Act No. XIX of 2012, ss.5 and 6.

[2]Subs. by Medical Concil (Amdt.) Act, 1973 (10 of 1973), s.5, for "Medical Council".

[1][The Council shall be a regulatory body for regulating medical and dental profession, medical and dental education and institutions,].

[1]**[7. Terms of office.**—(1) The President of the Council shall hold office for a term not exceeding four years and not extending beyond the expiry of his term as member of the Council.

(2) Subject to the provisions of sub-Sections (4) and (6), a member shall hold office for a term of four years from the date of his nomination or election or until his successor has been duly nominated or elected, whichever is earlier.

(3) If a member fails to attend three consecutive meetings of the Council or remains out of Pakistan for a continuous period exceeding one year or, in the case of an elected member, ceases to represent his electoral college, he shall cease to be the member of the Council. A person shall thereupon be nominated or, as the case may be, elected to fill the vacancy:

Provided that a member nominated by the Federal Government shall hold office only during pleasure of the Federal Government. If a nominated member is being considered for cancellation of membership while his term remains, he shall be given a notice to show-cause and an opportunity of personal hearing by the Federal Government before a final order is passed. The Federal Government's nominees shall not be eligible for the post of President.

(4) The case of a member of the Council, other than the member nominated under clauses (a), (b) and (o) of sub-section (1) of Section 3, shall be forwarded to the Federal Government for decision of maintaining his membership or otherwise in the following circumstances, namely:-

(a) if the Council decides by a majority that his membership is not in the interest of the Council; or

(b) his name has been removed from the Register of practitioners as a result of inquiry under Section 31; or

(c) he becomes insane or is declared an insolvent by a competent Court; of—

(d) he is convicted for a criminal offense which implies moral turpitude, including unprofessional and infamous conduct as provided under Section 31.

(5) Other than the member nominated under clauses (a), (b), (m) and (o) of sub-section (1) of Section 3, the Council may, only by a majority decision, suspend the membership of a member if he falls under sub section (4) till a decision by the Federal Government about maintenance of his membership or otherwise.

(6) Where the said term of four years is about to expire in respect of any member, his successor may be nominated or elected at any time within three months before the said term expires, but shall not assume office until the expiry of the said term.

(7) An elected or nominated member may, at any time, resign his membership by writing under his hand addressed to the President and the seat of such member shall be deemed to have fallen vacant from the date of acceptance of his resignation by the President.

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[1]Added and subs. by Act No. XIX of 2012, ss.7 and 8.

(8) A vacancy in the Council shall be filled through election or nomination, as the case may be, and the person elected or nominated to fill the vacancy shall hold office for the full term of four years.].

8. Meeting of the Council.—(1) The Council shall meet at least once in each year at such time and place as may be [1][decided by the President].

(2) Until otherwise provided by Regulation, [1][one-third] members of the Council shall form a quorum, and all of the acts of the Council shall be decided by a majority of the members present and voting.

9. Officers, Committees and servants of the Council.-(1) The Council shall-

(a) elect from amongst its members a Vice-President ;

(b) constitute from amongst its members an Executive Committee, and such other Committees for general or special purposes as the Council deems necessary to carry out the purposes of this Ordinance ;

[1][(c) appoint a Registrar, a Secretary and a Treasurer to carry out the purposes of this Ordinance;

(d) appoint, employ or nominate such other advisers to the President, officers, officials and servants on regular basis or contract as the Council deems necessary to carry out the purposes of this Ordinance;

(e) require the Treasurer to take from the Registrar, Secretary, advisers to the President, officers, officials and servants, such security for the due performance of their duties as the Council deems necessary; and

(f) fix the remuneration and allowances to be paid to the President, Vice-President, members, officers and servants of the Council employed under this section.].

(2) All persons appointed or employed under this section shall be deemed to be public servants within the meaning of section 21 of the Pakistan Penal Code (Act XLV of 1860).

[1][**10. Executive Committee.**—(1) The Executive Committee shall consist of nine members, of whom seven shall be elected by the Council from amongst its members and of which at least one shall be a dental practitioner and one from the post graduate institutions. The President shall have the power to co-opt a maximum of two additional members to the Committee.

(2) The President: Vice-president of the Council shall be *ex-officio* members of the Executive Committee and shall be its President and Vice-president respectively.

(3) In addition to the power and duties conferred and imposed upon it by this Ordinance, the Executive Committee shall exercise and discharge such powers and duties as the Council may confer upon it by regulations and shall have the power and responsibility to take decisions of administrative and financial nature for the smooth functioning and working of the Council.].

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[1]Subs. by Act No. XIX of 2012, ss. 9, 10 and 11.

[1][11. **Recognition of medical institutions and qualifications.**—(1) The Federal Government may grant recognition to any medical institution in Pakistan which trains or grants or both trains and grants medical qualifications and the qualifications granted by them. All such recognized medical institutions or qualifications shall be included in the First Schedule by the Federal Government by notification in the official Gazette.

(2) if any medical institution in Pakistan intends to get recognition of the institution which trains or grants or both trains and grants medical qualifications or qualification granted by it in pursuance of sub-section (1) it shall apply to the Federal Government for the same.

(3) The Federal Government shall transmit the application to the Council after being satisfied that application is complete and is in accordance with the prescribed procedure. The Council shall form recommendations for the Federal Government after assessing the institution and the qualification as per prescribed procedure. Upon receiving recommendations from the Council, the Federal Government shall grant recognition as provided under sub-section (1).

(4) The notification for the grant of recognition may also direct that an entry shall be made in the last column of the First Schedule against such institution and medical qualification granted by it, declaring that it shall be a recognized medical institution or qualification only when granted after the date of notification.].

[1][11A. **Recognition of hospitals or institutions for house job or internship or foundation year training.**—(1) The Federal Government may grant recognition to any hospitals or institutions in Pakistan which train for house job or internship or foundation year. All such recognized hospitals or institutions shall be included in the Sixth Schedule by the Federal Government by notification in the official Gazette.

(2) If any hospital and institution in Pakistan intends to get recognition of the institution which trains for house job, internship or foundation year in pursuance of sub-section (1), it shall apply to the Federal Government for the same.

(3) The Federal Government shall transmit the application to the Council after being satisfied that application is complete and is in accordance with the prescribed procedure. The Council shall form recommendations for the Federal Government after assessing the institution as per prescribed procedure. Upon receiving recommendations from the Council, the Federal Government shall grant recognition as provided under sub-section (1).

(4) The notification for the grant of recognition may also direct that an entry shall be made in the last column of the Sixth Schedule against such hospital or institution, declaring that it shall be a recognized hospital or institution only when granted after the date of notification.].

[2]* * * * * * *

[2][13. **Arrangements for schemes with foreign countries.** At any time, the Council may enter into negotiations with the appropriate authority in any foreign country or organization, for the settling of a scheme for improvement of medical education in Pakistan or postgraduate degrees or any matter or prospect related to the medical or dental profession.].

[3]* * * * * * *

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[1]Subs. and Ins. by Act No. XIX of 2012, ss.12 and 13.
[2]Omitted and subs. by Act No. XIX of 2012, ss.14 and 15.
[3]Omitted by Act No. XIX of 2012, s.16.

[1][**15. Power of the Council to certify certain persons to be possessed of sufficient medical qualifications.**—(1) If, after an examination by a board constituted by the Council, the Council is satisfied that a person holding a qualification granted by a medical institution outside Pakistan, is possessed of sufficient knowledge and skill to be registered as a practitioner for the purpose of this Ordinance, it may recommend to the Federal Government to issue a notification in favour of such person to register him and his qualification. Upon such notification, the Council shall register the qualification possessed by the person without it being entered in any of the Schedules of this Ordinance.

(2) The Council shall register the qualification granted by a medical institution outside Pakistan, possessed by the person by maintaining a separate list in the Register.].

[1][**16. Additional medical or dental qualifications.**—(1) The Federal Government may grant recognition to any post-graduate medical or dental institutions in or outside Pakistan which train or grant or both train and grant additional medical or dental qualifications and the qualifications granted by them. All such recognized additional medical or dental institutions or qualifications shall be included in the Third Schedule by the Federal Government by notification in the official Gazette.

(2) If any post-graduate medical and dental institution in or outside Pakistan intends to get recognition of the institution which trains or grants or both trains and grants additional medical and dental qualifications or qualification granted by it in pursuance of sub-section (1) it shall apply to the Federal Government for the same. If an institution wishes to only train for a recognized postgraduate qualifications in any specialty, it shall apply to the qualification awarding body and after consultation and approval of the Council, the institution shall be added in the Third Schedule.

(3) The Federal Government shall transmit the application to the Council after being satisfied that application is complete and is in accordance with the prescribed procedure. The Council in consultation with the examining body shall form recommendations for the Federal Government after assessing the institution and the qualification as per prescribed procedure. Upon receiving recommendations from the Council, the Federal Government shall grant recognition as provided under sub-section (1).

(4) The notification for the grant of recognition may also direct that an entry shall be made in the last column of the Third Schedule against such institution and additional medical and dental qualification granted by it, declaring that it shall be a recognized post-graduate medical and dental institution and additional medical and dental qualification only when granted after the date of notification.].

[2][**16-A. Recognition of foreign additional medical or dental qualifications.**—The Council shall evaluate any additional medical or dental qualifications granted by any foreign institution and may—

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[1]Subs. by Act No. XIX of 2012, ss. 17 and 18.
[2]Ins. by Act No. XIX of 2012, s.19.

(a) recommend to the Federal Government that such institution or qualification be—

(i) recognized and included in the Third Schedule as specified in Section 16; or

(ii) notified only and shall not be included in the Third Schedule, however, a separate list thereof shall be maintained; or

(b) proceed as per Section 15 or 19, as the case may be.

16-B. Recognition of continuous professional development opportunity providers.—(1) The Federal Government may grant recognition to any organization in Pakistan, which provides opportunities of continuous professional development to the registered medical and dental practitioners. All such recognized organizations shall be included in the Seventh Schedule by the Federal Government by notification in the official Gazette.

(2) If any organization in Pakistan, which provides opportunities of continuous professional development to the registered medical and dental practitioners, intends to get recognition of the organization in pursuance of sub-section (1) it shall apply to the Federal Government for the same.

(3) The Federal Government shall transmit the application to the Council after being satisfied that application is complete and is in accordance with the prescribed procedure. The Council shall form recommendations for the Federal, Government after assessing the institution and the qualification as per prescribed procedure. Upon receiving recommendations from the Council, the Federal Government shall grant recognition as provided under sub-section (1), declaring that it shall be a recognized organization in Pakistan, which provides opportunities of continuous professional development to the registered medical and dental practitioners only when granted after the date of notification.

(4) A separate list of international continuous professional development opportunities providing organization or institutes shall be maintained by the Council.

16-C. Role of specialists' boards.—(1) The Federal Government may grant recognition to specialists boards which shall help the Council in maintenance of such minimum standards of proficiency in that particular specialty as may be prescribed by the Council. All recognized specialists boards shall be included in the Eighth Schedule by the Federal Government by notification in the official Gazette.

(2) The Council shall authorize a specialist board constituted as per prescribed procedures and shall form recommendations for the Federal Government. Upon receiving recommendations from the Council, the Federal Government shall grant recognition as provided under sub-section (1), declaring that it shall be a recognized specialists board only when granted after the date of notification.].

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[1]* * * * * * *

[2][18. Recognition of dental institutions and qualifications.—](1) The Federal Government may grant recognition to any dental institutions in Pakistan which train or grant or both train and grant dental qualifications and the qualifications granted by them. All such recognized dental institutions or qualifications shall be included in the Fifth Schedule by the Federal Government by notification in the official Gazette.

(2) If any dental institution in Pakistan intends to get recognition of the institution which trains or grants or both trains and grants dental qualifications or qualification granted by it in pursuance of sub-section (1) it shall apply to the Federal Government for the same.

(3) The Federal Government shall transmit the application to the Council after being satisfied that application is complete and is in accordance with the prescribed procedure. The Council shall form recommendations for the Federal Government after assessing the institution and the qualification as per prescribed procedure. Upon receiving recommendations from the Council, the Federal Government shall grant recognition as provided under sub-section (1).

(4) The notification for the grant of recognition may also direct that an entry shall be made in the last column of the Fifth Schedule against such institution and dental qualification granted by it, declaring that it shall be a recognized dental institution and dental qualification only when granted after the date of notification.].

[2][19. Power of the Council to certify certain persons to be possessed of sufficient dental qualifications.—](1) If after an examination by a board constituted by the Council, the Council is satisfied that a person holding a qualification granted by a dental institution outside Pakistan, is possessed of sufficient knowledge and skill to be registered as a practitioner for the purpose of this Ordinance, it may recommend to the Federal Government to issue a notification in favour of such person to register him and his qualification. Upon such notification, the Council shall register the qualification possessed by the person without it being entered in any Schedule of this Ordinance.

(2) The Council shall register the qualification granted by a dental institution outside Pakistan, possessed by the person by maintaining a separate list in the register.].

[2][20. Power to acquire information as to courses of study and examination.** Every medical or dental institution or hospital or organization in Pakistan recognized under this Ordinance, which trains for or grants or both trains for and grants a medical or a dental qualification, additional medical or dental qualification, trains for house job or internship or foundation year or is a continuous professional development opportunity provider shall furnish such information as the Council may, from time to time, require about the facilities and faculty available in the institution, courses of study and processes of admission of the institution concerned, examinations required to be undergone prior to such qualifications being conferred and generally as to the requisites for obtaining such qualifications.].

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[1]Omitted by Act No. XIX of 2012, s.20.

[2]Subs. by Act No. XIX of 2012, ss. 21, 22 and 23.

[1][**21. Inspection.**—(1) The Executive Committee shall approve a list of inspectors in the country and the President shall commission such number of medical or dental inspectors from the approved list, as it may deem appropriate, to inspect the facilities for training available at the medical or dental institutions and attend at any or all of the examinations held by medical or dental institutions in Pakistan recognized under this Ordinance for the purpose of granting recognized medical or dental or additional medical or denial qualifications.

(2) Inspectors appointed under this section shall form a comprehensive report about the facilities for training in the institution and shall not interfere with conduct of any examination and shall report to the Executive Committee on the standard of the inspected examination which they attend and on the courses of study and facilities for teaching provided by the medical or dental institution inspected for different stages leading up to examinations and on any other matters in regard to which the President or Executive Committee may require them to report.

(3) The Executive Committee shall forward a copy of any such report to the medical or dental institution concerned and shall also forward a copy, with the remarks of such medical or dental institution thereon, to the Council.].

[1][**22. Withdrawal of recognition.—**(1) If a recognized institution is violating provisions of this Ordinance and regulations made thereunder or the facilities for training for the courses of study or standard of examination in the institution to obtain a recognized medical or dental qualification, additional medical or dental qualification, training for house job or internship or foundation year or in a continuous professional development opportunity providing organization has deteriorated to an extent that the standard of proficiency required from candidates at any examination held for the purpose of granting such qualification is not such as to secure to persons holding such qualification the knowledge and skill requisite for the efficient practice of medicine or dentistry, the Council may stop further intake of students in the institution and forward a summary of its findings and its intent to the medical or dental institution with an intimation of the period within which the medical or dental institution may submit its explanation to the Council and may request for a hearing before the Council if it so desires.

(2) If the Council is not satisfied with the explanation then it shall make a recommendation to the Federal Government for closure of the institution to which shall include a scheme for adjustment of students in other recognized institutions of the corresponding public or private sector, as the ease may be.

(3) On recommendations of the Council, the Federal Government may, by notification in the official Gazelle, direct that an entry shall be made in the First, Third, Fifths Sixth or Seventh Schedule, as the case may be, against the said medical or dental or a postgraduate institution and qualification granted by it, hospital or continuous professional development opportunity provider declaring that, it shall be a recognized medical, dental or additional medical or dental qualification, institution, hospital and continuous professional development opportunity provider only before the date of notification.].

[2][**22-A. Establishment and running of medical and dental institutions without recognition.—**No person shall run nor establish any institution for training or grant or both training or grant of medical or dental qualifications, additional medical or denial education, training for house job, internship or foundation year or an organization for continuous professional development opportunity providing neither shall any university grant affiliation to any such an institution nor any such institution shall award any degree unless recognition has been granted to such college or institution under this Ordinance.

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[1]Subs.by Act No. XIX of 2012, ss. 24 and 25.
[2]Ins. by Act No. XIX of 2012, s. 26.

22-B. Penalty.—(1) Whoever runs or establishes or endorses any institution or advertises admissions in an institution for imparting education in medicine or dentistry, which is not recognized under Sections 11, 11-A, 16, 16-A or 18 or in respect of which recognition has been withdrawn under Section 22, shall be guilty of an offence punishable with rigorous imprisonment for a term which may extend to five years but shall not be less than a year or with fine which may extend to ten million rupees but shall not be less than five million rupees or with both and shall also be liable to closure of such institution.

(2) Where any contravention of this Ordinance has been committed by a body corporate or institution and it appears from the relevant documents that such offence has been committed with the consent or connivance of or is attributed to any negligence on the part of any director, partner, manager, secretary or other officer of the body corporate or institution such director, partner, manager, secretary or other officer of the body corporate or institution, shall be deemed guilty of such contravention along with the body corporate or institution and shall be punished accordingly:

Provided that in the case of a company as defined under the Companies Ordinance, 1984 (XLVII of 1984), only its Chief Executive shall be liable under this section.

Explanation.—For the purposes of this section, "body corporate or institution" includes a firm, association of persons and a society registered under the Societies Registration Act, 1860 (XXI of 1860) or under the Co-operative Societies Act, 1925 (VII of 1925).

(3) Where any contravention of this Ordinance has been committed by any Government agency, local authority or local council and it appears from the relevant documents that such contravention has been committed with the consent or connivance of or is attributable to any negligence on the part of the head or any other officer of the Government agency, local authority or local council, such head or other officer shall also be deemed guilty of such contravention alongwith the Government agency, local authority or local council and shall be liable to be proceeded against and punished accordingly.].

[1][**23. Maintenance of Register of medical practitioners.**—(1) The Council shall maintain a Register of medical practitioners possessing qualifications which are recognized medical or additional medical qualifications for the purposes of this Ordinance and may prescribe the necessary particulars to be entered in the Register. Holders of a recognized basic degree shall be registered on provisional basis for internship or foundation or house job of a minimum of one year duly assessed, hands on clinical rotation in an approved hospital or institution included in the Sixth Schedule which shall be mandatory for conversion of provisional registration into full registration.

(2) The practitioner shall be deemed to hold a valid registration and entitled to be known and eligible for privileges of a registered medical practitioner if his name is retained on the Register after fulfillment of requirements of continuation of registration as laid down by the Council from time to time and provided he had paid the dues of the Council. The valid registration certificate shall be the licence to practice medicine in Pakistan.].

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[1]Subs. by Act No. XIX of 2012, s.27.

[1]* * * * * * *

[1]* * * * * * *

[2][**26. Maintenance of Register of dental practitioners.**—(1) The Council shall maintain a Register of dental practitioners possessing qualifications which are recognized dental or additional dental qualifications for the purposes of this Ordinance and may prescribe the necessary particulars to be entered in the Register. Holders of a recognized basic degree shall be registered on provisional basis for internship or foundation or house job of a minimum of one year duly assessed, hands on clinical rotation in an approved hospital or institution included in the Sixth Schedule which shall be mandatory for conversion of provisional registration into full registration.

(2) The practitioner shall be deemed to hold valid registration and entitled to be known and eligible for privileges of a registered dental practitioner if his name is retained on the Register after fulfillment of requirements of continuation of registration as laid down by the Council from time to time and provided he had paid the dues of the Council. The valid registration certificate shall be the licence to practice dentistry in Pakistan.].

27. Registers to be public documents. The Register maintained under section 23 or section 26 shall be deemed to be public document within the meaning of the [2][Qanun-e-Shahadat, 1984 (P.O. No. 10 of 1984).]

[3][**28. Penalty for fraudulent representation or registration.** Whoever falsely pretends to be registered under this Ordinance as a medical practitioner or dentist and uses with his name or title any words or letters representing that he is so registered with the Council or uses the word "doctor" without legal basis, irrespective of whether any person is actually deceived by such pretence or representation or not, shall, on conviction before a Magistrate of the first class, be punishable with fine which may extend to one hundred thousand rupees or with imprisonment for a term which may extend to six months or with both. Any person found aiding and abetting him shall also be prosecuted and punished.].

[4][**28-A. Penalty of practicing without registration.**—(1) No person, other than a registered medical or dental practitioner, shall practice medicine or dentistry.

(2) Any person who acts in contravention of the provisions of sub-section (1) shall be punishable with imprisonment for a term which may extend to two years but shall not be less than six months or with fine which may extend to two hundred thousand rupees but shall not be less than one hundred thousand rupees or with both.

28-B. Cognizance of offences.—(1) No Court shall take cognizance of any offence or matter under this Ordinance except upon complaint in writing made by the authorized officer of the Council.

(2) Notwithstanding anything contained in the Code of Criminal Procedure, 1898 (Act V of 1898), it shall be lawful for any Magistrate of the first class to pass any sentence authorized by this Ordinance even if such sentence exceeds his powers under Section 32 of the said Code.].

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[1]Omitted by Act No. XIX of 2012, s.28.
[2]Subs. by Act No. XIX of 2012, ss.29 and 30.
[3]Subs. by Act No. XIX of 2012, s.31.
4Ins. by Act No. XIX of 2012, s.32.

[1]**[29. Privileges of registered medical or dental practitioners.**—(1) A registered medical practitioner and dentist shall have following privileges, namely:—

(a) valid registration shall be considered as a licence to practice medicine and dentistry in Pakistan and of a level mentioned by the Council in the registration certificate;

(b) a registered medical practitioner or a registered dentist having valid full registration shall be competent to practice medicine or dentistry and prescribe allopathic medicine and perform any surgical or interventional procedure on any patient;

(c) a registered medical practitioner or a registered dentist having valid full registration may take admission for an additional qualification course;

(d) to hold any medical or dental or relevant administrative appointment in any medical or dental institution or setup or hospitals or clinic or related health institution;

(e) to hold a commission as a medical or dental officer in the Armed Forces; and

(f) only a registered practitioner having valid registration is eligible to participate in the elections of the member of the Council.

(2) Notwithstanding anything to the contrary contained in any other law for the time being in force, no medical certificate or proscription or advice shall be considered valid unless obtained from a medical or dental practitioner having valid registration.

(3) No person shall be entitled to recover any charge in any Court of law for any medical or surgical advice or attendance or for the performance of any operation or intervention or for any medicine prescribed or supplied unless he can prove upon the trial that he is a registered medical or dental practitioner having valid registration.].

[1]**[30. Responsibilities of registered medical or dental practitioner.**—(1) Every registered medical or dental practitioner shall notify any transfer of the place of his residence or practice to the Registrar within sixty days of such transfer, failing which his name is liable to be struck off the Register by order of the Federal Government either permanently or for such period as may be specified therein.

(2) No registered person shall use or publish in any way whatsoever any time, title, description or symbol indicating or calculated to lead persons to infer that he possesses any additional or other professional qualification unless the same has been conferred upon him by a legally constituted authority within or outside Pakistan and which is recognized under this Ordinance.

(3) Every registered medical practitioner or dental practitioner shall comply with the code of medical ethics prescribed by the Council.].

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[1]Subs. by Act No. XIX of 2012, ss.33 and 34.

[1][**31. Removal of names from the Register.**—(1) The Council, in its discretion, may direct the Registrar to remove altogether or for a specified period from the Register the name of any registered medical practitioner or registered dentist who has been convicted by the disciplinary committee or by any other Court of law of any such offence as implies in the opinion of the Council a defect of character defined in the code of ethics of practice or who, after an inquiry at which opportunity has been given to such person to be heard in person or through a pleader, has been convicted by the disciplinary committee of the Council as guilty of professional negligence or incompetence or who has shown himself to be until to continue in practice or on account of mental ill health or other grounds as prescribed in the code of ethics of practice regulations.

(2) The Council may also direct that any name removed from the Register under sub-section (1) shall be restored.

(3) For the purpose of an inquiry under sub-section (1), the disciplinary committee of the Council shall exercise all the powers of a Civil Court under the Code of Civil Procedure, 1908 (Act V of 1908) for summoning the witnesses, for compelling the production of documents and for issuing commissions with the help of law enforcing authorities.

(4) The claim of professional negligence shall initially be established before the disciplinary committee of the Council before any other proceedings.].

[2]* * * * * * *

33. Power to make Regulations.-(1) The Council may, with the previous sanction of the [3][Federal Government], make Regulations generally to carry out the purposes of this Ordinance, and, without prejudice to the generality of this power, such Regulations may provide for—

(a) the management of the property of the Council and the maintenance and audit of its accounts ;

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[1]Subs. by Act No. XIX of 2012, s.35.
[2]Omitted by Act No. XIX of 2012, s. 36.
[3]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".

(b) the summoning and holding of meetings of the Council, the times and places where such meetings are to be held, the conduct of business thereat and the number of members necessary to constitute a quorum ;

(c) the powers and duties of the President and Vice-President ;

(d) the mode of the appointment of the Executive Committee and other Committees, the summoning and holding of meetings, and the conduct of business of such Committees ;

[1]**[(e)** code of practice and ethics for the medical and dental practitioners;

(f) the appointment, powers, duties and procedures of medical and dental inspectors;

(g) the conditions and procedure for maintenance, compilation and publication of the Register of medical and dental practitioners and of health care providing facilities and their minimum requirements and the fees to be charged for registration and, if necessary, for opening of sub-offices or branches for this purpose;]

[2]**[(gg)** the fee for application under section 22A;]

[1]**[(h)** the procedure for any inquiry under sub-section (1) of Section 31; and

(i) any matter for which under this Ordinance provision may be made by regulations.];

(2) Notwithstanding anything contained in sub-section (1), the Council shall make Regulations which may provide for-

(a) prescribing a uniform minimum standard of courses of training for obtaining graduate and post-graduate medical and dental qualifications to be included or included respectively in the First, Third and Fifth Schedules ;

b) prescribing minimum requirements for the content and duration of courses of study as aforesaid ;

(c) prescribing the conditions for admission to courses of training as aforesaid ;

(d) prescribing minimum qualifications and experience required of teachers for appointment in medical and dental institutions ;

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[1]Subs. by Act No. XIX of 2012. s.37.
[2]Subs. ins. by Ord. VII of 1999, ss. 9-10 (valid upto 21-09-1999).

(e) prescribing the standards of examinations, methods of conducting the examinations and other requirements to be satisfied for securing recognition of medical and dental qualifications under this Ordinance ;

[1]**[(f)** prescribing the qualifications, experience and other conditions required for examiners for professional examinations in medicine and dentistry antecedent to the granting of recognized medical and dental and additional medical and dental qualifications;

(g) registration of medical or dental students at any medical or dental college or school or any university and the fees payable in respect of such registration;

(h) laying down criteria including university affiliation, conditions and requirements for recognition and continuation of recognition and for grant of status of a teaching institution of institutions and organizations under this Ordinance and on all connected matters of inspection of medical and dental institutions for recognition and continuation of recognition and inspection of examinations in these institutions and fee for such inspections;

(i) terms and conditions of service for all employees appointed under section 9;

(j) election of members of the Council; and

(k) prescribing a uniform minimum standard for continuous professional development for registered graduate and postgraduate medical and dental practitioners.].

34. Information to be furnished by the Council and publication thereof.(1) the Council shall furnish such reports, copies of its minutes, abstracts of its accounts, and other information to the [2][Federal Government] as it may require.

(2) The [2][Federal Government] may publish, in such manner as it may think fit, any report, copy, abstract or other information furnished to it under this section or under section 21.

[3]**[35. Commission of inquiry.**—(1) Whenever it is made to appear to the Federal Government that the Council is not complying with any provisions of this Ordinance, the Federal Government may refer the particulars of the complaint to a commission of inquiry consisting of three persons two of whom shall be appointed by the Federal Government, including the chairman being at least a judge of a High Court, and one member nominated by the Council after a resolution.

(2) Such commission shall proceed to inquire in a summary manner and to report to the Federal Government as to the truth of the matter charged in the complaint and in case of any charge of default or of improper action being found by the commission to have been established, the commission shall recommend the remedies, if any, which are in its opinion necessary.

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[1]Subs. by Act No. XIX of 2012, s.37 (b).
[2]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[3]Subs. by Act No. XIX of 2012, s.38.

(3) The Federal Government shall forward the report of the commission of inquiry to the Council for implementation and for remedial actions. The Council shall submit lo the Federal Government a detailed plan of remedial measures to be adopted by the Council which shall be considered as approved if no further orders are passed by the Federal Government in this regard within three months. All remedial actions shall be taken by the Council within a stipulated period of six months and the Council shall submit to the Federal Government a report of actions taken thereon. If the Council fails to comply with the remedial measures forwarded to it by the Federal Government, the Federal Government may by itself amend the regulations of the Council or make such provisions or issue orders or take such other steps as may seem necessary to give effect to the recommendations of the commission.

(4) The commission of inquiry shall have power to administer oaths, to enforce the attendance of witnesses and the production of documents and shall have other necessary powers for the purpose of any inquiry conducted by it as are exercised by a Civil Court under the Code of Civil Procedure, 1908 (Act V of 1908).].

36. [*Repeals, etc.*] *Omitted by the Federal Laws* (*Revision and Declaration*) *Ordinance,* 1981 (*XXVII of* 1981), *s. 3 and Sch.,II.*

[1][**36-A. Over-ridding provision.** The provisions of this Ordinance shall have effect notwithstanding anything to the contrary contained in any other law for the time being in force. No suit, prosecution or other legal proceeding shall lie against the Government, the Council or any committee thereof or any officer or servant of the Government or the Council for anything which is in good faith done or intended to be done under this Ordinance.

36-B. Transitory provision. Upon the commencement of the Medical and Dental Council (Amendment) Act; 2012, the incumbent Council constituted under Section 3 shall stand dissolved and the President, Vice-President of the Council and Executive Committee of the Council as exists before the commencement of the aforesaid Act shall stay infact till a new President, Vice-President of the Council, Executive Committee is elected by the Council. The President, Vice-President of the Council and Executive Committee of the Council shall have the powers of the Council and shall conduct elections for membership of the Council within one year.].

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[1]Ins. by Act No. XIX of 2012, s.39.

THE FIRST SCHEDULE

(*See* section 11)

RECOGNISED MEDICAL QUALIFICATIONS GRANTED BY MEDICAL INSTITUTIONS IN PAKISTAN.

Medical Institution.	**Recognized medical qualification.**	**Abbreviation for registration.**
University of the Punjab	Licentiate in Medicine and Surgery. Bachelor of Medicine. Bachelor of Medicine and Bachelor of Surgery.	L.M.S., Punjab. M.B., Punjab M.B.B.S., Punjab.
Punjab State Medical Faculty	Licentiate in Medicine and Surgery (when the holder of the qualification had passed the F.Sc. (Medical Group) examination of a recognised University before taking up medical studies.	L.M.S. (P.S.M.F.)
University of Karachi	Bachelor of Medicine and Bachelor of Surgery.	M.B.,B.S., Karachi.
University of Sind	Bachelor of Medicine and Bachelor of Surgery.	M.B.,B,S. Sind.
[1]* *	* * *	* *
University of Peshawar	Bachelor of Medicine and Bachelor of Surgery.	M.B.,B.S., Peshawar.

[1]Omitted by F.A.O., 1975, Art. 2 and Sch.

THE SECOND SCHEDULE

(*See* section 12)

[1]* * * * * * *

THE THIRD SCHEDULE
(*See* section 16)
RECOGNISED ADDITIONAL MEDICAL QUALIFICATIONS

Medical Institution.	Recognized Additional Medical Qualification.	Abbreviations for Registration.
	PART 'A'	
	GRANTED BY MEDICAL INSTITUTIONS IN PAKISTAN	
University of the Punjab.	Doctor of Medicine ..	M.D. (Punjab).
	Master of Surgery ..	M.S. (Punjab).
	Diploma in Public Health.	D.P.H. (Punjab).
	Diploma in Ophthalmology.	D.O. (Punjab).
	Master of Philosophy (Bio- Chemistry).	M.Phil. Bio-Chemistry (Karachi).]
	[2][Doctor of Medicine ..	M.D. (Karachi).
	Master of Surgery ..	M.S. (Karachi).
[3][College of Physicians and Surgeons of Pakistan).	Fellow of the College of Physicians and Surgeons of Pakistan.	F.C.P.S. (Pak).
	Member of the College of Physicians and Surgeons of Pakistan.]	M.C.P.S. (Pak).

1Omitted by Act No. XIX of 2012, s.40.

[2] Added by S.R.O. No. 1713 (I)/73. at 4-12-1973, see, Gaz. of P., 1973, Pt.-II, p-2450.

[3]Added by S.R.O. No. 620(K)/67, dt. 10-4-1967, see, Gaz. of P., 1967, Pt.,-I, p-382.

PART 'B'
GRANTED BY MEDICAL INSTITUTIONS OUTSIDE PAKISTAN

India:		
*University of Bombay	Doctor of Medicine .. Master of Surgery ..	M.D. (Bombay). M.S. (Bombay).
*University of Calcutta	Doctor of Medicine .. Master of Surgery .. Diploma in Public Health. Master of Obstetrics ..	M.D. (Calcutta). M.S. (Calcutta). D.P.H. (Calcutta) M.O. (Calcutta).
*University of Lucknow	Doctor of Medicine .. Master of Surgery ..	M.D. (Lucknow). M.S. (Lucknow).
*University of Madras	Doctor of Medicine .. Master of Surgery ..	M.D. (Madras). M.S. (Madras).
*University of Patna ..	Doctor of Medicine .. Master of Surgery ..	M.D. (Patna). M.S. (Patna).
*Andhra University ..	Doctor of Medicine and Master of Surgery.	M.D., M.S., Andhra.
United Kingdom:	[1][Doctor of Philosophy (Basis Medical Subjects) Master of Science .. (Basic Medical Subjects)	Ph. D. M.Sc.

* When granted on or before the 14th February, 1956.

[1] Added by S.R.O. No. 916 (K)/66, dated, 8-9-1966, see Gaz. of P., 1966, Pt. I., p.497.

1	2	3
	Post Graduate Diplomas	D.A., D.A.P. & E. D. Bact., D.C.H., D.C.M.T., D.C.P. D.I.H., D.L.O., D.M.J., D.M.R.D., D.M.R.T., D.M.S.A., (Edin), D.O.Hyg., D.O., D.PhyS. Med., D.P.M., D.T.C.D., D.T.P.H. (Only when granted after training of atleast one academic year)],
Universities of: Birmingham, Bristol, Cambridge, Durham, Leeds, Liverpool, London, Manchester, Oxford, Shefield, Wales, Aberdeen, Edinburgh, Glassgow [1][Exerter, New Castle upon Tyne,] St. Andrews and Bolfast.	Doctor of Medicine .. Master of Surgery .. Diploma in Public Health.	M.D. M.S. or M.Ch. D.P.H.
Royal College of Physicians of London.	Member, Fellow	M.R.C.P., F.R.C.P. (London).
Royal College of Surgeons of London.	Fellow ..	F.R.C.S. (England).
Royal College of Physicians of Edinburgh.	Member, Fellow ..	M.R.C.P., F.R.C.P., (Edin).
Royal College of Surgeons of Edinburgh.	Fellow	F.R.C.S. (Edin.).
Royal Faculty of Physicians and Surgery of Glasgow.	Fellow ..	F.R.F.P.S. (Glasgow).

[1] Ins. by S.R.O No. 916 (K)/66, dated, 8-9-1966, see Gaze. of P., 1966 Pt. I P. 497.

[1][Royal College of Physicians and Surgeons, England.	[2][Diploma in Public Health. D.P.H. (R.C.P.S. England] Diploma in Public Health.	D.P.H. (R.C.P.S. England).
Royal College of Physicians and Surgeons of Glasgow.	Member, Fellow, Honorary Fellow	M.R C.P. (Glasg.) F.R.C.P. (Glasg.) F.R.C.S. (Glasg.) Hon. F.R.C.P.S. (Glasg.)].
	[Post-Graduate Diploma.	D.A., D.A.P. & E. D.Bact., D.C.H., D.C.M.T., D.C.P., D.I.H.., D.L.O., D.M.J., DMR. D. D.M.R.T. D.M.S.A., (Edin), D.O. Hyg., D.O., D.Obst. R.C.O.G. D.P.H., D. Phys. Med., D.P.M., D.T.C.D., D.T.P.H. (Only when granted after training of at least one academic year);]

[1]Added by S.R.O. No. 505 (K)/65, dated. 24-10-1965, see Gaz. of P., 1965, Pt. I., p. 498.)
[2] Subs. by the Health Divn. Notifin No. S.R.O. 716(K)/65, dated the 26th August, 1965, for the existing entries, see Gaz. of P., 1965, Pt. I, p. 642.
[3]Added by S.R.O. No. 916 (K)/66, dated 8-9-1966, see Gaz. of P., 1966, Pt. I., pp. 457-458.

Republic of Ireland:		
niversity of Dublin National University of Ireland.	Doctor of Medicine .. Master of Surgery .. Master in Obstetrics ..	M.D. M.Ch. M.A.O.
Royal College of Physicians of Ireland.	Member Fellow ..	M.R.C.P. (Ireland) F.R.C.P. (Ireland)
Royal College of Surgeons in Ireland.	Fellow ..	F.R.C.S (Ireland).
	[1][Diploma in Obstetrics and Gynaecology.]	D.G.O.]
[1][United States of America:		
Indiana University ..	Doctor of Philosophy ..	Ph. D. (Basic Medical Subject).]

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[1] Added by the Health Divn. Notifn. No. S.R.O. 78(K)/65, dated the 20th January, 1965, see ibid., pp. 34-35.

THE FOURTH SCHEDULE

(*See* section 17)

[1]* * * * * * *

THE FIFTH SCHEDULE

(*See* section 18)

RECOGNISED DENTAL QUALIFICATIONS

Medical Institution.	Recognised Dental Qualification.	Abbreviation for Registration.
University of the Punjab	Bachelor of Dental Surgery.	B.D.S. (Punjab).
[2][Punjab State Medical Faculty.	Licentiate in Dental Surgery.	L.D.S. (PSMF).]
	Bachelor of Dental Surgery.	
[3][University of Sind.	Bachelor of Dental Surgery.	B.D.S. (Sind).
University of Peshawar.		B.D.S. (Peshawar).]

[4][THE SIXTH SCHEDULE

(see Section 11-A)

APPROVED HOSPITALS OR INSTITUTIONS

S. No. Approved Hospitals or Institutions Specialties/Department

THE SEVENTH SCHEDULE

(see Section 16-B)

CONTINUOUS PROFESSIONAL DEVELOPMENT OPPORTUNITY PROVIDERS IN PAKISTAN

S. No. CPD Opportunity Provider

THE EIGHTH SCHEDULE

(see Section 16-C)

SPECIALIST BOARDS

S. No. Specialist Boards Specialties/Department.].

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[1]Omitted by Act No. XIX of 2012, s.40.

[2]Added by the Health Divn. Notifin. No. S.R.O. 111 (K)/66, dated the 29th January, 1966, see Gaz. of P., 1966, Pt. I, p. 78.

[3] Added by S.R.O. No. 215 (K)/69, dated 9-1-1969, see Gaz. of P., 1969, Pt. I., p. 148.

[4]Ins. by Act No. XIX of 2012, s.41.

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THE NATIONAL INSTITUTE OF HEALTH ORDINANCE, 1980

ORDINANCE NO. XLIII OF 1980

[10th *September,* 1980]

An Ordinance to provide for the establishment of the National Institute of Health.

WHEREAS it is expedient to provide for the establishment of the National Institute of Health and for matters connected therewith or ancillary thereto;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of the fifth day of July, 1977, read with the Laws (Continuance in Force) Order, 1977 (*CMLA. Order No. I of 1977*), and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:——

CHAPTER I

PRELIMINARY

1. Short title, extent and commencement.—(1) This Ordinance may be called the National Institute of Health Ordinance, 1980.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions. In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "Board" means the Board of Governors of the Institute;

(b) "Chairman" means the Chairman of the Board ;

(c) "Division" means a unit of the Institute ;

(d) "Executive Director" means the Executive Director of the Institute ;

(e) "Institute" means the National Institute of Health established under section 3 ;

(f) "member" means member of the Board ; and

(g) "prescribed" means prescribed by rules made under this Ordinance.

3. Establishment of the Institute.—(1) As soon as may be after the commencement of this Ordinance, the Federal Government shall establish, in accordance with the provisions of this Ordinance, an Institute[1] to be called the National Institute of Health.

(2) The Institute shall be a body corporate having perpetual succession and a common seal with power, subject to the provisions of this Ordinance, to acquire, hold and dispose of property, both movable and immovable, and shall by the name specified in sub-section (1) sue and be sued.

(3) The headquarters of the Institute shall be at Islamabad.

———

[1] *See S.R.O. 1008(I)/80, dated 10-9-80, Gaz., of P., 1980, Extra, Pt. II, p. 1780.*

CHAPTER II

GENERAL

4. Functions of the Institute. The functions of the Institute shall be,—

(a) to advise the Federal Government on the control of diseases by suitable methods ;

(b) to implement all the schemes and proposals approved by the Federal Government for it ;

(c) to investigate epidemics and other communicable diseases and to conduct research on these problems using modern techniques and achieve excellence in this behalf and to collaborate with other concerned agencies under the Federal Government or the Provincial Governments ;

(d) to develop methodology and standardise techniques for the investigation of various diseases prevalent in the country;

(e) to dissipate these techniques to the people working in the profession by holding training courses ;

(f) to develop an Institute of Tropical Diseases for research and training ;

(g) to function as National Type Culture Collection Centre ;

(h) to develop a National Virus Reference Centre ;

(i) to conduct research and training in community medicine and health services development ;

(j) to control environment with special reference to air, water and food pollution ;

(k) to analyse and test the quality of drugs and act as the laboratory for the purpose of sub-section (5) of section 22 of the Drugs Act, 1976 (XXXI of 1976);

(l) to function as sole producer of vaccines and sera for prophylactic and the therapeutic use and acquire capability of meeting domestic and foreign demands ;

(m) to conduct research on traditional system of medicine and to collaborate with the international agencies ;

(n) to impart training in drug analysis ;

(o) to collaborate with the World Health Organisation in quality control of drugs ;

(p) to conduct research on applied nutrition like Clinical Nutrition and Food Analysis and undertake nutrition education programme ;

(q) to advise the Federal Government in developing food standards and pure food laws in collaboration with the international agencies like the World Health Organisation and the Food and Agriculture Organisation ;

(r) to train medical laboratory technicians and technologists ;

(s) to undertake repair and maintenance of sophisticated electromedical equipment for other institutions on agreed terms and conditions ;

(t) to function as a source of supply of small laboratory animals for use in the research and other fields on agreed terms and conditions ; and

(u) to perform such other functions related to the matters aforesaid as the Board may decide with the approval of the Federal Government.

(2) The Institute may, with the approval of the Federal Government, on behalf of a Provincial Government, perform functions relating to research and investigation on health problems on such terms and conditions as may be agreed upon between the Institute and such Government.

5. Board of Governors.—(1) The [1][Minister for Health-Ministry of Health] shall be the Patron-in-Chief of the Institute.

(2) The general Direction and administration of the affairs of the Institute shall vest in the Board which shall consist of,—

(i) the Secretary,Ministry of Health and Social Welfare.	*Chairman.*
(ii) Director-General, Health, Health Division.	*Member.*
(iii) Financial Adviser, Health Division.	*Member.*
(iv) Surgeon General or his nominee.	*Member.*
(v) Chairman, Pakistan Medical Research Council, or his nominee.	*Member.*
(vi) Vice-Chancellor, Quaid-i-Azam University, or his nominee.	*Member.*
(vii) two representatives from the public to be nominated by the Federal Government.	*Member.*
(viii) one representative of the College of Physicians and Surgeons.	*Member.*
(ix) Executive Director.	*Member/Secretary.*

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[1] *Subs. by Ord. 63 of 02, s. 2.*

6. Term of office of members.—(1) Unless earlier removed by the Federal Government, the terms of members, other than *ex-officio* members, shall be three years.

(2) A member, other than an *ex-officio* member, may resign his office by writing under his hand addressed to the Federal Government.

(3) When a person is appointed to be a member of the Board by virtue of his holding an office or appointment, he shall cease to be such member when he ceases to hold that office or appointment.

7. Powers of the Board.—(1) The Board may,—

(a) frame policies and supervise general management of the affairs of the Institute and do all such acts and take all such steps as are necessary for the promotion and fulfilment of the objectives and functions of the Institute ; and

(b) frame regulations to govern the working of the Institute and to lay down procedure for the conduct of the business of the Board and its various committees and sub-committees.

(2) In the discharge of its functions the Board shall be guided on questions of policy by the instructions, if any, given to it from time to time by the Federal Government which shall be the sole Judge as to whether a question is a question of policy.

8. Meetings of the Board.—(1) The meeting of the Board shall be called by the Chairman on such date and at such time and place as may be specified by him:

Provided that,—

(a) not less than one meeting shall be held in every six months ; and

(b) at least eight days' notice shall be given to the members specifying the date, time and place of the meeting.

(2) The annual reports and the accounts of the Institute for every financial year shall be submitted at a meeting of the Board within six months of the end of the financial year to which the accounts relate.

(3) To constitute a quorum at a meeting of the Board not less than five members shall be present.

(4) All the meetings of the Board shall be presided at by the Chairman and, in the absence of the Chairman, by any other member elected for the purpose from amongst the members present.

(5) Subject to such instructions as the Federal Government may give from time to time regarding various matters including matters having financial implications pertaining to the Institute, all matters of the Institute shall be decided at a meeting of the Board by a majority of the members present and voting, and, in the case of equality of votes, the person presiding shall have a casting vote:

Provided that, in an emergency, any matter may be decided by circulation among all the members and any proposal so circulated and approved by a majority of the members shall be as effective and binding as if such proposal had been approved at a regular meeting of the Board.

(6) The Board may from time to time appoint such working groups, committees and sub-committees from amongst its members as it may consider necessary to assist it in the discharge of its functions and to discharge such of its functions as it may assign to them.

(7) No act or proceeding of the Board shall be invalid by reason only of the existence of any vacancy in, or defect in the constitution of, the Board.

9. Executive Director.——(1) The Federal Government shall appoint an Executive Director on such terms and conditions as it may decide.

(2) The Executive Director shall be the Secretary of the Board and shall perform the following functions and duties, namely:—

(i) to keep in custody the records and seal of the Institute;

(ii) to appoint officers and other employees against posts up to Grade 17 in the National Pay Scales;

(iii) to supervise and control the administration of the Institute, including disciplinary action against employees upto Grade 17;

(iv) to authorise payment of monthly salaries and allowances to the employees of the Institutes;

(v) to propose budget estimates and revised budget estimates and place the same before the Board for approval;

(vi) to allow payment of bills under any head of the approved budget;

(vii) to issue notices of meetings of the Board and its committees in consultation with the Chairman and to maintain proper record of minutes and proceedings thereof;

(viii) to take steps for the implementation of the decisions of the Board, working groups, committees and sub-committees without delay;

(ix) to execute deeds and documents on behalf of the Board; and

(x) to perform any other duties which may be assigned to him by the Board.

(3) The Executive Director shall not allow capital expenditure on items of civil works or automobiles.

10. Funds of the Institute. The funds of the Institute shall consist of—

(a) grants from the Federal Government and the Provincial Governments ;

(b) donations and endowments;

(c) sale proceeds of vaccine sera, fee from Laboratory tests and health certificates ;

(d) income from investments and deposits ;

(e) receipts from such sources as may be approved by the Board ;

(f) aid from international agencies and foreign countries obtained with the approval of the Federal Government ; and

(g) loans from national and international agencies obtained with the approval of the Federal Government.

11. Budget, audit and accounts.—(1) The Institute shall, with the approval of the Board, submit, by such date as may be prescribed, to the Federal Government its budget in the prescribed form showing its estimated receipts and expenditure.

(2) The funds of the Institute shall be kept in the personal ledger account of the Institute with the National Bank of Pakistan acting as an agent of the State Bank of Pakistan.

(3) The accounts of the Institute shall be maintained in such form and manner as the Auditor-General of Pakistan may from time to time determine in consultation with the Federal Government.

(4) The accounts of the Institute shall be audited by one or more auditors who are chartered accountants within the meaning, of the Chartered Accountants Ordinance, 1961 (X of 1961), and are appointed by the Board in consultation with the Auditor-General of Pakistan.

12. Delegation of powers. The Board may, by general or special order in writing, direct that all or any of its powers under this Ordinance shall, subject to such conditions and in such circumstances as may be specified in the order, be exercisable also by the Executive Director or any specified member or officer of the Board.

13. Appointment of officers, etc.—(1) The Board of Governors may, subject to the provisions of subsection (2) and such general or special instructions as the Federal Government may give it from time to time, appoint such officers in Grade 18 and above and engage such advisers as it considers necessary for the efficient performance of its functions, on such terms and conditions as it may deem fit.

(2) The Federal Government may direct the Board or the Executive Director to dispense with the services of any officer, adviser or employee of the Institute.

(3) The Board shall constitute one or more committees for the selection of persons for appointment and promotion of officers and employees in various Grades and advisers of the Institute.

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CHAPTER III

MISCELLANEOUS

14. Employment under the Institute to be employment under the Federal Government. Every employment under the Institute shall, for the purposes of the Pakistan Essential Services (Maintenance) Act, 1952 (LIII of 1952), be deemed to be employment under the Federal Government and the said Act shall have effect accordingly.

15. Ordinance XXIII of 1969 not to apply to Institute. Nothing contained in the Industrial Relations Ordinance, 1969 (XXIII of 1969), shall apply to or in relation to the Institute or any of the officers and employees of the Institute.

16. Co-operation with International Organisations. The Institute may, subject to the prior approval of the Federal Government, cooperate with any foreign authority or international organisation in the field of health on the terms and conditions of any programme or agreement for co-operation to which such authority or organisation is a party, or pursuant to any other international agreement made before or after the commencement of this Ordinance.

17. Submission of periodical reports. The Executive Director shall submit to the Federal Government—

(a) such periodical reports and Summaries as may be required by the Federal Government;

(b) annual reports on different research activities;

(c) such periodical returns, accounts, statements and statistics as may be required by the Federal Government;

(d) information and comments asked for by the Federal Government on and specific point ;

(e) copies of the documents required by the Federal Government ; and

(f) original documents required by the Federal Government for examination or for any other purpose.

18. Directives from the Federal Government. The Federal Government may from time to time issue to the Board such directives and instructions as it may consider necessary for carrying out the purposes of this Ordinance and the Board shall be bound to comply with and carry out such directives and instructions.

19. Discoveries and inventions to vest in the Institute. All rights relating to discoveries and inventions and any improvement in materials, methods, processes, apparatus or equipment made by any officers or employee of the Institute in the course of his employment shall vest in the Institute.

20. Continuance of certain rules, etc. All rules and bye-laws of the National Health Laboratories in force immediately before the commencement of this Ordinance shall *mutatis mutandis* and so far as they are not inconsistent with any of the provisions of this Ordinance, continue in force until repealed or altered by rules or regulations made under this Ordinance.

21. Winding up of the Institute, etc.—(1) No provision of any law relating to the winding up of bodies corporate shall apply to the Institute and the Institute shall not be wound up except by order of the Federal Government and in such manner as the Federal Government may direct.

(2) upon the commencement of this Ordinance, the National Health Laboratories, Government of Pakistan, headed by the Director, hereinafter referred to as the Laboratories, shall stand dissolved and upon such dissolution,—

(a) all assets, rights, powers, authorities and privileges and all property, movable and immovable, cash and bank balances, reserve funds, investments and all other interests and rights in or arising out of such property and all debts, liabilities and obligations of whatever kind of the Laboratories shall be transferred to and vest in the Institute;

(b) all contract entered into and all matters and things engaged to be done with or for the Laboratories before such dissolution shall be deemed to have been entered into, or engaged to be done by, with or for the Institute; and

(c) all suits and other legal proceedings instituted by or against the Laboratories before such dissolution shall be deemed to be suits and proceedings by or against the Institute and shall be proceeded or otherwise dealt with accordingly.

22. Transfer of existing employees of the Laboratories to the Institute.—(1) Notwithstanding anything to the contrary in any contract or agreement or in the conditions of service, every person in the service of Pakistan serving, in the Laboratories immediately before the commencement of this Ordinance, including persons on deputation to other organisations or abroad, shall stand transferred to the Institute and become an employee of the Institute on the same terms and conditions, including remuneration, tenure of service, rights and privileges as to pension and gratuity and other matters, as were applicable to him immediately before the commencement of this Ordinance until his employment in the Institute is terminated in accordance with his conditions of service or his terms and conditions are altered by regulations made under section 24, which shall not be less favourable than those by which he was governed immediately before his transfer to the Institute.

(2) If the alteration in the terms and conditions is not acceptable to an employee, the Institute may terminate his employment by giving him compensation equivalent to three months' remuneration unless the contract of service with such employee provides for a shorter notice of termination.

Explanation.——The compensation payable to an employee under this sub-section shall be in addition to and not in derogation of any of his rights as to pension, gratuity, provident fund money or other benefits to which he may be entitled under his contract of service.

(3) No person in the service of Pakistan who is transferred to the Institute under sub-section (1) shall, notwithstanding anything contained in any law for the time being in force, be entitled to any compensation because of such transfer.

(4) The Federal Government shall pay pension charges and gratuity in respect of, and provident fund accumulations of, each employee transferred to the Institute under sub-section (1) in such manner and to such extent as may be prescribed.

23. Power to make rules. The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Ordinance.

24. Power to make regulations. The Board may, with the previous approval of the Federal Government, by notification in the official Gazette, make such regulations not inconsistent with the provisions of this Ordinance and the rules made thereunder as it may consider necessary or expedient for the administration and management of the affairs of the Institute.

25. Removal of difficulties. If any difficulty arises in giving effect to any of the provisions of this Ordinance, the Federal Government may make such order, not inconsistent with the provisions of this Ordinance, as may appear to it to be necessary for the purpose of removing the difficulty.

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THE NATIONAL INSTITUTE OF CARDIOVASCULAR DISEASES (ADMINISTRATION) ORDINANCE, 1979

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THE NATIONAL INSTITUTE OF CARDIOVASCULAR DISEASES (ADMINISTRATION) ORDINANCE, 1979

ORDINANCE NO. I OF 1979

[7th January, 1979]

An Ordinance to provide for the proper administration of the affairs of the National Institute of Cardiovascular Diseases, Karachi.

WHEREAS it is expedient to provide for the proper administration of the affairs of the National Institute of Cardiovascular Diseases, Karachi, and for matters connected therewith or ancillary thereto;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of the fifth day of July, 1977, read with the Laws (Continuance in Force) Order, 1977, *(C. M. L. A. Order No. 1 of 1977)*, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance :—

CHAPTER I
PRELIMINARY

1. Short title, extent and commencement.—(1) This Ordinance may be called the National Institute of Cardiovascular Diseases (Administration) Ordinance, 1979.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions. In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "Chairman" means the Chairman of the Governing Body ;

(b) "Executive Director" means the Executive Director of the Institute ;

(c) "Governing Body" means the Governing Body of the Institute ;

(d) "Institute" means the National institute of Cardiovascular Diseases set up in 1963 and registered as such under the Societies Registration Act, 1860 (XXI of 1860); and

(e) "Trust" means the National institute of Cardiovascular Diseases Trust, Karachi.

3. Ordinance to override other laws. This Ordinance shall have effect notwithstanding anything contained in any other law for the time being in force, or in the Trust Deed of the National Institute of Cardiovascular Diseases Trust, Karachi, dated the 8th May 1976.

4. Vesting of powers, etc., of the Board of Trustees of the Trust in the Governing Body. All the powers and functions of the Board of Trustees of the Trust shall vest in, and be exercised and performed by, the Governing Body and every member of the said Board shall cease to hold office.

5. Incorporation of the Institute.— (1) The Institute shall be a body corporate, to be called the National Institute of Cardiovascular Diseases, having perpetual succession and a common seal

with power, subject to the provisions of this Ordinance, to acquire, hold and dispose of property, both movable and immovable, and shall by the said name sue and be sued.

(2) The Headquarters of the Institute shall be at Karachi.

CHAPTER II

GENERAL

6. Functions of the Institute. The functions of the Institute shall be—

(1) to undertake modern treatment of cardiovascular diseases ;

(2) to acquire latest physical facilities required for carrying out necessary investigation and treatment of cardiovascular diseases;

(3) to seek and enter into cooperation with international and other foreign agencies with the prior approval of the Federal Government in furtherance of the objectives of the Institute;

(4) to carry out research in Cardiovascular Diseases for prevention and control of cardiovascular diseases as well as for its treatment ;

(5) to undertake training of medical students and nurses, both undergraduate and post-graduate, in cardiovascular diseases; and

(6) to develop itself into a Centre of super excellence for the treatment of cardiovascular diseases.

7. Governing Body. The general direction and administration of the affairs of the Institute shall vest in the Governing Body which shall consist of—

1.	Minister for Health, Social Welfare and Population ……..	*Chairman.*
2.	Secretary, Ministry of Health, Social Welfare and Population…….	*Vice-Chairman*
3.	Director General, Health, Ministry of Health and Population……	*Member.*
4.	Executive Director, to be appointed by the Federal Government……...	*Member/Secretary.*
5.	A nominee of the Pakistan Federation of Chambers of Commerce and Industry. ……..	*Member.*
6.	Two persons to be nominated by the Federal Government, of whom one shall be a person possessing medical qualifications…….	*Member.*
7.	A nominee of the Auditor-General of Pakistan…….	*Member.*
8.	The elected Mayor of the Karachi Metropolitan Corporation or, if there is no elected Mayor, a social worker of Karachi to be nominated by the Government of Sind……...	*Member.*
9.	A social worker of Sind, excluding Karachi, to be nominated by the Government of Sind…….	*Member.*

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8. Powers of the Governing Body.—(1) The Governing Body may,—

(a) frame bye-laws to govern the working of the Institute and issue instructions to any committee or sub-committee of the Institute; and

(b) generally supervise the administration and management of the affairs of the Institute and do all such acts and take all such steps as are necessary for the promotion and fulfilment of the objects and purpose of the Institute.

(2) In the discharge of its functions, the Governing Body shall be guided on questions of policy by the instructions, if any, given to it from time to time by the Federal Government which shall be the sole judge as to whether a question is a question of policy, and the Governing Body shall be bound to carry out such directions.

9. Term of office of members.—(1) Unless earlier removed by the Federal Government, the term of members, other than *ex-officio* members, shall be three years.

(2) A member, other than an *ex-officio* member, may resign his office by writing under his hand addressed to the Federal Government.

(3) When a person is appointed to be a member of the Governing Body by virtue of his holding an office or appointment, he shall cease to be such member when he ceases to hold that office or appointment.

10. Executive Director.—(1) The Executive Director shall be the Secretary and Chief Executive Officer of the Institute and shall have the following functions and duties, namely :—

(i) to keep in custody the records and seal of the Institute ;

(ii) to appoint officers and staff upto Grade-17 and superintend and control the administration of the Institute ;

(iii) to authorise payments of monthly salaries and allowances to the employees of the Institute ;

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(iv) to propose budget estimates and supplementary budget estimates and place the same before the Governing Body for approval ;

(v) to pass payment of bills under any heads of the budget duly approved and authorised ;

(vi) to issue notices of meetings of the Governing Body and its committees in consultation with the Chairman and to maintain proper record of minutes and proceedings thereof ;

(vii) to take steps for the implementation of decisions of the Governing Body, committees and sub-committees ;

(viii) to prepare and present the annual budget ;

(ix) to carry on all the correspondence of the Institute ;

(x) to execute deeds and documents on behalf of the Governing Body ; and

(xi) to perform any other duties which may be assigned to him by the Governing Body.

(2) The Executive Director shall be the ex-*officio* member *of* a committee or sub-committee set up by the Governing Body.

(3) The Executive Director shall not, except with the previous approval of the Governing Body in each case or unless already approved in the Budget duly itemised, allow expenditure on items of civil works, or capital expenditure on equipment or automobiles.

11. Meetings of the Governing Body.—(1) The meetings of the Governing Body shall be convened by the Chairman on such date and at such time and place as may be specified by him: Provided that—

(i) not less than four meetings shall be held every year ;

(ii) not less than eight day's notice shall be given to the members specifying the date, time and place of the meeting.

(2) The Governing Body may regulate by regulations the procedure for its meetings.

(3) No act or proceeding of the Governing Body shall be invalid merely on the ground of the existence of a vacancy in, or defect in the constitution of, the Governing Body.

12. Setting up of working groups and Committees. The Governing Body may from time to time appoint such working groups or committees from amongst its members as it may consider necessary to assist it in the performance of its functions and to discharge such of its functions as it may assign to them.

THE PAKISTAN CODE

13. Funds. The funds of the Institute shall consist of—

(a) grants made by the Federal Government ;

(b) donations and endowments ;

(c) income from investments and deposits ;

(d) foreign aid and loans obtained with the approval of the Federal Government ; and

(e) Trust Fund of the Institute.

14. Audit and accounts.—(1) The Executive Director shall prepare the annual budget of the Institute for the ensuing financial year and submit it for approval to the Governing Body.

(2) The funds of the Institute, other than the Trust Fund, shall be kept in the personal ledger account of the Institute with the National Bank of Pakistan acting as an agent of the State Bank of Pakistan.

(3) The Trust Fund shall be invested in Government and other approved securities and the income accruing therefrom shall be used for the purposes of the Institute.

(4) The accounts of the Institute shall be maintained in such form and manner as the Auditor-General of Pakistan may determine in consultation with the Federal Government.

(5) The accounts of the Institute shall be audited by one or more auditors who are chartered accountants within the meaning of the Chartered Accountants Ordinance, 1961 (X of 1961), and are appointed by the Institute in consultation with the Auditor-General of Pakistan.

15. Appointments of officers, etc. The Governing Body may appoint, subject to such general or special orders as the Federal Government may give from time to time, such officers in Grade-18 and above, and engage such consultants or expects, as it may consider necessary for the efficient performance of the functions of the Institute, on such terms and conditions as it may deem fit.

16. International cooperation. The Institute may, with the approval of the Federal Government, cooperative with any foreign agency or International Organization for the further development of its technical capabilities and research activities, pursuant to an international agreement or arrangement made before or after the establishment of the Institute.

CHAPTER III
MISCELLANEOUS

17. Industrial Relations Ordinance, 1969, not to apply. The provisions of the Industrial Relations Ordinance 1969, (XXIII of 1969), shall not apply to or in relation to the Institute or any of the officers or employees of the Institute.

18. Terms and conditions of service, etc., of Government servants working in the Institute.—(1) All persons in the service of Pakistan and serving in connection with the affairs of the Institute in any capacity immediately before the commencement of this Ordinance shall stand transferred for service under the Institute:

Provided that such persons shall—

(i) continue to be Government servants ;

(ii) be deemed to be on deputation to the Institute ;

(iii) be entitled to receive from the Institute for the period of their service under the Institute, pay and allowances which shall not be less than those to which they were entitled immediately before their transfer to the Institute ;

(iv) be governed by such regulations as the Institute may, with the approval of the Federal Government, make, provided that such regulations shall not be less favourable than the rules which would have been applicable to them if their services had not been transferred to the Institute.

(2) The Institute shall, in respect of the persons whose services have been transferred to it under sub-section (1),—

(i) exercise all such administrative and financial powers as were exerciseable by the Federal Government or any authority subordinate to that Government ; and

(ii) initiate disciplinary proceedings against any such person and refer the case of such person to the Federal Government for further action.

(3) The persons whose services have been transferred to the Institute under sub-section (1) shall be entitled to receive from the Federal Government for the whole of their service, including the service under the Institute, pension, gratuity and the amount of commutation of pension in accordance with the rules which would have been applicable to them had they not been transferred for service under the Institute;

Provided that the Institute shall pay to the Federal Government in respect of each such person a sum equal to the sum which bears the same proportion to the total sum paid to such person as the total period of service of such person bears to the period of service rendered by him in the Institute.

(4) The pension, gratuity and the amount of commutation of pension shall be sanctioned by such officer of the Institute as the Federal Government may authorise in this behalf:

Provided that, if such pension is required to be reduced, such officer shall, before sanctioning such pension, obtain formal orders of the Federal Government.

(5) The General Provident Fund accumulations of persons whose services have been transferred to the Institute under sub-section (1) shall remain with the Federal Government, and they shall continue to contribute towards their Provident Fund account;

Provided that temporary advances from such Fund may be sanctioned by the Institute in accordance with the rules applicable to them.

19. Terms and conditions of service of the employees of the Institute.—(1) The officers and stall employed in the Institute before the commencement of this Ordinance shall be entitled to the same terms and conditions to which they were entitled immediately before such commencement and such terms and conditions shall not be varied to their disadvantage.

(2) The officers and staff employed by the Institute after the commencement of this Ordinance shall be entitled to the same pay, allowances and other terms and conditions of service to which the officers and staff of the Federal Government of the corresponding grade may be entitled from time to time.

20. Medical practice by officers. Private practice by officers of the Institute, who are qualified to practise medicine or surgery, shall be governed by regulations made under this Ordinance.

21. Power to make rules. The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Ordinance.

22. Power to make regulations.—(1) The Governing Body may, with the previous approval of the Federal Government by notification in the official Gazette, make such regulations not inconsistent with the provisions of this Ordinance and the rules made thereunder as it may consider necessary or expedient for the administration and management of the affairs of the Institute.

(2) In particular and without prejudice to the generality of the fore-going power, such regulations may provide for—

(a) the uniform pay scales of all categories of employees of the Institute ; and

(b) private practice by officers of the Institute who are qualified to practise medicine or surgery.

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THE MENTAL HEALTH ORDINANCE 2001

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THE MENTAL HEALTH ORDINANCE 2001

ORDINANCE No. VIII OF 2001

[*20th February, 2001*]

An Ordinance to consolidate and amend the law relating to the mentally disordered persons with respect to their care and treatment, the management of their property and other related matters

WHEREAS it is expedient to consolidate and amend the law relating to the treatment and care of mentally disordered persons, to make better provisions for their care, treatment, management of properties and affairs and to provide for matters connected therewith or incidental thereto and to encourage community care of such mentally disordered persons and further to provide for the promotion of mental health and prevention of mental disorder;

AND WHEREAS the National Assembly and the Senate stand suspended in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and the Provisional Constitution Order No. l of 1999;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and the Provisional Constitution Order No. l of 1999, read with the Provisional Constitution (Amendment) Order No.9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance—

CHAPTER I

PRELIMINARY

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1. Short title, extent and commencement.— (1) This Ordinance may be called the Mental Health Ordinance, 2001.

(2) It extends to the whole of Pakistan.

(3) It shall come into force with effect from the 20th day of February, 2001.

2. Definitions.— (1) In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "approved psychiatrist" means a medical practitioner possessing a recognized postgraduate qualification and registered with the Pakistan Medical and Dental Council and also approved by the Authority;

(b) "Authority" means the Federal Mental Health Authority constituted under section 3;

(c) "cost of maintenance" in relation to a mentally disordered person, includes the cost of lodging, maintenance, clothing, medicine and care of mentally disordered person and any expenditure incurred in removing such mentally disordered person to and from a psychiatric facility together with any other charges specified in this behalf by the Government;

(d) "Court of Protection" means a District Court having jurisdiction under this Ordinance in matters specified herein and designated as such by the Government;

(e) "Court" means a Court of Protection;

(f) "Government" means the Federal Government or, as the case may be, the Provincial Government;

(g) "health facility" means any basic health unit, rural health centre, Tehsil hospital, district hospital, teaching hospital and any private medical facility, supervised by a medical practitioner;

(h) "hospital management" means personnel operating and or managing any psychiatric facility or a health facility that has provision for indoor treatment for the mentally disordered;

(i) "informed consent" means voluntary and continuing permission of the patient or if the patient is a minor his nearest relative or guardian, as the case may be, for assessment or to receive a particular treatment based on an adequate knowledge of the purpose, nature, likely effects, and risks of that treatment including the likelihood of its success and any alternatives to it and the cost of treatment;

(j) "Magistrate" means a Judicial Magistrate of the first class specially empowered by the Government to perform functions and exercise powers of a Magistrate under this Ordinance;

(k) "medical officer" means a medical graduate serving in a Government health facility and registered with the Pakistan Medical and Dental Council;

(l) "medical practitioner" means a medical graduate registered with the Pakistan Medical and Dental Council with good standing;

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(m) "mental disorder" means mental illness, including mental impairment, severe personality disorder, severe mental impairment and any other disorder or disability of mind and "mentally disordered" shall be construed accordingly and as explained hereunder;

(i) "mental impairment" means a state of arrested or incomplete development of mind (not amounting to severe mental impairment) which includes significant impairment of intelligence and social functioning and is associated with abnormally aggressive or seriously irresponsible conduct on the part of the person concerned and "mentally impaired" shall be construed accordingly;

(ii) "severe personality disorder" means a persistent disorder or disability of mind (whether or not including significant impairment of intelligence) which results in abnormally aggressive or seriously irresponsible conduct on the part of the person concerned;

(iii) "severe mental impairment" means a state of arrested or incomplete development of mind which includes severe impairment of intelligence and social functioning and is associated with abnormally aggressive or seriously irresponsible conduct on the part of the person concerned and "severely mentally impaired" shall be construed accordingly;

Explanation:—Nothing contained in clause (m), sub-clauses (i), (ii) and (iii) above shall be construed as implying that a person may be dealt with under this Ordinance as suffering from mental disorder or from any other form of such mental disorder defined in this section, by reason only of promiscuity or other immoral conduct, sexual deviancy or dependence on alcohol or drugs.

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(n) "mentally disordered prisoner" means a person, who is a prisoner for whose detention in or removal to a psychiatric facility or other place of safety, an order has been made in accordance with the provisions of section 466 or section 471 of the Code of Criminal Procedure, 1898 (Act V of 1898), section 30 of the Prisoners Act, 1900 (III of 1900), section 130 of the Pakistan Army Act, 1952 (XXXIX of 1952) section 143 of the Pakistan Air Force Act, 1953(VI of 1953) or section 123 of the Pakistan Navy Ordinance,1961 (XXXV of 1961);

(o) "minor" means a child or adolescent not having attained the age of eighteen years;

(p) "patient" means a person who is under treatment and care;

(q) “place of safety” means a Government run health facility, a psychiatric facility, or residence of any suitable relative who is willing to temporarily receive the patient;

(r) “prescribed” means prescribed by rules or regulations as the case be, made under this Ordinance;

(s) “psychiatric facility” means a hospital, institute, ward, clinic, nursing home, day-care institution, half-way house, whether in public or private sector involved in the care of mentally disordered persons:

(t) “psychiatrist” means a medical practitioner possessing a recognized postgraduate qualification in psychiatry and registered with the Pakistan Medical and Dental Council;

(u) "relative" means and includes any person related by blood or marriage or adoption under the personal law, with the mentally disordered person;

(v) "rules" means the rules made under this Ordinance;

(w) "specialized psychiatric treatments" means electro-convulsive treatment, anti-psychotic depot injection, psychosurgery, and such other form of treatment as may be specified for the purposes of this Ordinance; and

(x) "treatment of mentally disordered person" means the assessment and "treatment of a mentally" disordered person and shall include assessment, care, training, rehabilitation as well as rehabilitation techniques or measures, as the case may be.

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CHAPTER II

ESTABLISHHMENT OF FEDERAL MENTAL HEALTH AUTHORITY

3. Federal Mental Health Authority.—(1) For the purposes of this Ordinance, the Federal Government shall constitute, by notification in the official Gazette, the Federal Mental Health Authority.

(2) The Authority shall consist of a Chairperson and not more than fourteen members to be appointed by the Federal Government.

(3) The members of the Authority shall be as follows:

(i) Secretary, Ministry of Health, Government of Pakistan;

(ii) Director General, Ministry of Health, Government of Pakistan;

(iii) Provincial Health Secretaries;

(iv) Advisor psychiatry, Medical Directorate, General Headquarters (GHQ); and

(v) Seven eminent psychiatrists of at least ten years good standing.

(4) The Chairperson and the members of the Authority, other than *ex-officio* members, shall be appointed on such terms and conditions as may be determined by the Federal Government.

(5) The Chairperson and the members of the Authority shall be appointed for a tenure of four years. The Chairperson and a member may resign from his office in writing addressed to the Secretary, Ministry of Health, Government of Pakistan.

(6) The Chairperson or a member of the Authority may be removed from his office by the Federal Government, for reasons of misconduct, or if he is unable to perform functions of his office, on account of mental or physical incapacity or for any other reason.

(7) The Authority established under sub-section (1) shall carry out the following functions.

(a) advise the Government on all matters relating to promotion of mental health and prevention of mental disorder;

(b) develop and establish new national standards for care and treatment of patients;

(c) recommend measures to improve existing mental health services and setting up of child and adolescence, psychogeriatric, forensic, learning disability and community based services;

(d) prescribe procedures with respect to setting up and functioning of the mental health services and facilities;

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(e) prescribe a code of practice to be implemented for achieving the purposes and objects of this Ordinance as well as to be followed by all the mental health personnel involved with the care of patients under this Ordinance;

(f) provide for regular review by the Board of Visitors to ensure that the provisions of this Ordinance for assessment and treatment are being properly carried out, whether or not requested by any individual, patient or his relative;

(g) prescribe for care, aftercare or rehabilitation, under supervision or otherwise;

(h) provide for and regulate the setting up of help lines and crisis centres for the general public with regard to mental health;

(i) provide for, organize and regulate public awareness programs and promote research, publish journals, bulletins, magazines, and other educational material on mental health issues;

(j) discharge such other functions with respect to matters relating to mental health as the Government may require;

(k) register psychiatrists for the purposes of this Ordinance, in such manner as may be prescribed; and

(l) arrange and organize such courses and training programs as may be necessary for carrying out the purposes and objects of this Ordinance.

(8) The Authority may, by notification in the official gazette, make regulations in respect of functions specified in sub-section (7).

4. Constitution of Board of Visitors. — (1) The Authority shall, in consultation with the Government concerned, establish Boards of Visitors for carrying out the purposes of this Ordinance as hereinafter provided.

(2) There shall be a Board of Visitors at the provincial level which shall consist of:

(a) A Chairperson who is or has been a Judge of the High Court;

(b) two psychiatrists, one having a minimum experience ten years to Government service;

(c) one prominent citizen of good standing;

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(d) two medical practitioners of repute with a minimum standing of twelve years, one of whom shall be nominee of Pakistan Medical and Dental Council; and

(e) Director-General Health Services of the Province, or his nominee.

(3) The Chairperson and members of the Board shall be appointed for a tenure of two years.

(4) No member shall be deputed to perform any duty as a visitor to a psychiatric facility wherein he has a direct or indirect conflict of interest.

5. Powers and functions of the Board.— (1) The Board may, at any time, enter and inspect any psychiatric facility within its area of responsibility and require the production of any records and documents for inspection to ensure that they are in proper order.

(2) The Board shall periodically inspect every part of a psychiatric facility and examine as far as possible every patient and mentally disordered prisoner. The Board shall inspect records and documents relating to the patients and mentally disordered prisoners since last visitation by the Board.

(3) The Board may make recommendations to a psychiatric facility, the Authority and the Government, concerning improvement of conditions of such facility.

(4) The Authority may order the Board to visit any patient in case it appears necessary for the purpose of investigating any particular matter, or matters related to the capacity of the patient to manage his property and affairs, or otherwise, relating to the exercise of its functions. In of compliance of this order, the board may visit the facility or nominate a sub-committee of not less than two members:—

(a) the Board or the sub-committee, making a visit under this sub-section shall make such report on the visit as the Authority may order;

(b) the Board or the sub-committee, making a visit under this sub-section may interview and examine a patient in private and may require the production of and inspect any documents and/or medical records relating to the patient;

(c) where the sub-committee visits a facility it shall report to the Board and the Board shall make its final report to the Authority; and

(d) where the Board or a sub-committee is to visit a mentally disordered prisoner, it shall also include the Inspector General of Prisons, or his nominee.

(5) Where the Board is satisfied that any patient in a psychiatric facility is not receiving proper care or treatment, it may report the matter to the Authority which may issue such directions as it may deem fit to the medical practitioner, or psychiatrist incharge of the psychiatric facility, as the case may be, who shall be bound to comply with such directions.

(6) The Board shall enter remarks to a register to be kept for that purpose in regard to the management and condition of a psychiatric facility and the inmates therein.

(7) Any information obtained by any member of the Board in the course of his duties or which comes to the knowledge otherwise, shall not be disclosed except to the authorised person (s).

6. Establishment of psychiatric facilities by the Government.— (1) The Federal Government may in any part of Pakistan, or the Provincial Government may within the limits of a Province, establish or maintain psychiatric facilities for the assessment, admission, treatment, rehabilitation, care and after care of mentally disordered patients at such places, as it deems fit.

(2) The psychiatric facilities established under sub-section (1) may organize or maintain separate units for—

(a) persons who are above the age of eighteen years;

(b) child and adolescence psychiatric units;

(c) psychogeriatric units for the elderly; and

(d) persons who have been convicted of any offence and are mentally disordered for whom special security measures shall be required.

(3) Where drug dependence units need to be established, they shall be set up separately which may be within the premises of the psychiatric facility for people who are not mentally disordered but have drug dependence or patients with drug induced behavioural changes.

CHAPTER III

ASSESSMENT AND TREATMENT

7. Care in the Community.— Community based mental health services shall be set up for providing mentally disordered persons, their families and others involved in their care with guidance, education, rehabilitation, after care and preventive measures and other support services on an informal basis.

Explanation:—For the purposes of this section, community shall include, family, home, work place, educational institutions and other places where care and after care can be provided on an informal or voluntary basis.

8. Care and Treatment on an informal or voluntary basis.— Any person who himself seeks or is brought by a relative or is referred by a medical practitioner or is referred by any authority for forensic psychiatric assessment, shall be examined by a psychiatrist or a medical officer nominated by him who shall record his findings in writing and decide that the patient be treated on an out-patient basis or otherwise. Any such person on withdrawal of his consent may be discharged in accordance with the provisions of this Ordinance.

9. Duration for periods of detention for assessment, treatment, urgent admission and emergency holding.— For the purposes of this Ordinance, there at a four types of detention of a patient, namely; (1) admission for assessment, (2) admission for treatment, (3) urgent admission, and (4) emergency holding. The duration for each type of detention shall be as follows:

(a) The period of detention for the purposes of assessment shall be up to 28 days from the date of application made under section 10;

(b) The period of detention for the purposes of treatment shall be up to six months from the date of application made under section 11, and is renewable under the provisions of the said section;

(c) The period of detention for the purposes of urgent admission shall be up to 72 hours from the time of application made under section 12; and

(d) The period of detention in the case of a patient for the purposes of emergency holding already in hospital, shall be up to 24 hours from the time of application made under section 13.

10. Admission for assessment.— (1) A patient may be admitted to a Psychiatric Facility and detained there for the period allowed by sub-section (4) in pursuance of an application made in accordance with sub-sections (2) and (3).

(2) An application for admission for assessment may be made in respect of a patient on the grounds that—

(a) he is suffering from mental disorder of a nature or degree which warrants the detention of the patient in a psychiatric facility for assessment (or for assessment followed by initial treatment) for at least a limited period; and

(b) he ought to be so detained in the interests of his own health or safety or with a view to the protection of other persons; and

(c) specifying that care and treatment in the community and on an informal and voluntary basis is not possible.

(3) An application for admission for assessment shall be founded on the written recommendations in the prescribed form of two medical practitioners, one of whom should be a medical officer and one should be a psychiatrist, or where a psychiatrist is not available, a medical practitioner with experience in psychiatry, including in each case a statement that in the opinion of such medical practitioners the conditions set out in sub-section (2) above are complied with.

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(4) A patient admitted to a psychiatric facility in pursuance of an application for admission for assessment may be detained for a period not exceeding 28 days beginning with the day on which application was made under this section, but shall not be detained after the expiration of that period unless before it has expired he has become liable to be detained by virtue of a subsequent application, order or direction under the provisions of this Ordinance.

(5) Where a psychiatrist deems it fit he may discharge the patient from detention and advise the patient to continue treatment on voluntary basis.

(6) The patient, his relatives or guardian shall have the right of filing only one appeal against the order of detention under this section to a Court of Protection within a period of 14 days from the day on which the application was made. The decision of the Court of Protection shall be final for the period of detention under this section.

11. Admission for treatment.— (1) A patient may be admitted to a psychiatric facility and detained there for the period allowed by the following provisions, in pursuance of an application made in accordance with this section.

(2) An application for admission for treatment may be made in respect of a patient on the grounds that—

(a) he is suffering from mental illness, severe mental impairment severe personality disorder or mental impairment and his mental disorder is of a nature of degree which makes it appropriate for him to receive medical treatment in a psychiatric facility; and

(b) it is necessary for the health or safety of the patient or for the protection of other persons that he should receive such treatment and it cannot be provided unless he is admitted under this section.

(3) An application for admission for treatment shall be founded on the written recommendations, on the prescribed form of two medical officers, one of whom shall be an approved psychiatrist, including in each case a statement that in the opinion of such medical officers the conditions set out in sub-section (2) above are complied with; and each such recommendation shall include

(a) such particulars as may be prescribed of the grounds for that opinion so far as it relates to the conditions set out in clause (a) of that sub-section; and

(b) a statement of the reason for that opinion so far as it relates to the conditions set out in clause (b) of that sub-section, specifying, whether other methods of dealing with the patient are available and, if so, why they are not appropriate.

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(4) A patient admitted to a psychiatric facility in pursuance of an application under this section may be detained in a psychiatric facility, for a period not exceeding six months allowed by clause (b) of section 9 but shall not be so detained or kept for any longer period unless the authority for his detention is renewed under this section

(a) the authority for detention of a patient may, unless the patient has previously been discharged, be renewed from the expiration of the period of six months referred to in sub- section above, for a further period of six months;

(b) from the expiration of any period of renewal under clause (a) above, for a further period of one year, if necessary and so on for periods of one year at a time.

(5) The patient, his relative or guardian may file an appeal against the order of detention under this section to a Court of Protection:

Provided that only one appeal shall lie during the subsistence of each period of detention.

12. Admission for assessment in cases of urgency.— In any case of urgent necessity, an application for admission for assessment may be made in respect of a patient in accordance with the following provisions

(i) an urgent application may be made either by a relative of the patient or medical officer; and every such application shall include a statement that it is of urgent necessity for the patient to be admitted and detained under this section and that compliance with the provisions relating to an application for treatment, under section 11 would involve undesirable delay;

(ii) an urgent application shall be sufficient in the first instance if founded on the medical recommendation of an approved psychiatrist or his nominated medical officer and if practicable, the nominated medical officer shall not be the same medical officer referred to in sub-clause (i) above;

(iii) an urgent application shall cease to have effect after 72 hours from the time when the patient is admitted under this section to the psychiatric facility unless

(a) the second medical recommendation required by section 11 above is given and received by the psychiatrist in-charge of the facility within the said period of 72 hours; and

(b) that such recommendation and the recommendation referred to in sub-clause (ii)above together comply with all the requirements as contained in section 17.

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13. Emergency Holding.— If in the case of a patient who is receiving treatment for mental disorder as an inpatient in a psychiatric facility who wishes or attempts to leave and it appears to a medical officer—

(i) that the patient is suffering from mental disorder to such a degree that it is necessary for his health or safety or for the protection of others, for him to be prevented from leaving the facility, and

(ii) that it is not practicable to secure the immediate attendance of the psychiatrist in-charge or his nominated medical officer for the purpose of furnishing a medical recommendation,

the medical officer shall record that fact in writing and in that event the patient may be detained in the hospital for a period of 24 hours from the time when the fact is so recorded or until the earlier arrival of the psychiatrist incharge or his nominated medical officer.

14. Emergency Powers.— Where in case of an emergency a medical practitioner is unable to obtain informed consent in writing, he may administer treatment, notwithstanding the provisions of section 51, that in his professional opinion, is necessary for:—

(i) saving the patient's life; or

(ii) preventing serious deterioration of his condition; or

(iii) alleviating serious suffering by the patient; or

(iv) preventing the patient from behaving violently or being a danger to himself or to others.

15. Application by whom to be presented.—(1) Subject to the provisions of sub-section (3) the application on a prescribed form shall be presented by the husband or wife of the patient or, if there is no husband or wife or the husband or wife is prevented by reason of mental disorder, absence from Pakistan or otherwise from making the presentation, by the nearest relative of the patient.

(2) If the application is not presented by the husband or wife, or, where there is no husband or wife by the nearest relative of the patient, the application shall contain a statement of the reasons why it is not so presented, by the husband, wife or the nearest relative and of the connection of the applicant with the patient, and the circumstances under which he presents the application.

(3) No person shall present an application unless he has attained the age of majority and has within fourteen days before the presentation of the application, personally seen the said patient.

(4) The application shall be signed and verified by the applicant, and the statement of prescribed particulars by the person making such statement.

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16. Effect of application for admission.—(1) An application for the admission of a patient to a psychiatric facility under this Ordinance, duly completed in accordance with the section under which he is being admitted, shall be sufficient authority for the applicant or any person authorized by the applicant, to take the patient and convey him to a psychiatric facility at any time within the following periods, that is to say—

(a) in the case of an application made other than an emergency application within the period of 14 days beginning with the date from which the patient was last examined by an approved psychiatrist or medical officer, as the case may be, before giving a medical recommendation for the purposes of the application;

(b) in the case of an emergency application, under section 12, the period of 24 hours beginning at the time when the patient was examined by an

approved psychiatrist or his nominated medical officer giving the medical recommendation which is referred to in section 11 above, or at the time when the application is made, whichever is the earlier.

(2) Where a patient is admitted within the said period to a psychiatric facility as mentioned in sub-section (1), on an application made under sections 10, 11 or 12, as the case may be, the application shall be sufficient authority for the hospital management to detain the patient in the said facility in accordance with the provisions of this Ordinance.

(3) Any application for the admission of a patient under sections 10, 11 or 12, as the case may be, and which appears to be duly made and is founded on the necessary medical recommendations, may be acted upon without further proof of the signature or qualification of the person by whom the application or any such medical recommendation is made or given or of any matter of fact or opinion stated therein.

(4) Once a patient is admitted to a psychiatric facility in pursuance of an application for admission for treatment, any previous application under this Ordinance by virtue of which he was detained in a psychiatric facility shall cease to have effect.

17. General provisions as to applications and medical recommendations.— (1) General provisions as to applications

(a) subject to provisions of this section, an application for admission for assessment or for treatment may be made either by the nearest relative of the patient, by an approved psychiatrist or nominated medical officer; and every such application shall specify the qualification of the applicant to make such an application;

(b) every application for admission shall be addressed to the hostel management to which admission is sought;

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(c) before or within a reasonable time after an application for the admission of a patient for assessment is made by an approved psychiatrist or a nominated medical officer, as the case may be, he shall take such steps as are practicable to inform the person (if any) appearing to be the nearest relative of the patient, that the application is to be or has been made;

(d) none of the applications mentioned in sub-section (1) above shall be made by any person in respect of a patient unless that person has personally seen the patient with the period of 14 days ending with the date of application;

(e) any recommendation given for the purposes of an application for admission for treatment, may describe the patient as suffering from more than one form of mental disorder, namely, severe mental

impairment, severe personality disorder, mental impairment, or any other disorder of disability of mind:

Provided that the application shall be of no effect unless the patient is described in each of the recommendations as suffering from the same form of mental disorder whether or not he is also described in either of those recommendations as suffering from another form.

(f) each of the applications mentioned in sub-section (1) above shall be sufficient if the recommendations on which it is founded are given either as separate recommendations, or as a joint recommendation signed by the medical officer and a psychiatrist.

(2) General provisions as to medical recommendations:—

(a) where recommendations are required for the purposes of an application under this Ordinance, they shall be signed on or before the date of the application, and shall be given by a medical officer or an approved psychiatrist who have examined the patient either together or separately, but where they have examined the patient separately not more than five days must have elapsed between the days on which those separate examinations took place.

(b) of the medical recommendations given for the purposes of any application as referred under clause (a) above, one shall be given by an approved psychiatrist and unless that psychiatrist has previous acquaintance with the patient, the other such recommendation shall, if practicable, be liven by a medical officer who has such previous acquaintance.

18. Rectification of application and recommendations.— (1) If within the period of 14 days beginning with the day on which application was made in respect of the patient to be admitted to a psychiatric facility for assessment or for treatment the application or any medical recommendation given for the purposes of the application, is found to in any respect incorrect or defective, the recommendation or application may, within that period and with the consent of the management of the psychiatric facility, be amended by the person by whom it was signed; and upon such amendment being made the application or recommendation shall have effect and shall be deemed to have had effect as if it had been originally made as so amended.

(2) Without prejudice to sub-section (1) above, if within the period mentioned in that sub-section it appears to the management of the psychiatric facility that one of the two medical recommendations on which the application for admission of a patient is founded is insufficient to warrant the detention of the patient in pursuance of the application, they may, within that period, give notice in writing to that effect to the applicant; and where any such notice is given in respect of

a medical recommendation, that recommendation shall be disregarded, but the application shall be, deemed always to have been, sufficient if—

(a) a fresh recommendation complying with the relevant provisions of this Ordinance (other than the provisions relating to the time of signature and the interval between examinations) is furnished to hospital management within that period; and

(b) the fresh recommendation, and the other recommendation given earlier on which the application is founded, together comply with those provisions.

(3) where the medical recommendations upon which an application for admission is founded are, taken together, insufficient to warrant the detention of the patient in pursuance if the application, notice under sub-section (2) above may be given in respect of either of those recommendations but this sub-section shall not apply in a case where the application is of no effect by virtue of clause (e) of sub-section (1) of section 17 above.

(4) Nothing in this section shall be construed as authorizing the giving of notice in respect to an application made as an emergency application, or the detention of a patient admitted in pursuance of such an application after the period of 72 hours referred to in clause (iii) of section 12 above unless the conditions set out in clauses (a) and (b) of that section are complied with or would be complied with apart from any error or defect to which this applies.

19. Mentally disordered persons found in public Places.— (1) If an officer in charge of a police station finds in a place to which the public have access, a person whom he has reason to believe, is suffering from a mental disorder and to be in immediate need of care or control the said officer may, if he thinks it necessary to do so in the interest of that person or for the protection of other persons, remove that person to a place of safety, which means only a Government run health facility, a Government run psychiatric facility or hand him over to any suitable relative who is willing to temporarily receive the patient.

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(2) A person removed to a place of safety under this section may be detained there for a period not exceeding 72 hours for the purpose un enabling him to be examined by a psychiatrist or his nominated medical officer and for making any necessary arrangements for his treatment or care.

CHAPTER IV

LEAVE AND DISCHARGE

20. Order of leave.— (1) An application in the prescribed form, for leave to absence in regard to any mentally disordered person (not being a mentally disordered prisoner) who is formally admitted in any psychiatric facility may be made to the psychiatrist in charge of the facility, by a relative who is desirous of taking care and custody of such mentally disordered person for a specified period, requesting that he may be allowed on his application to take care and custody of

such a patient and subject to the assessment by a psychiatrist, in charge of the said facility, who may allow or deny the said application:

Provided that no application under this subsection shall be made by a person who has not attained the age of majority.

(2) Every application under subsection (1) shall be accompanied by an undertaking—

(a) to take proper care of the mentally ill patient;

(b) to prevent the mentally ill patient from causing injury to himself or to others; and

(c) to bring back the mentally ill patient to the said facility on the expiry of the period of leave.

(3) On receipt of the application under sub-section (1), the psychiatrist in charge may grant leave of absence to the mentally ill person for such period as he may deem necessary and subject to such conditions as may, in the interests of the personal safety of the mentally ill patient or for the protection of others, be specified in the order.

(4) In case a patient is not returned by the relative after a specified period of leave, the said psychiatrist shall report to the Magistrate, in whose jurisdiction the psychiatric facility is situated, and the referring authority and the Magistrate if satisfied, may direct the police to recover and return the said patient to the psychiatric facility.

(5) In any case where a patient is absent from a psychiatric facility in pursuance of order of leave granted under this section and it appears to the psychiatrist that is it necessary to do so in the interest of the patients' safety or for the protection of other persons, he may by notice in writing given to the patient or to the person for the time being in-charge of the patient, revoke the leave to absence and recall the patient to the psychiatric facility.

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(6) If after the passage of reasonable time after the notice as given under sub-section (5) above, the patient does not return or is not returned, then the psychiatrist may report to the Magistrate and the referring authority of the reasons of revoking the leave of absence.

(7) If the Magistrate is satisfied with the report of the psychiatrist and the reasons as mentioned in this section, he may direct the police to locate and produce the patient before him on a specified date and the Magistrate after hearing the patient, the person in charge and the concerned psychiatrist or their representatives, may make an order placing the patient in the psychiatric facility or allow him to continue being in the care and custody of the person in charge or may make such other orders as he may deem fit.

(8) Without prejudice to what has been stated above in this section, the period of detention under provisions of section 10 or 11 shall continue during the period for which order of leave was granted:

Provided that a patient in whose favour order of leave has been granted under this section shall not be recalled, after he has ceased to be liable to be detained for the periods specified under section10 or 11, unless he is absent, at the expiration of period specified under the above referred sections, without leave from the psychiatric facility.

21. Discharge of a patient.— (1) The psychiatrist in-charge of the treatment of a patient, may by order in writing, direct discharge of the patient at any time he deems it appropriate.

(2) Where any order of discharge is made under subsection (1), in respect of a person who has been admitted or is undergoing treatment as a patient in pursuance of an order of a referring authority, a copy of such order shall be immediately forwarded to that authority by the psychiatrist in charge.

(3) Any person admitted in a psychiatric facility under an order made in pursuance of an application made under this Ordinance, may be discharged on an application made to the psychiatrist in charge:

Provided that no patient shall be discharged under this section if the psychiatrist in charge certifies in writing that the patient is unfit to be discharged for reasons of his own health and safety or the safety of others.

22. Application by a patient for discharge.—(1) Any patient, not being a mentally disordered prisoner, who feels that he has recovered from his mental disorder, may make an application to the Magistrate for his discharge from the psychiatric facility.

(2) The Magistrate may after making such inquiry as he may deem fit, pass an order discharging the person or dismiss the application:

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Provided that no subsequent application for discharge shall be made by the patient during the said period of detention.

23. Discharge of a detained person found not to be mentally dis-ordered after assessment.— If any person admitted in a psychiatric facility is subsequently found not to be mentally disordered and is capable of taking care of himself and managing his affairs, an approved psychiatrist, of the said facility shall forthwith, discharge such person from the psychiatric facility and notify the fact to the referring authority and the nearest relative.

24. Duty of hospital management to inform relatives of the discharge.— Where a patient detained under this Ordinance in a psychiatric facility is to be discharged, the management of the psychiatric facility shall take such steps as are practicable to inform the relative (if any), of the patient and or the applicant (if any), and or any suitable person who is willing to accept the

responsibility to take care and custody of the said patient; and that information shall, if practicable, be given at least seven days before the date of discharge.

25. Application for discharge to Magistrate.— Where any patient is admitted under section 10 or 11, his relatives may apply to the Magistrate within the local limits of whose jurisdiction the psychiatric facility is situated for his discharge and the Magistrate may, in consultation with psychiatrist in charge of the treatment, after giving notice to the person at whose instance he was admitted and after making such inquiry as he may deem fit, either allow or dismiss the application:

Provided that no subsequent application for discharge shall be made during the said period of detention.

26. Notice about serious illness or death.— If a patient becomes seriously ill or dies, that fact shall be notified to his nearest relatives, if known or on whose application the patient was admitted and also to the authority by whom the patient was referred to the psychiatric facility.

27. Transfer and removal.— Transfer and removal of patient placed in a psychiatric facility to another such facility in the same Province or some other Province shall be carried out in accordance with any general or special order of the Provincial Government with the consent of the other Provincial Government, provided that a notice of such intended transfer or removal has been given to the applicant.

28. Foreign nationals.—(1) When an arrangement has been made with any foreign state with respect to the placement of a patient, the Federal Government may issue a notification under this Ordinance directing the Provincial Government concerned within which such order may be made.

(2) On publication of a notification under sub-section (1), the agent of the foreign state in which the alleged mentally disordered person ordinarily resides may make an application for an order to the Provincial Government concerned.

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(3) The functions of the Magistrate shall be performed by such officer as the Provincial Government may by general or special order appoint in this behalf, and such officer shall be deemed to be the Magistrate having jurisdiction over the alleged mentally disordered person for the purposes of this section.

(4) The Provincial Government may specify approved psychiatrists for the purposes of this section.

CHAPTER V

JUDICIAL PROCEEDINGS FOR APOINTMENT OF GUARDIAN OF PERSON AND MANAGER OF THE PROPERTY OF THE MENTALLY DISORDERED

29. Judicial proceedings.— Whenever any person is possessed of property and is alleged to be mentally disordered, the Court of Protection, within whose jurisdiction such person is residing may, upon application by any of his relatives having obtained consent in writing of the Advocate General of the Province concerned, by order direct an inquiry for the purpose of ascertaining whether such person is mentally disordered and incapable of managing himself, his property and his affairs.

30. Regulation of proceedings of the Court of Protection.—(1) The following provisions shall regulate the proceedings of the Court of Protection with regard to the matter to which they relate, namely:—

(a) Notice shall be given to the mentally disordered person of the time and place at which it is proposed to hold the inquiry;

(b) if it appears that personal service on the alleged mentally disordered person would be ineffectual, the Court may direct such substituted service of notice as it thinks fit;

(c) the Court may also direct copy of such notice to be served upon any relative of the alleged mentally disordered person and upon any other person to whom in the opinion of the Court notice of the application should be given;

(d) the Court may require the alleged mentally disordered person to attend, at such convenient time and place as it may appoint for the purpose of being personally examined by the Court, or to any person from whom the Court may desire to have a report of the mental capacity and condition of such mentally disordered person;

(e) the Court may likewise make an order authorising any person or persons therein named to have access to the alleged mentally disordered person for the purpose of personal examination; and

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(f) the attendance and examination of the alleged mentally disordered person under the provisions of clause (d) and clause (e) shall, if the alleged mentally disordered person be a woman who, according to customs of the country, ought not to be compelled to appear in public, be regulated by the law and practice for the examination of such persons in other civil cases.

(2) The Court, if it thinks fit, may appoint two or more persons to act as assessors to the Court in the said proceedings.

(3) Upon the completion of the inquiry, the Court shall determine whether the alleged mentally disordered person is suffering from mental disorder and is incapable of managing himself and his affairs, or may come to a special finding that such person lacks the capacity to manage his

affairs, but is capable of managing himself and is not dangerous to himself or to others, or may make any such order it deems fit, in the circumstances of the case, in the best interests of such person.

31. Inquiry by subordinate Court on commission issued by the Court of Protection and proceedings thereon.— (1) If the alleged mentally disordered person resides at a distance of more than fifty miles from the place where the Court is held to which the application is made, the said Court may issue a Commission to any sub-ordinate Court to make the inquiry, and such subordinate court shall thereupon conduct the inquiry in the manner hereinbefore provided.

(2) On the completion of inquiry the subordinate court shall transmit the record of its proceedings with the opinion of the assessor, if any have been appointed, and its own opinion on the case; and the Court shall thereupon proceed to dispose the application in the manner provided in sub-section (3) of section 30:

Provided that the Court may direct the subordinate court to make such further or other inquiry as it thinks fit before disposing of the application.

32. Appointment of guardian.— Where a mentally disordered person is incapable of taking care of himself, the Court may appoint any suitable person to be his guardian, or order him to be looked after in a psychiatric facility and order for his maintenance.

33. Management of property of mentally disordered person.—(1) Where the property of the mentally disordered person who is incapable of managing it, the Court shall appoint any suitable person to be the manager of such property.

(2) No person, who is a legal heir of a mentally disordered person, shall be appointed under section 32 to be the guardian of such a person or the manager of his property, as the case may be, unless the Court for reasons to be recorded in writing considers that such appointment is for the benefit of the mentally disordered person.

(3) The guardian of a mentally disordered person and the manager of his property appointed under this Ordinance shall be paid, from out of the property of the mentally disordered person, such allowance as the Court may determine.

34. Responsibility of manager.— A person appointed as a manager of the property of a, under this Ordinance, shall be responsible for the care, cost of treatment and maintenance of the mentally disordered person and of such member(s) of his family as are dependent on him.

35. Allowance payable to guardian.— The manager of the property of the patient shall pay to the guardian of the patient such allowances as may be fixed by the Court for the care and maintenance of the patient and of such members of his family as are dependent on him.

36. Powers of manager of property of mentally disordered person.— (1) Every manager appointed under this Ordinance shall, subject to the provisions of this Ordinance, exercise the same power in regard to the management of the property of the mentally disordered person in respect of which he is appointed as manager, as the mentally disordered person would have exercised

as owner of the property, had he not been mentally disordered and shall realize all claims due to the estate of the mentally disordered person and pay all debts and discharge all liabilities legally due from that estate and in exercise of powers under this section regard shall be had first of all to the requirements of the mentally disordered person and the rights of the creditors, if any:

Provided that no manager so appointed shall without the permission of the Court—

(a) mortgage, create any charge on, or transfer by sale, gift, exchange or otherwise, any movable or immovable property of the mentally disordered person; or

(b) lease out or give on bailment any such property.

(2) The permission under proviso to sub-section (1) may be granted subject to such conditions or restrictions as the Court may think fit to impose.

(3) The Court shall cause notice of every application for permission to be served on any relative or friend of the mentally disordered person and after considering objections, if any, received from the relatives or friends and after making such inquiries as it may deem necessary, grant or refuse permission having regards to the interest of the mentally disordered person.

37. Furnishing of inventory of immovable property, etc.—(1) Every manager appointed under this Ordinance shall, within a period of three months from the date of his appointment, deliver to the Court an inventory of the immovable property belonging to the mentally disordered person and of all assets and other movable property received on behalf of the mentally disordered person, together with a statement of all claims due on and all debts and liabilities due by such a person.

(2) All transactions under this Ordinance shall be made through a bank authorized by the Court.

(3) Every such manager shall also furnish to the Court within a period of three months of the closure of every financial year, an account of the property and assets in his charge, the sums received and disbursed on account of the mentally disordered person and the balance remaining with him.

(4) If any relative of a mentally disordered person impugns, by a petition to the Court, the accuracy of the inventory or statement referred to in sub-section (1) or as the case may be, any annual account referred to in sub-section (3), the Court may summon the manager and summarily inquire into the matter and make such order thereon as it thinks fit.

(5) Any relative of a mentally disordered person may, with the leave of the Court, sue for an account from any manager appointed under this Ordinance or from any such person after his removal from office or trust, or from his legal representatives in the case of his death, in respect of any property then or formerly under his management or of any sums of money or other property received by him on account of such property.

38. Inquiry by Court of Protection in certain cases.— Where a mentally disordered person had, before the onset of his mental disorder, contracted to sell or otherwise disposed of his property or any portion thereof, the Court may, after conducting an inquiry, direct the manager appointed under this Ordinance to perform such contract and to do such other acts in fulfillment of the contract as the Court considers necessary and thereupon the manager shall be bound to act accordingly.

39. Disposal of business premises under the direction of Court of Protection.— Where a mentally disordered person had been engaged in business before he became mentally disordered the Court may, if it appears to be in the best interest of such a person, after proper hearing notices have been issued to dependents, relatives for hearing to dispose of his business premises, direct the manager appointed under this Ordinance in relation to property of such person to sell and dispose of such premises and to apply the sale proceeds thereof in such manner as the Court may direct and thereupon the manager shall be bound to act accordingly.

40. Investment of assets of mentally disordered person.— All sums received by a manager on account of any estate in excess of what may be required for the current expenses of a mentally disordered person or for the management of his property, shall be paid into the public treasury on account of the estate, and shall be invested, from time to time, through state owned investment agencies, in the interest of the mentally disordered person.

41. Appointment of a new manager or guardian.— (1) The manager of the property of a mentally disordered person may resign with the permission of the Court, or for sufficient cause and for reasons to be recorded in writing, be removed by the Court and such Court may appoint a new manager in his place.

(2) Any manager removed under sub-section (1) shall be bound to deliver the charge of all property of such a person to the new manager, and to account for all monies received or disbursed by him.

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(3) The guardian of the person of a mentally disordered person may resign with the permission of the Court, or for sufficient cause and for reasons to be recorded in writing, be removed by the Court and such Court may appoint a new guardian in his place.

42. Dissolution of partnership.——(1) Where a person, being a member of a partnership firm, is found to be mentally disordered, the Court may, on the application of any other partner, order for the dissolution of the partnership or on the application of any person who appears to that Court to be entitled to seek such dissolution dissolve the partnership in accordance with the provisions of the Partnership Act, 1932 (IX of 1932).

(2) Upon dissolution a partnership firm to which sub-section (1) applies, the manager appointed under this Ordinance may, in the name and on behalf of the mentally disordered person, join with the other partners in disposing of the partnership property upon such terms, and shall do all such acts for carrying into effect the dissolution of the partnership as the Court may direct.

(3) Notwithstanding anything detained in the foregoing provisions, the Court may, instead of appointing a manager of the estate, order that in the case of cash, or in the case of any other property, the produce thereof, shall be realized and paid or delivered to such person as may be appointed by the Court in this behalf, to be applied for the maintenance of the mentally disordered person and of such members of his family as are dependent on him.

43. Securities, etc., of mentally disordered person.—(1) Where any stock or Government securities or any share in a company are standing in the name of, or vested in, a mentally disordered person beneficially entitled thereto, or if the manager dies in the estate or himself becomes mentally disordered, or is out of the jurisdiction of the Court, or it is uncertain whether the manager is living or dead, or neglects or refuses to transfer the stock, securities or shares, or to receive and pay over thereof the dividends to a new manager appointed in his place, within fourteen days after being required by the Court to do so, then the Court may direct the company or government concerned to make such transfer, or to transfer the same, and to receive and pay over the dividends in such manner as it may direct.

(2) The Court may direct those dividends, the profit of shares, stock and Government securities shall be deposited in the mentally disordered person's bank account.

(3) Where any stock or Government securities or shares in a company is or are standing in the name of, or vested in, any person residing out of Pakistan, the Court upon being satisfied that such person has been declared to be mentally disordered and that his personal estate has been vested in a person appointed for the management thereof, according to the law of the place where he is residing may direct the company or Government concerned to make transfer of such stock, securities of shares or of any part thereof, to or into the name of the person so appointed or otherwise, and also to receive and pay over the dividends and proceeds, as the Court thinks fit.

44. Maintenance during temporary mental disorder.— If it appears to the Court that the mental illness of a mentally disordered person is in its nature temporary and that it is expedient to make provision for a temporary period, for his maintenance or for the maintenance of such members of his family as are dependent on him, the Court may direct his property or a sufficient part thereof to be applied for the purpose specified therein.

45. Inquiry by Court of Protection into cessation of mental disorder.—(1) Where the Court has reason to believe that any person who was found to be mentally disordered has ceased to be mentally disordered it may direct any court subordinate to it to inquire whether such person has ceased to be mentally disordered.

(2) An inquiry under sub-section (1) shall, so far as may be, conducted under this Ordinance.

(3) If after an inquiry under this section, it is found that the mental disorder of a person has ceased, the Court shall order all actions taken in respect of such person under this Ordinance to be set aside on such terms and conditions as that Court thinks fit to impose.

(4) Without prejudice to the generality powers given above, the court shall have powers to make such orders and give such directions as the Court thinks fit, for the betterment of such a person.

46. Appeal to High Court.— An appeal shall lie to the High Court from an order made by a Court of Protection under this Chapter, within a period of sixty days from the date of order of the said Court.

CHAPTER VI

LIABILITY TO MEET COST OF MAINTENANCE OF MENTALLY DISORDERED PERSON ADMITTED IN A PSYCHIATRIC FACILITY

47. Liability to meet cost of maintenance of a patient admitted psychiatric facility.— (1) The cost of maintenance of a patient admitted in a Government owned psychiatric facility shall be borne by the Government:

Provided that—

(a) the authority which made the order has not taken an undertaking from any person to bear the cost of maintenance of such a person; and

(b) there is no provision for bearing the cost of maintenance of such person by the Court of Protection under this Ordinance.

(2) Person holding public office or a public servant who is paid by the Government and is mentally disordered shall continue to receive benefit as per entitlement even after he retires voluntarily or on attainment of the age of superannuation or on the basis of medical invalidation.

(3) In case of defence personnel, the paymaster of the military circle within which any psychiatric facility is situated shall pay to the officer in charge of such facility the cost of maintenance of such a mentally disordered person received and detained therein under this Ordinance.

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(4) Where any such person admitted in a psychiatric facility has an estate or where any person legally bound to maintain such person has the means to maintain such person, the Government or local authority liable to bear the cost of maintenance of such a person under any law, for the time being in force, may make an application to the Court within whose jurisdiction the estate of such a person is situated or the person legally bound to maintain the said person and having the means therefore resides, for an order authorizing it to apply his estate towards the cost of maintenance or directing the legally bound person to bear the costs of maintenance.

(5) Nothing contained in the foregoing provisions shall be deemed to absolve a person legally bound to maintain a mentally disordered person from maintaining such a person.

48. Maintenance out of pay, pension, etc.— (1) Where any sum is payable in respect of pay, pension, gratuity or any allowance to any person by the Government and the person to whom the sum is payable if certified by a Magistrate under this Ordinance to be a mentally disordered person, the officer under whose authority such sum would be payable, may pay to the person having charge of the mentally disordered person so much of the said sum, as he thinks tit, having regard to the cost of maintenance of such person and may pay to such members of the family of the mentally disordered person as are dependent on him for maintenance, the surplus, if any, or such part thereof, as he thinks fit, having regard to the expenses of maintenance of such member.

(2) Where there is any further surplus amount available out of the funds specified sub-section (1) after making payments as provided in that sub-section, the Government shall hold the same to be dealt with as follows, namely:

(a) where a mentally disordered person is certified to have ceased to be mentally disordered by the Court of Protection within the local limits of whose jurisdiction such person resides or is admitted, the whole of the surplus amount shall be paid back to that person;

(b) where a mentally disordered person dies before payment, the whole of the surplus amount shall be paid over to those of his heirs who are legally entitled to receive the same; and

(c) where a mentally disordered person dies during his mental disorder without leaving any person legally entitled to succeed to his estate, the whole of the surplus amount shall be paid into the State Treasury.

CHAPTER VII

PROTECTION OF HUMAN RIGHTS OF MENTALLY DISORDERED PERSONS

49. Cases of attempted suicide.— A person who attempt is suicide shall be assessed by an approved psychiatrist and if found to be suffering from a mental disorder shall be treated appropriately under the provisions of this Ordinance.

50. Confidentiality.— No patient shall be publicized nor his identity disclosed to the public through press or media unless such person chooses to publicise his own condition.

51. Informed consent.—(1) Before commencing any investigation or treatment a psychiatrist or nominated medical officer shall obtain written informed consent, on a prescribed form, from the patient or if the patient is a minor, his nearest relative or a guardian, as the case may be.

(2) Where the consent of a patient to any form of investigation (s) and or treatment (s) has been given the patient or if the patient is a minor, his nearest relative or a guardian, as the case may be, may withdraw his consent in writing at any time before the completion of the treatment.

(3) Without prejudice to the application of sub-section (2) above to any treatment given under the plan of treatment to which a patient or if the patient is a minor, his nearest relative or a guardian, as the case may be, who has consented, to such a plan may, at any time withdraw his consent in writing to further treatment, or to further treatment of any description under the plan of treatment.

CHAPTER VIII

OFFENCES AND INDEMNITY

52. Penalty for making false statement, etc.—(1) Any person who willfully makes a false entry or statement in any application, recommendation, report, record or other document required or authorized to be made for any of the purposes of this Ordinance, with an intent to get someone to be detained for assessment or for treatment of mentally disordered; or with intent to deceive, makes use of any such entry or statement which he knows to be false, shall be guilty of an offence under this Ordinance.

(2) Any person employed in a psychiatric facility, who strikes, ill-treats, maltreats or willfully neglects any patient confined in such psychiatric facility or willfully violates or neglects any of the provisions of this Ordinance shall be guilty of an offence.

(3) Any manager of estate of a patient who willfully neglects or refuses to deliver his accounts or any property in his possession within the time fixed by the Court shall be guilty of an offence.

(4) Without prejudice to criminal prosecution under any other law for the time being in force, whoever is guilty of an offence under sub-section (1), (2) or (3), shall be punishable with imprisonment for a term which may extend to one year or with fine which may extend to twenty thousand rupees, or with both.

(5) Any person who carries out any form of inhumane treatment, on a mentally disordered person which includes: trepanning, branding, scalding, beating, exercising, chaining to a tree etc. of any such person or subjecting a child to the cultural practice of rendering him mentally retarded, by inducing microcephaly, or subjecting any such person to physical, emotional or sexual abuse, shall be guilty of an offence, punishable with rigorous imprisonment which may extend to five years or with fine extending up to Rs.50,000 or with both.

(6) Any person who contravenes any of the provisions of this Ordinance or of any rule or regulation made thereunder, for the contravention of which no penalty is expressly provided in this Ordinance, shall be punishable with imprisonment for a term which may extend to six months, or with fine which may extend to ten thousand rupees, or with both.

53. Indemnity.—(1) No suit, prosecution or other legal proceedings shall lie against any person for anything which is in good faith done or intended to be done in pursuance of this Ordinance or the rules made thereunder.

(2) No suit or other legal proceedings shall lie against the Government for any damage caused or likely to be caused for anything which is in good faith done or intended to be done in pursuance of this Ordinance or the rules or orders made thereunder.

CHAPTER IX

INSPECTION OF MENTALLY DISORDERED PRISONERS

54. Inspection of mentally disordered prisoners.——(1) Where any person is detained under the provisions of section 466 or section 471 of the Code of Criminal Procedure, 1898 (Act V of 1898), section 130 of the Pakistan Army Act, 1952 (XXXIX of 1952), section 143 of the Pakistan Air Force Act, 1953 (VI of 1953), or section 123 of the Pakistan Navy Ordinance, 1961 (XXXV of 1961), the Inspector‑General of Prisons, if the accused person is detained in a jail, and the Board of Visitors or any two members of such Board, if the accused person is detained in a psychiatric facility, may visit him in order to ascertain his state of mind and such a detainee shall be visited once at least in every six months by the Inspector-General of Prisons or, as the case may be, the Board or any two members of such Board, shall make a report as to the state of mind of such person to the authority under whose order the accused person is detained and the Inspector-General of Prisons or, as the case may be, the Board of Visitors or any two members of such Board, shall make a report as to the state of mind of such person to the authority under whose order the accused person is detained.

(2) The Government may empower the officer in charge of the jail in which such accused person is detained to discharge all or any of the functions of the Inspector‑General of Prisons under sub- section (1).

CHAPTER X

FORENSIC PSYCHIATRIC SERVICES

5. Forensic psychiatric services.— (1) Special security forensic psychiatric facilities shall be developed by the Government to house mentally disordered prisoners, mentally disordered offenders, as may be prescribed.

(2) Admission, transfer or removal of patients concerned with criminal proceedings in such facilities shall be under the administrative control, of the Inspector‑General of Prisons.

(3) The Board of Visitors shall have an access to such persons admitted in forensic psychiatric facility in accordance with the provisions of this Ordinance.

CHAPTER XI

MISCELLANEOUS

56. Specialized Psychiatric Treatments.— (1) Specialized psychiatric treatment may be carried out with the informed consent of the patient, on the orders in writing by the psychiatrist in charge of the treatment of the patient or his relative or guardian, if the patient is a minor.

(2) All electro-convulsive treatments shall preferably be administered under general anesthesia.

(3) All electro-convulsive treatments shall be advised by a psychiatrist, in charge of the patient, recording the reasons for such advice and stating the reasons as to why the alternative available methods of treatment are not appropriate.

(4) Administration of long acting anti-psychotic depot injections shall only be carried out upon the advice of a psychiatrist for a period as specified in the prescription and such cases shall be reviewed periodically.

(5) No person shall advise and carry out psychosurgery or make any decision to carry out psychosurgery, except in cases, where it is decided to be necessary and appropriate in a meeting in this regard, attended by a neurosurgeon, a neurophysician, a physician, two approved psychiatrists and a clinical psychologist.

57. Provisions for public and private sector psychiatric facilities.—The provisions of this Ordinance shall apply to all psychiatric facilities whether in public and or private sector.

58. Removal of difficulties.—— If any difficulty arises in giving effect to any of the provisions of this Ordinance, the President may make such order, not inconsistent with the provision of this Ordinance, as may appear to him to be necessary for the purpose of removing the difficulty:

Provided that no such power shall be exercised after the expiry of two years from the coming into force of this Ordinance.

59. Power to make rules.—(1) The Federal, Government may, in consultation with the Provincial Governments, by notification in the official Gazette, make rules for carrying out the purposes of this Ordinance.

(2) Without prejudice to the generality of the foregoing power, the rules may provide for all or any of the following matters, namely:

(a) to prescribe forms for any proceedings under this Ordinance;

(b) to prescribe places of admission, places of safety and regulation of treatment of mentally disordered persons;

(c) to regulate the admission, care and treatment of under trial persons or convicted prisoners;

(d) to regulate the management of a mental health facility; and

(e) to prescribe conditions subject to which a psychiatric facility may be licensed.

THE PAKISTAN CODE

60. Ordinance to override.— The provisions of this Ordinance shall have effect notwithstanding anything inconsistent therewith contained in any other law for the time being in force.

61. Repeal and saving.— (1) The Lunacy Act, 1912 (IV of 1912), is hereby repealed.

(2) Notwithstanding the repeal of Lunacy Act, 1912 (IV of 1912), hereinafter referred to as the repealed Act,

(a) all orders made, acts done and powers exercised under the repealed Act shall be deemed to have been validly made, done and exercised and deemed always to have had effect accordingly; and

(b) nothing contained in this Ordinance shall be deemed to apply to proceedings, suits or appeals and applications pending under the repealed Act before any court immediately before the commencement of this Ordinance and such proceedings, suits, appeals and applications shall continue to be heard and disposed of in accordance with the provisions of the repealed Act.

THE PAKISTAN CODE

THE MEDICAL QUALIFICATIONS (INFORMATION) ORDINANCE, 1960

CONTENTS

1. Short title, extent and commencement
2. Definition
3. Liability to furnish information
4. Period within which to furnish information
5. Penalty and procedure

THE FIRST SCHEDULE

THE SECOND SCHEDULE

THE PAKISTAN CODE

THE MEDICAL QUALIFICATIONS (INFORMATION) ORDINANCE, 1960.

ORDINANCE NO. IV OF 1960

[23rd February, 1960]

An Ordinance to provide for the furnishing of certain information by persons qualified in certain branches of medicine.

WHEREAS it is expedient to provide for the furnishing of certain information by persons qualified in certain branches of medicine ;

Now, THEREFORE, in pursuance of the Proclamation of the seventh day of October, 1958, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance :—

1. Short title, extent and commencement.—(1) This Ordinance may be called the Medical Qualifications (Information) Ordinance, 1960.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

[1][**2. Definition.**—In this Ordinance, "Director-General" means the Director of Health Services of the Province.]

3. Liability to furnish information.—All persons residing in Pakistan, of whatever nationality, and falling within any of the Categories specified in the First Schedule, whether in the employment of Government or not, shall furnish information to the Director-General in the Form given in the Second Schedule.

4. Period within which to furnish information.— (1) The information required by section 3 shall be furnished by the person concerned so as to reach the Director-General within one month from the date of the promulgation of this Ordinance, or within such further period as the Director-General may, in special circumstances, allow.

(2) Persons who first qualify or add to their basic qualifications after the promulgation of this Ordinance shall furnish the information in respect thereof to the Director-General within one month of their first qualifying, or, as the case may be, adding to their basic qualifications, or within such further period as the Director-General may, in special circumstances, allow.

5. Penalty and procedure.—(1) Any person who, without sufficient cause, fails to furnish the information required under this Ordinance shall be punishable with imprisonment for a term which may extend to one month, or with fine which may extend to one thousand rupees, or with both.

(2) No Court shall take cognizance of an offence punishable under this Ordinance save on a complaint in writing made by or under the authority of the Director-General.

[1]Subs. by Central Adaptation of Laws Order, 1964 (President's Order No. 1 of 1964), Art. 2 and Sch.

THE FIRST SCHEDULE

(See* section 3*)

CATEGORIES

(1) Persons holding qualifications in allopathic medicine ;

(2) Qualified Dentists ;

(3) Nurses, Nursing Orderlies ;

(4) Health Visitors, Midwives and Assistant Midwives ;

(5) Sanitary Inspectors, Malaria Inspectors, Health Assistants ;

(6) Dispensers, Compounders, Pharmacists ;

(7) Physiotherapists, Masseurs, Physio-therapy technicians ;

(8) X-ray and hospital laboratory technician, and medical instrument repair technicians.

THE SECOND SCHEDULE

(See* section 3*)

FORM

[Vide section 3. [1][Medical Qualifications (Information) Ordinance, 1960]]

1. Name in full (in block letters) :
2. Father's Name :
3. Home Address :
4. Present Address :
5. Age with year of birth :
6. Religion :
7. Male or Female :
8. Marital status :
9. Nationality (If not Pakistani, please state length of residence) :
10. Educational Qualifications :
11. Professional Basic Qualifications :

THE PAKISTAN CODE

[1]Subs. and shall be deemed always to have been so Substituted by the Repealing and Amending Ordinance, 1961 (I of 1961), s. 3 and 2nd Sch.

(1)

(2)

(3)

(4)

(5)

12. Professional Post-Graduate Qualifications (with year and place of qualification) :

(1)

(2)

(3)

13. Speciality, if any :

Physician.

Surgeon.

Bacteriologist.

Pathologist.

Radiologist, etc., etc.

14. Occupational Record :

(a) If in employment.

Authority under Whom employed.	Pay	Date of Joining.	Date of leaving.

(b) If not in employment.

The information recorded above is correct to the best of my knowledge.

Date……19. Signature……

THE PAKISTAN CODE

RGN Date: 11-09-2024

THE EYE SURGERY (RESTRICTION) ORDINANCE, 1960

CONTENTS

1. Short title, extent and commencement
2. Definitions
3. Punishment for performing eye surgery in certain cases
4. Punishment for unlawful practice or holding out
5. Offences to be cognizable
6. Trial of offences

THE PAKISTAN CODE

THE EYE SURGERY (RESTRICTION) ORDINANCE, 1960

ORDINANCE No. LI OF 1960

[21st December, 1960]

AN
ORDINANCE

to prevent surgery on the eye by persons other than registered medical practitioners

WHEREAS it is expedient to prevent surgery on the eye by persons other than registered medical practitioners;

Now, THEREFORE, in pursuance of the Proclamation of the seventh day of October 1958, and in exercise of the powers conferred by Article 2 of the State Arrangements Order, 1959, and of all other powers enabling him in that behalf, the Minister exercising the functions of President under the said Article makes and promulgates the following Ordinance :—

1. Short title, extent and commencement.—(1) This Ordinance may be called the Eye Surgery (Restriction) Ordinance, 1960.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions.—In this Ordinance, unless there is anything repugnant in the subject or context—

(1) "complete blindness" means absence of sight through total loss of perception of light in both eyes;

(2) "eye surgery" means any surgical operation performed on or in relation to the eye by means of any instrument of whatever kind;

(3) "partial blindness" means total loss of perception of light in one eye or sub-total loss of perception of light in both eyes resulting in restriction of visual field and acuity; and

(4) "registered medical practitioner" means a person who is, for the time being, registered under any law relating to the registration of medical practitioners in Pakistan.

3. Punishment for performing eye surgery in certain cases.—(1) Any person, not being a registered medical practitioner, who performs eye surgery upon another, whether with or without the latter's consent, shall be punishable with imprisonment for a term which may extend to one year, and with fine which may extend to one thousand rupees.

(2) The term of imprisonment under sub-section (1) may extend—

(a) to three years, if the offence results in partial blindness, and

(b) to seven years, if the offence results in complete blindness.

4. Punishment for unlawful practice or holding out.—Any person not being a registered medical practitioner who practises, or holds himself out, whether directly or by implication, as practising, or as being prepared to practise, eye surgery shall be punishable with imprisonment for a term which may extend to six months, and with fine which may extend to five hundred rupees.

5. Offences to be cognizable.—An offence punishable under sub-section (1) of section 3 or under section 4 shall be a cognizable offence for the purposes of the Code of Criminal Procedure, 1898 (Act V of 1898), notwithstanding anything to the contrary contained therein.

6. Trial of offences.—No court inferior to that of a Magistrate of the first class shall try any offence punishable under this Ordinance.

THE PAKISTAN CODE

RGN Date: 04-06-2024

THE EPIDEMIC DISEASES ACT, 1897

CONTENTS

SECTIONS:

1. Short title.

2. Power to take special measures and prescribe regulations as to dangerous epidemic disease.

2 A. Powers of Federal Government.

3. Penalty.

4. Protection to persons acting under Act.

THE EPIDEMIC DISEASES ACT, 1897

[1]Act No. III OF 1897

[4th February, 1897]

An Act to provide for the better prevention of the spread of Dangerous Epidemic Disease.

WHEREAS it is expedient to provide for the better prevention of the spread of dangerous epidemic disease; It is hereby enacted as follows :-

1. Short title and extent.—(1) This Act may be called the Epidemic Diseases Act, 1897.

[2][(2) It extends to the whole of Pakistan].

[3]* * * * * * *

[4]**2. Power to take special measures and prescribe regulations as to dangerous epidemic disease.**—(1) When at any time the [5][Provincial Government] is satisfied that [6][the Province] or any part thereof is visited by, or threatened with, an outbreak of any dangerous epidemic disease, the [5][Provincial Government], if [7][it] thinks that the ordinary provisions of the law for the time being in force are insufficient for the purpose, may take, or require or empower any person to take, such measures and, by public notice, prescribe such temporary regulations to be observed by the public or by any person or class of persons as [7][it] shall deem necessary to prevent the outbreak of such disea-

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[1]For Statement of Objects and Reasons, see Gazette of India, 1897, Pt. V, p. 21; for Report of the Select Committee, see ibid., p. 23 ; and for Proceedings in Council, see ibid., Pt. VI, pp. 18 and 24. .
This Act has been applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N.W.F.P., subject to certain modifications, see N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950.
It has also been extended to the Leased Areas of Baluchistan, see the Leased Areas (Laws) Order, 1950 (G.G.O. 3 of 1950); and applied in the Federated Areas of Baluchistan, see Gazette of India, 1937, Pt. I, 'P. 1499.
It has been extended to the Excluded Area of Upper Tanawal other than Phulera by the N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950 and declared to be in force in that area with effect from the 1st June, 1951, see N.W.F.P. Gazette, Ext. dated the 1st June, 1951.
It has also been amended in the Punjab by the Epidemic Diseases (Punjab Amdt.) Act, 1944 (pun. Act 3 of 1944).
This Act has been repealed in its application to the Province of West Pakistan by West Pakistan Act 36 of 1958.

[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (with effect from the 14th October, 1955), for the original sub-section (2), as amended by the Burma Laws Act, 1898 (13 of 1898), the Repealing and Amending Act, 1914 (10 of 1914), A.O., 1949 and the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 8.

[3]Sub-section (3), rep. by Act 10 of 1914, s. 3 and Sch.II.

[4]For notifications issued under this section, see different local Rules and Orders.

[5]Subs. by A.O., 1937, for "G. G. in C.".

[6]Subs. ibid., for "India.".

[7]Subs. ibid., for "he".

se or the spread thereof, and may determine in what manner and by whom any expenses incurred (including compensation if any) shall be defrayed.

(2) In particular and without prejudice to the generality of the foregoing provisions, the [1][provincial Government] may take measures and prescribe regulations for-

[2]* * * * * * *

(*b*) the inspection of persons travelling by railway or otherwise, and the segregation, in hospital, temporary accommodation or otherwise, of persons suspected by the inspecting officer of being infected with any such disease.

[3]* * * * * * *

[4][**2A. Powers of Federal Government.** When the [5][Federal Government] is satisfied that [6][Pakistan] or any part thereof is visited by, or threatened with, any out-break of any dangerous epidemic disease and that the ordinary provisions of the law for the time being in force are insufficient to prevent the outbreak of such disease or the spread thereof, the [5][Federal Government] may take measures and prescribe [7]regulations for the inspection of any ship or vessel leaving or arriving at any port in [8][Pakistan] and for such detention thereof, or of any person intending to sail therein, or arriving thereby, as may be necessary.]

3. Penalty. Any person disobeying any regulation or order made under this Act shall be deemed to have committed an offence punishable under section 188 of the Pakistan Penal Code (XLV *of* 1860).

4. Protection to persons acting under Act. No suit or other legal proceeding shall lie against any person for anything done or in good faith intended to be done under this Act.

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[1]Subs. by A. O.,1937, for "G. G. in C.".

[2]Clause (a) rep. ibid.

[3]Sub-section (3) rep. by the Devolution Act, 1920 (38 of 1920) s.2 and Sch. I.

[4]Subs. by A. O., 1937, for s. 2A as ins. by Act, 38 of 1920, s. 2 and Sch. I.

[5]Subs. by F. A. O., 1975, Art. 2 and Table, for "Central Government".

[6]Subs. by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 4 and 3rd Sch., for "India".

[7]For such Regulations, see Gaz. of P., 1958, Pt. I, p. 167.

[8]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (with effect from the 14th October, 1955), for "the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, Arts, 3 (2) and 4, for "British India".

THE DRUGS AND MEDICINES (INDEMNITY) ACT, 1957

CONTENTS

1. Short title, extent and commencement
2. Definition
3. Indemnity

THE PAKISTAN CODE

THE DRUGS AND MEDICINES (INDEMNITY) ACT, 1957

ACT No. XVII OF 1957

[27th *April*, 1957]

An Act to Indemnify certain Government servants and other persons.

WHEREAS an order of the Central Government under section 3 of the Essential Supplies (Continuance of Temporary Powers) Ordinance, 1955, to add to the Schedule to the Essential Commodities Distribution Order, 1953, "drugs and medicines including those administered by injection", having been notified over the signature of the Deputy Controller General of Prices and Supplies, had no legal validity ;

AND WHEREAS it is expedient to indemnify the Government servants and other persons in respect of acts done in pursuance or in virtue of the aforesaid order ;

It is hereby enacted as follows :—

1. Short title, extent and commencement.— (1) This Act may be called the Drugs and Medicines (Indemnity) Act, 1957.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definition. In this Act, " the notified order " means the Government of Pakistan, Ministry of Industries, Notification No. P.C. 19 (15)|55, dated the 14th September, 1955, published in the Gazette of Pakistan, Extraordinary, dated the 14th September, 1955.

3. Indemnity. No suit, prosecution or other legal proceeding shall lie in any court against any Government servant or any other person for or on account or in respect of anything done, action taken, notification or direction issued, price fixed, investigation or arrest made, property seized or confiscated, loss or injury suffered, legal proceeding instituted, or penalty or punishment imposed, enforced or continued, in pursuance or in virtue of the notified order.

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RGN Date: 18-09-2024